

Building Management Ordinance**(Cap. 344)****Contents**

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To facilitate the incorporation of owners of flats in buildings or groups of buildings, to provide for the management of buildings or groups of buildings and for matters incidental thereto or connected therewith.

(Amended 27 of 1993 s. 2)

[19 June 1970]

(Format changes—E.R. 2 of 2018)

Part I

Short Title and Interpretation

1. Short title

This Ordinance may be cited as the Building Management Ordinance.

(Amended 27 of 1993 s. 3)

2. Interpretation

(1) In this Ordinance, unless the context otherwise requires—
(Amended 20 of 2024 s. 3)

accountable (負有責任), in relation to a contravention of, or a failure to comply with an order made under, this Ordinance—
see section 2C; *(Added 20 of 2024 s. 3)*

accountant (會計師) means a certified public accountant (practising) as defined by section 2(1) of the Accounting and Financial Reporting Council Ordinance (Cap. 588); *(Added 27 of 1993 s. 4. Amended 23 of 2004 s. 56; L.N. 66 of 2022)*

administrator (管理人) means a person appointed as an administrator under section 30 or 31;

Authority (主管當局) means the Secretary for Home and Youth Affairs; (*Added 27 of 1993 s. 4. Amended L.N. 144 of 2022*)

authorized natural person (獲授權自然人)—

- (a) in relation to a corporate flat owner and a general meeting of a corporation convened under Schedule 3— means a natural person who may, under paragraph 4A(1) of that Schedule, act for the corporate flat owner for the meeting; or
- (b) in relation to a corporate flat owner and a meeting of owners convened under the deed of mutual covenant— means a natural person who may, under the mandatory DMC terms contained in paragraph 42(1) of Schedule 7, act for the corporate flat owner for the meeting; (*Added 20 of 2024 s. 3*)

authorized officer (獲授權人員) means any public officer authorized in writing by the Authority in that behalf; (*Added 27 of 1993 s. 4*)

building (建築物) means—

- (a) any building which contains any number of flats comprising 2 or more levels, including basements or underground parking areas;
- (b) any land upon which that building is erected; and
- (c) any other land (if any) which—
 - (i) is in common ownership with that building or land; or
 - (ii) in relation to the appointment of a management committee under section 3, 3A, 4 or 40C or any application in respect thereof, is owned or held by any person for the common use, enjoyment and benefit (whether exclusively or otherwise) of the

owners and occupiers of the flats in that building;
(Replaced 27 of 1993 s. 4. Amended 5 of 2007 s. 3)

certified minutes (經核證會議紀錄) means—

- (a) in relation to a meeting of a management committee—any minutes of the proceedings at the meeting that are certified in accordance with Schedule 2; or
- (b) in relation to a general meeting of a corporation—any minutes of the proceedings at the meeting that are certified in accordance with Schedule 3; (Added 20 of 2024 s. 3)

Code of Practice (工作守則) means any Code of Practice prepared, revised or issued from time to time by the Authority under section 44; (Added 27 of 1993 s. 4. Amended 69 of 2000 s. 2)

common parts (公用部分) means—

- (a) the whole of a building, except such parts as have been specified or designated in an instrument registered in the Land Registry as being for the exclusive use, occupation or enjoyment of an owner; and (Amended 8 of 1993 s. 2)
- (b) unless so specified or designated, those parts specified in Schedule 1; (Amended 5 of 2007 s. 40)

connection (關連)—see subsection (5); (Added 20 of 2024 s. 3)

convenor (召集人)—

- (a) in relation to a meeting of owners convened under section 3, means the person referred to in section 3(1)(a) or (b) or the owner appointed under section 3(1)(c);
- (b) in relation to a meeting of owners convened under section 3A, means the owner directed under section 3A(1);

(c) in relation to a meeting of owners convened under section 4, means the owner directed under section 4(1); or

(d) in relation to a meeting of owners convened under section 40C, means the owner named in the order made under section 40C(1); (*Added 5 of 2007 s. 3*)

corporate flat owner (法人團體業主) means an owner that is a body corporate; (*Added 20 of 2024 s. 3*)

corporation (法團) means a corporation registered under section 8;

corporation resolution (法團決議) means a resolution of the owners passed at a general meeting of the corporation convened and conducted in accordance with Schedule 3; (*Added 20 of 2024 s. 3*)

court (法庭) includes the tribunal; (*Added 20 of 2024 s. 3*)

deed of mutual covenant (公契) means a document which—

- (a) defines the rights, interests and obligations of owners among themselves; and
- (b) is registered in the Land Registry; (*Amended 8 of 1993 s. 2*)

DMC manager (公契經理人), in relation to a building, means the person who is specified in the deed of mutual covenant to manage the building; (*Added 20 of 2024 s. 3*)

electronic form (電子形式)—see section 2F(1)(a); (*Added 20 of 2024 s. 3*)

estate (屋邨) means the buildings or groups of buildings the subject of an application under section 34E(6); (*Added 27 of 1993 s. 4*)

exempt estate (獲豁免屋邨) means—

- (a) any estate specified in Schedule 9; (*Amended 5 of 2007 s. 40*)

- (b) any estate added to that Schedule under section 34E(6);
(*Added 27 of 1993 s. 4*)

first tender acceptance meeting (首次納標會議), in relation to any large-scale maintenance procurement, means—

- (a) if there is a corporation—the first general meeting of the corporation convened under Schedule 3; or
(b) if there is no corporation—the first meeting of owners convened under the deed of mutual covenant,

at which the question whether a tender submitted for the procurement is to be accepted or not is considered; (*Added 20 of 2024 s. 3*)

flat (單位) means any premises in a building which are referred to in a deed of mutual covenant whether described therein as a flat or by any other name and whether used as a dwelling, shop, factory, office or for any other purpose, of which the owner, as between himself and owners or occupiers of other parts of the same building, is entitled to the exclusive possession;

function (職能) includes a power and a duty; (*Added 20 of 2024 s. 3*)

hard copy form (印本形式)—see section 2F(1)(b); (*Added 20 of 2024 s. 3*)

initiation date (啟動日期), in relation to the procurement of any supplies, goods or services, means—

- (a) if there is a corporation—
(i) the date on which the initiation decision is made for the procurement by a management committee resolution; or
(ii) the date on which the initiation decision is made for the procurement by a corporation resolution,

whichever is the earlier; or

- (b) if there is no corporation—the date on which the initiation decision is made for the procurement—
 - (i) by an owners resolution; or
 - (ii) otherwise in accordance with the deed of mutual covenant; (*Added 20 of 2024 s. 3*)

initiation decision (啟動決定), in relation to the procurement of any supplies, goods or services—

- (a) means the decision that the procurement is to be conducted; and
- (b) includes a decision that potential suppliers are to be approached for the procurement; (*Added 20 of 2024 s. 3*)

Land Registrar (土地註冊處處長) includes, in relation to buildings on land in the New Territories, the Authority, save that only the Land Registrar may specify forms; (*Replaced 20 of 2002 s. 5*)

Land Registry (土地註冊處) means the Land Registry established under the Land Registration Ordinance (Cap. 128); (*Replaced 20 of 2002 s. 5*)

large-scale maintenance procurement (大型維修工程採購)—see section 2E; (*Added 20 of 2024 s. 3*)

management committee (管理委員會) means a management committee appointed under section 3, 3A, 4 or 40C; (*Amended 27 of 1993 s. 4; 5 of 2007 s. 3*)

management committee resolution (管委會決議) means a resolution of the management committee passed at a meeting of the management committee convened and conducted in accordance with Schedule 2; (*Added 20 of 2024 s. 3*)

manager (經理人), in relation to a building, means—

- (a) the DMC manager; or

- (b) any other person who for the time being is, for the purposes of the deed of mutual covenant, managing the building; (*Added 20 of 2024 s. 3*)

mandatory DMC terms (公契強制條款) means a provision of a deed of mutual covenant that has effect by virtue of section 34E; (*Added 20 of 2024 s. 3*)

member (委員), in relation to a management committee, means a person appointed as a member of the management committee under section 14(2) or paragraph 2(1)(b), 5(2)(a), 6 or 6A of Schedule 2; (*Added 5 of 2007 s. 3*)

occupier (佔用人) means a tenant, sub-tenant or other person in lawful occupation of a flat, but does not include an owner of that flat; (*Added 27 of 1993 s. 4*)

owner (業主) means—

- (a) a person who for the time being appears from the records at the Land Registry to be the owner of an undivided share in land on which there is a building; and (*Amended 8 of 1993 s. 2*)
- (b) a registered mortgagee in possession of such share;

owners resolution (業主決議) means a resolution of the owners passed by a majority of the votes of the owners voting either personally or by proxy at a meeting of owners convened and conducted in accordance with the deed of mutual covenant; (*Added 20 of 2024 s. 3*)

participant (參與者), in relation to a management committee—see subsection (4); (*Added 20 of 2024 s. 3*)

register (登記冊) means the register of corporations maintained under section 12;

registered mortgagee (已登記承按人) means—

- (a) a person to whom an owner's interest in a building has been mortgaged or charged under a mortgage or charge

which has been registered in the Land Registry; and
(*Amended 8 of 1993 s. 2*)

- (b) a person in whose favour a charge upon a flat has been created by virtue of any Ordinance;

responsible person (負責人), in relation to the procurement of any supplies, goods or services for a building—

- (a) means—
 - (i) the manager of the building; or
 - (ii) a person who is accustomed or obliged to act in accordance with the directions or instructions of the manager in connection with substantive matters in respect of the procurement, regardless of whether the directions or instructions are made to the person directly or indirectly; and
- (b) does not include a member, secretary or treasurer of the management committee in respect of the building;
(*Added 20 of 2024 s. 3*)

share (份數) means the share of an owner in a building determined in accordance with section 39;

specified form (指明表格) means—

- (a) in Schedule 3—a form specified under section 8(6);
- (b) in Schedule 6B—a form specified under section 28M; or
- (c) in Schedule 7—a form specified under section 34EA;
(*Added 20 of 2024 s. 3*)

tenants' representative (租客代表) means the tenants' representative appointed under section 15(1); (*Added 27 of 1993 s. 4*)

tribunal (審裁處) means the Lands Tribunal established under section 3 of the Lands Tribunal Ordinance (Cap. 17); (*Added 27 of 1993 s. 4. Amended 20 of 2024 s. 3*)

type 1 high-value procurement (第1類大額採購)—see section 2D;
(Added 20 of 2024 s. 3)

type 2 high-value procurement (第2類大額採購)—see section 2D;
(Added 20 of 2024 s. 3)

validly (有效地), in relation to the sending of a document in electronic form—see section 2F(2); (Added 20 of 2024 s. 3)

voting-in-person threshold (親自投票門檻), in relation to the passing of a resolution of the owners at a meeting, means a minimum number of the owners who must have cast a vote on the relevant proposed resolution personally, but not by proxy, at the meeting in order that a decision may be made by the resolution. (Added 20 of 2024 s. 3)

(Amended 27 of 1993 s. 4)

- (2) In this Ordinance, a reference to a person's acting for a corporate flat owner for a meeting—
 - (a) is a reference to—
 - (i) the person's attending the meeting; and
 - (ii) the person's performing all the functions of an owner at, or otherwise in connection with, the meeting,
on behalf of the corporate flat owner; and
 - (b) does not include the person's performing any function as a proxy. (Added 20 of 2024 s. 3)
- (3) To avoid doubt, for any meeting that is adjourned, a reference to the conclusion of the meeting in this Ordinance is a reference to the conclusion of the last adjourned meeting. (Added 20 of 2024 s. 3)
- (4) In this Ordinance, a reference to a participant of a management committee is a reference to—
 - (a) a member of the management committee; or

- (b) a secretary or treasurer of the management committee who is not its member. (*Added 20 of 2024 s. 3*)
- (5) For the purposes of this Ordinance, a person (***Person A***) has a connection with another person (***Person B***) if—
 - (a) Person A is a spouse of Person B;
 - (b) Person A, or a spouse of Person A, is a brother, sister, uncle, aunt, cousin, nephew, niece, lineal ancestor or lineal descendant of Person B;
 - (c) Person A and Person B are co-owners of a share in the relevant building;
 - (d) Person A is a body corporate—
 - (i) the composition of the board of directors of which is controlled by Person B;
 - (ii) more than half of the voting power in or in relation to which is possessed by Person B;
 - (iii) more than half of the issued share capital of which is held by Person B;
 - (iv) of which Person B is a director; or
 - (v) of which Person B is an associated company as defined by section 2(1) of the Companies Ordinance (Cap. 622);
 - (e) Person A and Person B are partners in a partnership;
 - (f) Person A is an employee or agent of Person B; or
 - (g) Person A is otherwise accustomed or obliged to act in accordance with the directions or instructions of Person B. (*Added 20 of 2024 s. 3*)
- (6) For the purposes of subsection (5)(b)—
 - (a) a relationship of the half blood is treated as a relationship of the whole blood;

- (b) a stepchild or adopted child of a person is treated as that person's child; and
 - (c) a child born out of wedlock is treated as the legitimate child of that child's mother and reputed father. (*Added 20 of 2024 s. 3*)
- (7) A note located in the text of this Ordinance is provided for information only and has no legislative effect. (*Added 20 of 2024 s. 3*)

2A. (*Repealed 27 of 1993 s. 5*)

2B. References to majority of votes

For the avoidance of doubt, in determining whether a resolution is passed by a majority of the votes of owners, or members of a management committee, at a meeting convened under this Ordinance, the following shall be disregarded—

- (a) owners or members, as the case may be, who are not present at the meeting;
- (b) owners or members, as the case may be, who are present at the meeting but do not vote;
- (c) blank or invalid votes;
- (d) abstentions.

(Added 5 of 2007 s. 4)

2C. References to persons accountable for contravention of, or failure to comply with orders made under, this Ordinance

- (1) This section applies where a provision of this Ordinance provides that a person who is accountable for a contravention of this Ordinance commits an offence.
- (2) For the purposes of the provision, a person is accountable for the contravention if—

- (a) the contravention occurs because a management committee fails to perform a duty; and
 - (b) at the time of the contravention, the person is, as a participant of the management committee, assuming (whether expressly or by implication) responsibility for taking the actions required for the management committee's performance of the duty.
- (3) In this section, a reference to a contravention of this Ordinance includes a failure to comply with an order made under this Ordinance.

(Added 20 of 2024 s. 4)

2D. References to type 1 high-value procurement and type 2 high-value procurement

- (1) For the purposes of this Ordinance—
 - (a) the procurement of any supplies, goods or services required in the performance of a function under the deed of mutual covenant or this Ordinance is type 1 high-value procurement if—
 - (i) the value of the supplies, goods or services—
 - (A) exceeds, or is likely to exceed, \$200,000; and
 - (B) does not exceed, or is not likely to exceed, 20% of the reference amount for the procurement; and
 - (ii) the procurement is not large-scale maintenance procurement; and
 - (b) the procurement of any supplies, goods or services required in the performance of a function under the deed of mutual covenant or this Ordinance is type 2 high-value procurement if—

- (i) the value of the supplies, goods or services exceeds, or is likely to exceed, 20% of the reference amount for the procurement; and
 - (ii) the procurement is not large-scale maintenance procurement.
 - (2) The Authority may by notice published in the Gazette do any of the following—
 - (a) amend the monetary amount specified in subsection (1)(a)(i)(A);
 - (b) amend the percentage specified in subsection (1)(a)(i)(B) and (b)(i).
 - (3) In subsection (1), a reference to the reference amount, in relation to the procurement of any supplies, goods or services, is a reference to—
 - (a) if there is more than one amount of specified annual expenditure for the last 3 financial years in respect of the management of the building that wholly fall before the initiation date for the procurement—the average of all such amounts of specified annual expenditure; or
 - (b) in any other case—
 - (i) subject to subparagraph (ii), the amount of the proposed annual expenditure under the last budget prepared by the management committee for compliance with paragraph 1 of Schedule 5 before the initiation date for the procurement (***Schedule 5 amount***); or
 - (ii) if there is no Schedule 5 amount—the amount of the proposed annual expenditure under the last budget prepared by the manager of the building in accordance with the deed of mutual covenant before the initiation date for the procurement.

- (4) For calculating an average of available amounts of specified annual expenditure for the purposes of subsection (3)(a), if the number of months that a relevant financial year comprises is not 12, the amount of specified annual expenditure that is available for the financial year (*subject expenditure amount*) is to be adjusted in accordance with the following formula—

$$A = B \div C \times 12$$

where—

- A means the subject expenditure amount as adjusted;
- B means the subject expenditure amount; and
- C means the number of months that the financial year comprises.
- (5) For the purposes of the formula in subsection (4), if the relevant financial year covers only a part, but not the whole, of a particular month (*specified month*), the specified month is to be counted towards item C of the formula to the extent of a fraction that is obtained by dividing the number under paragraph (a) by the number under paragraph (b)—
- (a) the number of days of the specified month that are covered by the financial year;
- (b) the number of days of the whole specified month.
- (6) In this section—

corporation financial year (法團財務年度), in relation to the management of a building, means each period for which a set of financial statements has been prepared under section 27(1)(b) in respect of the management of the building;

DMC financial year (公契財務年度), in relation to the management of a building, means each period for which a set of financial statements has been prepared under the deed

of mutual covenant in respect of the management of the building;

financial year (財務年度), in relation to the management of a building—

- (a) subject to paragraph (b), means a corporation financial year in respect of the management of the building; or
- (b) to the extent that a period that falls before the initiation date for the procurement concerned is not covered by a corporation financial year—means a DMC financial year in respect of the management of the building;

specified annual expenditure (指明年度開支), in relation to a financial year, means—

- (a) if the financial year is a corporation financial year—the total expenditure of the corporation contained in the income and expenditure account that is prepared for the financial year in accordance with section 27; or
- (b) if the financial year is a DMC financial year—the total expenditure in respect of the management of the building contained in the income and expenditure account that is prepared for the financial year in accordance with the mandatory DMC terms contained in paragraph 2 of Schedule 7.

(Added 20 of 2024 s. 4)

2E. References to large-scale maintenance procurement

- (1) For the purposes of this Ordinance, the procurement of any supplies, goods or services required in the performance of a function under the deed of mutual covenant or this Ordinance is large-scale maintenance procurement if—

- (a) the supplies, goods or services are so required for repairing, replacing, maintaining or improving any of the common parts of the building;
- (b) the value of the supplies, goods or services divided by the total number of flats of the building exceeds, or is likely to exceed, \$30,000; and
- (c) the procurement is not the procurement of—
 - (i) any cleaning or security services for the building; or
 - (ii) any building management services provided by the manager of the building.
- (2) In subsection (1)(b), a reference to flats does not include any garage, carpark or carport unless every flat in the building concerned is, or is part of, a garage, carpark or carport.
- (3) The Authority may by notice published in the Gazette amend the monetary amount specified in subsection (1)(b).

(Added 20 of 2024 s. 4)

2F. Form of documents

- (1) For the purposes of this Ordinance—
 - (a) a document is in electronic form if it is in the form of an electronic record; and
 - (b) a document is in hard copy form if it is in paper form or a similar form capable of being read.
- (2) For the purposes of this Ordinance, a document in electronic form is sent validly by a person (*sender*) to another person (*recipient*) if—
 - (a) the recipient—

- (i) has agreed, generally or specifically, that the document may be sent to the recipient in the form of an electronic record; and
 - (ii) has not explicitly revoked the agreement;
 - (b) the document is sent by the sender in the form of an electronic record to an address in an information system specified for the purpose by the recipient generally or specifically; and
 - (c) the document is sent by the sender in a form, and by a means, that, in the sender's reasonable opinion, will enable the recipient—
 - (i) to read the document, or, to the extent that it consists of images, to see the document, with the naked eye or with the eye with suitable corrective lens; and
 - (ii) to retain a copy of the document.
- (3) For the purposes of this Ordinance, a person (*requested person*) supplies another person (*requester*) with a document that the requester requests (*general request*) if—
 - (a) in the case where the conditions specified in subsection (4) are met—the requested person validly supplies the requester with the document in electronic form; or
 - (b) in any other case—the requested person supplies the requester with the document in hard copy form.
- (4) For the purposes of subsection (3)(a), the conditions are—
 - (a) that the requester—
 - (i) in making the general request, specifically requests the document in electronic form (*specific request*); and

- (ii) specifically for the purpose, specifies an address in an information system (*specified address*); and
 - (b) that the requested person agrees to the specific request.
- (5) For the purposes of subsection (3)(a), a requested person validly supplies the requester with the document in electronic form if—
 - (a) the document is sent by the requested person in the form of an electronic record to the specified address; and
 - (b) the document is sent by the requested person in a form, and by a means, that, in the requested person's reasonable opinion, will enable the requester—
 - (i) to read the document, or, to the extent that it consists of images, to see the document, with the naked eye or with the eye with suitable corrective lens; and
 - (ii) to retain a copy of the document.

(6) In this section—

address (地址) includes a number, or any sequence or combination of letters, characters, numbers or symbols of any language, used for sending or receiving a document in electronic form;

electronic record (電子紀錄) has the meaning given by section 2(1) of the Electronic Transactions Ordinance (Cap. 553);

information system (資訊系統) has the meaning given by section 2(1) of the Electronic Transactions Ordinance (Cap. 553).

(Added 20 of 2024 s. 4)

Part II

Management Committee

3. Appointment of management committee

- (1) A meeting of the owners to appoint a management committee may be convened by—
 - (a) the manager of the building; *(Replaced 20 of 2024 s. 5)*
 - (b) any other person authorized to convene such a meeting by the deed of mutual covenant (if any); or
 - (c) one owner appointed to convene such a meeting by the owners of not less than 5% of the shares in aggregate. *(Replaced 5 of 2007 s. 5)*
- (2) At a meeting of owners convened under this section, the owners may, by a resolution—
 - (a) passed by a majority of the votes of the owners voting either personally or by proxy; and
 - (b) supported by the owners of not less than 30% of the shares in aggregate,appoint a management committee. *(Replaced 5 of 2007 s. 5)*
- (3) The convenor shall, at least 14 days before the date of the meeting of owners, give notice of the meeting to each owner and—
 - (a) where the convenor is the person referred to in subsection (1)(a), to the person referred to in subsection (1)(b) (if any);
 - (b) where the convenor is the person referred to in subsection (1)(b), to the person referred to in subsection (1)(a) (if any); or

- (c) where the convenor is the owner appointed under subsection (1)(c), to the person referred to in subsection (1)(a) or (b) (if any). *(Added 5 of 2007 s. 5)*
- (4) The notice of meeting shall specify—
 - (a) the date, time and place of the meeting; and
 - (b) the resolutions that are to be proposed at the meeting and are related only to the appointment of a management committee and the incorporation of the owners. *(Added 5 of 2007 s. 5)*
- (5) The notice of meeting may be given—
 - (a) in the case of an owner—
 - (i) by delivering it personally to the owner;
 - (ii) by sending it by post to the owner at his last known address; or
 - (iii) by leaving it at the owner's flat or depositing it in the letter box for that flat; or
 - (b) in the case of a person referred to in subsection (1)(a) or (b)—
 - (i) by delivering it personally to the person; or
 - (ii) by sending it by post to the person at his last known address. *(Added 5 of 2007 s. 5)*
- (6) The convenor shall also, at least 14 days before the date of the meeting of owners, display the notice of meeting in a prominent place in the building. *(Added 5 of 2007 s. 5)*
- (7) The convenor shall preside at a meeting of owners convened under this section. *(Added 5 of 2007 s. 5)*
- (8) The quorum at a meeting of owners convened under this section shall be 10% of the owners. *(Added 5 of 2007 s. 5)*
- (9) At a meeting of owners convened under this section—

- (a) an owner shall, unless the deed of mutual covenant (if any) otherwise provides, have one vote in respect of each share he owns;
 - (b) an owner may cast a vote personally or by proxy;
 - (c) where 2 or more persons are the co-owners of a share, the vote in respect of the share may be cast—
 - (i) by a proxy jointly appointed by the co-owners;
 - (ii) by a person appointed by the co-owners from amongst themselves; or
 - (iii) if no appointment is made under subparagraph (i) or (ii), either by one of the co-owners personally or by a proxy appointed by one of the co-owners; and
 - (d) where 2 or more persons are the co-owners of a share and more than one of the co-owners seeks to cast a vote in respect of the share, only the vote that is cast, whether personally or by proxy, by the co-owner whose name, in order of priority, stands highest in relation to that share in the register kept at the Land Registry shall be treated as valid. (*Added 5 of 2007 s. 5*)
- (10) For the purposes of subsection (9)—
 - (a) the instrument appointing a proxy shall be in the form set out in Form 1 in Schedule 1A, and—
 - (i) shall be signed by the owner; or
 - (ii) if the owner is a body corporate, shall, notwithstanding anything to the contrary in its constitution, be impressed with the seal or chop of the body corporate and signed by a person authorized by the body corporate in that behalf;
 - (b) the instrument appointing a proxy shall be lodged with the convenor at least 48 hours before the time for the holding of the meeting;

- (c) the instrument appointing a proxy is valid only if it is made and lodged in accordance with paragraphs (a) and (b);
 - (d) a proxy appointed by an owner to attend and vote on behalf of the owner shall, for the purposes of the meeting, be treated as being the owner present at the meeting; and
 - (e) where an instrument appointing a proxy is lodged with the convenor, the convenor shall—
 - (i) acknowledge receipt of the instrument by leaving a receipt at the flat of the owner who made the instrument, or depositing the receipt in the letter box for that flat, before the time for the holding of the meeting; and
 - (ii) determine the validity of the instrument in accordance with paragraph (c). *(Added 5 of 2007 s. 5. Amended 20 of 2024 s. 5)*
 - (iii) *(Repealed 20 of 2024 s. 5)*
- (10A) For a meeting of owners convened under this section, the convenor must—
 - (a) set out on a list every flat (if any) in respect of which an instrument appointing a proxy is lodged with the convenor for the meeting; and
 - (b) display the list (if any) in a prominent place in the place of the meeting before the time for the holding of the meeting, and cause the list to remain so displayed until the conclusion of the meeting. *(Added 20 of 2024 s. 5)*
- (11)-(12) *(Repealed 20 of 2024 s. 5)*
- (13) Subject to subsection (14), where a meeting of owners convened under this section is adjourned, subsections (3), (4), (5), (6), (7), (8), (9), (10) and (10A) apply to the adjourned

meeting as they apply to the original meeting. *(Added 5 of 2007 s. 5. Amended 20 of 2024 s. 5)*

- (14) Where a meeting of owners convened under this section is adjourned, a valid instrument appointing a proxy made for the purposes of the original meeting shall remain valid for the purposes of the adjourned meeting unless—
- (a) contrary intention is shown on the instrument;
 - (b) the instrument is revoked; or
 - (c) the instrument is replaced by a new instrument appointing a proxy. *(Added 5 of 2007 s. 5)*
- (Amended 27 of 1993 s. 42)*

3A. Appointment of management committee after application to the Authority

- (1) The Authority may, upon application by the owners of not less than 20% of the shares in aggregate, order that a meeting of owners shall be convened, by such owner as the Authority may direct, to appoint a management committee. *(Amended 69 of 2000 s. 4; 5 of 2007 s. 42)*
- (2) Any person referred to in section 3(1)(a) or (b) shall be entitled to attend a meeting of owners convened under this section.
- (3) Subject to subsection (5), at a meeting of owners convened under this section, the owners may, by a resolution passed by a majority of the votes of the owners voting either personally or by proxy, appoint a management committee.
- (3A) The convenor shall, at least 14 days before the date of the meeting of owners, give notice of the meeting to each owner and the person referred to in section 3(1)(a) or (b) (if any). *(Added 5 of 2007 s. 6)*
- (3B) The notice of meeting shall specify—

- (a) the date, time and place of the meeting; and
 - (b) the resolutions that are to be proposed at the meeting and are related only to the appointment of a management committee and the incorporation of the owners. (*Added 5 of 2007 s. 6*)
- (3C) The notice of meeting may be given—
 - (a) in the case of an owner—
 - (i) by delivering it personally to the owner;
 - (ii) by sending it by post to the owner at his last known address; or
 - (iii) by leaving it at the owner's flat or depositing it in the letter box for that flat; or
 - (b) in the case of a person referred to in section 3(1)(a) or (b)—
 - (i) by delivering it personally to the person; or
 - (ii) by sending it by post to the person at his last known address. (*Added 5 of 2007 s. 6*)
- (3D) The convenor shall also, at least 14 days before the date of the meeting of owners, display the notice of meeting in a prominent place in the building. (*Added 5 of 2007 s. 6*)
- (3E) The convenor shall preside at a meeting of owners convened under this section. (*Added 5 of 2007 s. 6*)
- (3F) The quorum at a meeting of owners convened under this section shall be 10% of the owners. (*Added 5 of 2007 s. 6*)
- (3G) At a meeting of owners convened under this section—
 - (a) an owner shall, unless the deed of mutual covenant (if any) otherwise provides, have one vote in respect of each share he owns;
 - (b) an owner may cast a vote personally or by proxy;

- (c) where 2 or more persons are the co-owners of a share, the vote in respect of the share may be cast—
 - (i) by a proxy jointly appointed by the co-owners;
 - (ii) by a person appointed by the co-owners from amongst themselves; or
 - (iii) if no appointment is made under subparagraph (i) or (ii), either by one of the co-owners personally or by a proxy appointed by one of the co-owners; and
 - (d) where 2 or more persons are the co-owners of a share and more than one of the co-owners seeks to cast a vote in respect of the share, only the vote that is cast, whether personally or by proxy, by the co-owner whose name, in order of priority, stands highest in relation to that share in the register kept at the Land Registry shall be treated as valid. (*Added 5 of 2007 s. 6*)
- (3H) For the purposes of subsection (3G)—
 - (a) the instrument appointing a proxy shall be in the form set out in Form 1 in Schedule 1A, and—
 - (i) shall be signed by the owner; or
 - (ii) if the owner is a body corporate, shall, notwithstanding anything to the contrary in its constitution, be impressed with the seal or chop of the body corporate and signed by a person authorized by the body corporate in that behalf;
 - (b) the instrument appointing a proxy shall be lodged with the convenor at least 48 hours before the time for the holding of the meeting;
 - (c) the instrument appointing a proxy is valid only if it is made and lodged in accordance with paragraphs (a) and (b);

- (d) a proxy appointed by an owner to attend and vote on behalf of the owner shall, for the purposes of the meeting, be treated as being the owner present at the meeting; and
 - (e) where an instrument appointing a proxy is lodged with the convenor, the convenor shall—
 - (i) acknowledge receipt of the instrument by leaving a receipt at the flat of the owner who made the instrument, or depositing the receipt in the letter box for that flat, before the time for the holding of the meeting; and
 - (ii) determine the validity of the instrument in accordance with paragraph (c). *(Added 5 of 2007 s. 6. Amended 20 of 2024 s. 6)*
 - (iii) *(Repealed 20 of 2024 s. 6)*
- (3HA) For a meeting of owners convened under this section, the convenor must—
 - (a) set out on a list every flat (if any) in respect of which an instrument appointing a proxy is lodged with the convenor for the meeting; and
 - (b) display the list (if any) in a prominent place in the place of the meeting before the time for the holding of the meeting, and cause the list to remain so displayed until the conclusion of the meeting. *(Added 20 of 2024 s. 6)*
- (3I) *(Repealed 20 of 2024 s. 6)*
- (3J) *(Repealed 20 of 2024 s. 6)*
- (3K) Subject to subsection (3L), where a meeting of owners convened under this section is adjourned, subsections (3A), (3B), (3C), (3D), (3E), (3F), (3G), (3H) and (3HA) apply to the adjourned meeting as they apply to the original meeting. *(Added 5 of 2007 s. 6. Amended 20 of 2024 s. 6)*

- (3L) Where a meeting of owners convened under this section is adjourned, a valid instrument appointing a proxy made for the purposes of the original meeting shall remain valid for the purposes of the adjourned meeting unless—
- (a) contrary intention is shown on the instrument;
 - (b) the instrument is revoked; or
 - (c) the instrument is replaced by a new instrument appointing a proxy. (*Added 5 of 2007 s. 6*)
- (4) Any owner, or person referred to in section 3(1)(a) or (b), as the case may be, who wishes to oppose the appointment of a management committee may, by notice given to the Authority at least 7 days before the date of the meeting, object to the order convening the meeting of owners under this section.
- (5) If, under subsection (4), the Authority receives—
- (a) notices of objection from the owners of not less than 20% of the shares in aggregate; or (*Amended 12 of 1998 s. 2*)
 - (b) a notice of objection from a person referred to in section 3(1)(a) or (b) endorsed or otherwise supported by the owners of not less than 20% of the shares in aggregate, (*Amended 12 of 1998 s. 2; 69 of 2000 s. 4*)
- any order of the Authority under subsection (1) shall be of no effect and the Authority shall notify the convenor accordingly who shall, so far as practicable, bring the notification to the attention of each owner or other person to whom a notice has been given under subsection (3A). (*Amended 5 of 2007 s. 42*)
- (6) Where any order of the Authority is of no effect by virtue of subsection (5) the Authority may advise the applicant to apply to the tribunal under section 4(1)(a) or the Authority or an authorized officer may apply to the tribunal under section 4(1)(b).

(Added 27 of 1993 s. 6. Amended 5 of 2007 s. 6)

4. Appointment of management committee after application to tribunal

- (1) The tribunal may, upon application by— *(Amended 27 of 1993 s. 42)*
 - (a) the owners of not less than 10% of the shares in aggregate; or *(Amended 69 of 2000 s. 5; 5 of 2007 s. 43)*
 - (b) the Authority or an authorized officer, *(Replaced 27 of 1993 s. 7)*order that a meeting of owners shall be convened, by such owner as the tribunal may direct, to appoint a management committee. *(Amended 27 of 1993 s. 42)*
- (2) Upon the making of an order under subsection (1) the tribunal may order that the costs of the application shall be paid by the applicant or by any person opposing the application. *(Amended 27 of 1993 s. 42)*
- (3) If a corporation is established under Part III, the corporation shall refund to the applicant any costs paid by him in accordance with an order made under subsection (2). *(Amended 27 of 1993 s. 7)*
- (4) At a meeting of owners convened under this section, the owners may, by a resolution passed by a majority of the votes of the owners voting either personally or by proxy, appoint a management committee. *(Replaced 27 of 1993 s. 7. Amended 5 of 2007 s. 7)*
- (5) The convenor shall, at least 14 days before the date of the meeting of owners, give notice of the meeting to each owner and the person referred to in section 3(1)(a) or (b) (if any). *(Added 5 of 2007 s. 7)*
- (6) The notice of meeting shall specify—

- (a) the date, time and place of the meeting; and
 - (b) the resolutions that are to be proposed at the meeting and are related only to the appointment of a management committee and the incorporation of the owners. (*Added 5 of 2007 s. 7*)
- (7) The notice of meeting may be given—
 - (a) in the case of an owner—
 - (i) by delivering it personally to the owner;
 - (ii) by sending it by post to the owner at his last known address; or
 - (iii) by leaving it at the owner's flat or depositing it in the letter box for that flat; or
 - (b) in the case of a person referred to in section 3(1)(a) or (b)—
 - (i) by delivering it personally to the person; or
 - (ii) by sending it by post to the person at his last known address. (*Added 5 of 2007 s. 7*)
- (8) The convenor shall also, at least 14 days before the date of the meeting of owners, display the notice of meeting in a prominent place in the building. (*Added 5 of 2007 s. 7*)
- (9) The convenor shall preside at a meeting of owners convened under this section. (*Added 5 of 2007 s. 7*)
- (10) The quorum at a meeting of owners convened under this section shall be 10% of the owners. (*Added 5 of 2007 s. 7*)
- (11) At a meeting of owners convened under this section—
 - (a) an owner shall, unless the deed of mutual covenant (if any) otherwise provides, have one vote in respect of each share he owns;
 - (b) an owner may cast a vote personally or by proxy;

- (c) where 2 or more persons are the co-owners of a share, the vote in respect of the share may be cast—
 - (i) by a proxy jointly appointed by the co-owners;
 - (ii) by a person appointed by the co-owners from amongst themselves; or
 - (iii) if no appointment is made under subparagraph (i) or (ii), either by one of the co-owners personally or by a proxy appointed by one of the co-owners; and
 - (d) where 2 or more persons are the co-owners of a share and more than one of the co-owners seeks to cast a vote in respect of the share, only the vote that is cast, whether personally or by proxy, by the co-owner whose name, in order of priority, stands highest in relation to that share in the register kept at the Land Registry shall be treated as valid. (*Added 5 of 2007 s. 7*)
- (12) For the purposes of subsection (11)—
 - (a) the instrument appointing a proxy shall be in the form set out in Form 1 in Schedule 1A, and—
 - (i) shall be signed by the owner; or
 - (ii) if the owner is a body corporate, shall, notwithstanding anything to the contrary in its constitution, be impressed with the seal or chop of the body corporate and signed by a person authorized by the body corporate in that behalf;
 - (b) the instrument appointing a proxy shall be lodged with the convenor at least 48 hours before the time for the holding of the meeting;
 - (c) the instrument appointing a proxy is valid only if it is made and lodged in accordance with paragraphs (a) and (b);

- (d) a proxy appointed by an owner to attend and vote on behalf of the owner shall, for the purposes of the meeting, be treated as being the owner present at the meeting; and
 - (e) where an instrument appointing a proxy is lodged with the convenor, the convenor shall—
 - (i) acknowledge receipt of the instrument by leaving a receipt at the flat of the owner who made the instrument, or depositing the receipt in the letter box for that flat, before the time for the holding of the meeting; and
 - (ii) determine the validity of the instrument in accordance with paragraph (c). *(Added 5 of 2007 s. 7. Amended 20 of 2024 s. 7)*
 - (iii) *(Repealed 20 of 2024 s. 7)*
- (12A) For a meeting of owners convened under this section, the convenor must—
 - (a) set out on a list every flat (if any) in respect of which an instrument appointing a proxy is lodged with the convenor for the meeting; and
 - (b) display the list (if any) in a prominent place in the place of the meeting before the time for the holding of the meeting, and cause the list to remain so displayed until the conclusion of the meeting. *(Added 20 of 2024 s. 7)*
- (13)-(14) *(Repealed 20 of 2024 s. 7)*
- (15) Subject to subsection (16), where a meeting of owners convened under this section is adjourned, subsections (5), (6), (7), (8), (9), (10), (11), (12) and (12A) apply to the adjourned meeting as they apply to the original meeting. *(Added 5 of 2007 s. 7. Amended 20 of 2024 s. 7)*

- (16) Where a meeting of owners convened under this section is adjourned, a valid instrument appointing a proxy made for the purposes of the original meeting shall remain valid for the purposes of the adjourned meeting unless—
- (a) contrary intention is shown on the instrument;
 - (b) the instrument is revoked; or
 - (c) the instrument is replaced by a new instrument appointing a proxy. (*Added 5 of 2007 s. 7*)

4A. Keeping of proxy instruments for meetings of owners convened under section 3, 3A or 4

- (1) This section applies if any instruments for the appointment of proxies have been lodged, in respect of a meeting of owners convened under section 3, 3A or 4, with the convenor of the meeting (regardless of whether the instruments are valid under this Ordinance).
- (2) Subject to subsection (4), the convenor must, during the period of 12 months after the conclusion of the meeting, keep all the instruments that are so lodged (*lodged proxy instrument*).
- (3) If a management committee has been appointed at the meeting—
 - (a) the convenor must, immediately after the conclusion of the meeting, deliver all the lodged proxy instruments to the management committee; and
 - (b) the management committee must, during the period of 12 months after the conclusion of the meeting, keep all the lodged proxy instruments that are so delivered.
- (4) Subsection (2) ceases to apply in relation to a lodged proxy instrument if the convenor complies with subsection (3)(a) in relation to the instrument.

- (5) If the meeting of owners concerned is adjourned, subsections (1), (2), (3) and (4) apply in relation to the adjourned meeting as they apply in relation to the original meeting.

(Added 20 of 2024 s. 8)

4B. Offences relating to section 4A

- (1) If the convenor of the meeting of owners concerned contravenes section 4A(2), the convenor commits an offence and is liable on conviction to a fine at level 4.
- (2) If a management committee contravenes section 4A(3)(b), every person who is accountable for the contravention commits an offence and is liable on conviction to a fine at level 4.
- (3) It is a defence for a person charged with an offence under subsection (1) or (2) to establish that the person exercised all due diligence that the person ought to have exercised in the circumstances to prevent the commission of the offence.
- (4) A person is taken to have established a matter that needs to be established for a defence under subsection (3) if—
- (a) there is sufficient evidence to raise an issue with respect to that matter; and
 - (b) the contrary is not proved by the prosecution beyond reasonable doubt.
- (5) Subsections (1) and (2) do not apply in relation to the meeting of owners concerned if a notice of the meeting is given under this Ordinance before the date on which the Building Management (Amendment) Ordinance 2024 (20 of 2024) comes into operation*.

(Added 20 of 2024 s. 8)

Editorial Note:

* Operation date: 13 July 2025.

5. *(Repealed 5 of 2007 s. 8)*

5A. *(Repealed 5 of 2007 s. 9)*

5B. Enumeration of owners

- (1) Schedule 11 has effect with respect to the enumeration of any percentage or number of owners that is referred to in the provisions of this Ordinance specified in that Schedule.
- (2) Moreover, to avoid doubt, the percentage or number is to be determined on the basis of the number of persons who are owners, but not on the basis of the extent to which an owner owns the shares into which the building is divided.

(Replaced 20 of 2024 s. 9)

6. Composition and procedure of management committee

Schedule 2 shall have effect with respect to the composition and procedure of a management committee.

(Amended 27 of 1993 s. 42; 5 of 2007 s. 44)

Part III

Incorporation

7. Application by management committee for registration of owners as a corporation

- (1) A management committee appointed under section 3, 3A, 4 or 40C shall within 28 days of such appointment apply to the Land Registrar for the registration of the owners as a corporation under this Ordinance. (*Amended 8 of 1993 s. 3*)
- (2) An application under subsection (1) shall be in such form as the Land Registrar may specify and shall include the following particulars— (*Amended 8 of 1993 s. 3*)
 - (a) the name of the proposed corporation, which shall be in the form “The Incorporated Owners of ”;
(Description of building)
 - (b) the name (if any) and address of the building;
 - (c) the address of the proposed registered office of the corporation; and
 - (d) the name and address of the chairman and secretary of the management committee.
- (3) An application under subsection (1) shall be accompanied by the following documents—
 - (a) a copy of the deed of mutual covenant (if any) in respect of the building;
 - (aa) where an application has been made to the Authority under section 3A(1), a copy of the order of the Authority; (*Added 27 of 1993 s. 9*)

- (b) where an application has been made to the tribunal under section 4(1) or 40C, a copy of the order of the tribunal;
- (c) a copy of the resolution or other document evidencing the appointment of the management committee under section 3, 3A, 4 or 40C certified as correct by the chairman or secretary of the management committee or by the chairman of the meeting at which the resolution was passed; (*Amended 5 of 2007 s. 10*)
- (d) a declaration by the chairman or secretary of the management committee, in such form as the Land Registrar may specify, that the provisions of section 3, 3A, 4 or 40C and relevant provisions in section 5B have been complied with; and (*Amended 8 of 1993 s. 3; 5 of 2007 s. 10*)
- (e) a statement by each member of the management committee appointed under paragraph 2(1)(b) of Schedule 2, in such form as the Land Registrar may specify, that he does not fall within the description of paragraph 4(1)(a) or (b) of that Schedule. (*Added 5 of 2007 s. 10. Amended 18 of 2014 s. 55*)

(*Amended 27 of 1993 ss. 9 & 42; 69 of 2000 s. 8*)

8. Incorporation

- (1) The Land Registrar shall, if satisfied that the provisions of section 3, 3A, 4 or 40C and section 7(2) and (3) have been complied with, issue a certificate of registration in such form as may be specified by the Authority from time to time. (*Amended 8 of 1993 s. 3; 27 of 1993 ss. 10 & 42; 69 of 2000 s. 9*)
- (1A) The Land Registrar shall not issue a certificate of registration to more than one corporation for a building in respect of

which a deed of mutual covenant is in force. (*Added 5 of 2007 s. 11*)

- (2) With effect from the date of issue of the certificate of registration under subsection (1)—
 - (a) the owners for the time being shall be a body corporate with perpetual succession and shall in the name of the corporation specified in the certificate of registration be capable of suing and being sued and, subject to this Ordinance, of doing and suffering all such other acts and things as bodies corporate may lawfully do and suffer; (*Amended 52 of 1975 s. 2*)
 - (aa) the corporation shall have, and be deemed always to have had, the power to hold an undivided share in the building, together with the right to the exclusive possession of any part of the building other than the common parts thereof; and (*Added 52 of 1975 s. 2*)
 - (b) the management committee appointed under section 3, 3A, 4 or 40C shall be deemed to be the first management committee of the corporation. (*Amended 27 of 1993 s. 10; 69 of 2000 s. 9*)
- (3) A corporation shall have a common seal, the affixing of which shall be authenticated by the signature of the chairman and secretary of the management committee.
- (4) A corporation shall have a registered office in Hong Kong. (*Amended 27 of 1993 s. 10*)
- (5) Schedule 3 shall have effect with respect to the meetings and procedure of a corporation. (*Amended 5 of 2007 s. 46*)
- (6) The Authority may specify the form of any notice required for the purposes of paragraph 4A of Schedule 3. (*Added 20 of 2024 s. 10*)

9. Undesirable names

No corporation shall be registered by a name which, in the opinion of the Land Registrar, is undesirable.

(Amended 8 of 1993 s. 3)

[cf. 1948 c. 38 s. 17 U.K.]

10. Change of name

- (1) At a general meeting of a corporation convened and conducted in accordance with Schedule 3 for the purpose, the corporation may— *(Amended 5 of 2007 s. 47)*
 - (a) in the case of a direction by the Land Registrar under subsection (2), by a resolution passed by a majority; or
 - (b) in any other case, by a resolution passed by not less than 75%, *(Amended 5 of 2007 s. 47)*of the votes of the owners, change the name of the corporation. *(Replaced 27 of 1993 s. 11)*
- (2) If at any time a corporation is registered by a name which, in the opinion of the Land Registrar, is so similar to the name by which another corporation is registered as to be likely to mislead, the Land Registrar may direct that the first mentioned corporation shall change its name within a period of six weeks from the date of the direction or such longer period as the Land Registrar may allow. *(Amended 8 of 1993 s. 3)*
- (3) A corporation which makes default in complying with a direction under subsection (2) shall be guilty of an offence and shall be liable on conviction to a fine of \$50 for each day during which the default continues. *(Amended 27 of 1993 s. 42)*
- (4) When a corporation changes its name under this section, the Land Registrar shall enter the new name on the register maintained by him under section 12 in place of the former

name, and shall issue an amended certificate of registration.
(*Amended 8 of 1993 s. 3*)

- (5) A change of name of a corporation under this section shall not affect any rights or obligations of the corporation or render defective any legal proceedings by or against the corporation, and any legal proceedings which might have been continued or commenced against it by its former name may be continued or commenced against it by its new name.

[*cf. 1948 c. 38 s. 18 U.K.*]

11. Display of copy certificate of registration, etc.

- (1) The following documents, namely—

- (a) a copy of the certificate of registration issued under section 8(1), or a copy of the amended certificate of registration issued under section 10(4), as the case may be;
- (b) in the case where the building is the registered office of the corporation, a notice of registered office in the form described in subsection (1B);
- (c) in the case where the building is not the registered office of the corporation, a copy of that notice endorsed with the address of the registered office,

shall be displayed by the management committee in a prominent place in the building. (*Replaced 27 of 1993 s. 12*)

- (1A) Where the building is not the registered office of the corporation, a notice of registered office in the form described in subsection (1B) shall be displayed or caused to be displayed by the management committee in a prominent place at the registered office of the corporation. (*Added 27 of 1993 s. 12*)

- (1B) The notice of registered office, or a copy thereof, shall be in the form “Registered Office of the Incorporated Owners of”. (*Added 27 of 1993 s. 12*)
(description of building)
- (2) A corporation which exhibits or uses any name of or for the corporation in Chinese characters, whether or not such name is a transliteration or translation of its name in its certificate of registration, or amended certificate of registration referred to in subsection (1)(a), as the case may be, shall append to such name so used in Chinese characters the Chinese characters “業主立案法團”. (*Amended 27 of 1993 s. 12*)
- (3) If subsection (1), (1A), (1B) or (2) is contravened, every person who is accountable for the contravention commits an offence and is liable on conviction to a fine at level 1. (*Replaced 20 of 2024 s. 11*)
- (4) It is a defence for a person charged with an offence under subsection (3) to establish that the person exercised all due diligence that the person ought to have exercised in the circumstances to prevent the commission of the offence. (*Added 20 of 2024 s. 11*)
- (5) A person is taken to have established a matter that needs to be established for a defence under subsection (4) if—
- (a) there is sufficient evidence to raise an issue with respect to that matter; and
 - (b) the contrary is not proved by the prosecution beyond reasonable doubt. (*Added 20 of 2024 s. 11*)

12. Land Registrar to maintain register of corporations

- (1) The Land Registrar shall maintain a register of corporations, and permit any person to inspect the register at any reasonable time to ascertain, in connection with the management of

buildings, the particulars of a corporation entered in the register under subsection (2). (*Amended 5 of 2007 s. 12*)

- (2) The Land Registrar shall enter in the register the following particulars of each corporation—
 - (a) the name of the corporation;
 - (b) the name (if any) and address of the building;
 - (c) the address of the registered office of the corporation;
 - (d) the name and address of—
 - (i) the chairman of the management committee;
 - (ii) the vice-chairman (if any) of the management committee;
 - (iii) the secretary of the management committee;
 - (iv) the treasurer of the management committee; and
 - (v) any other person who is a member of the management committee but does not fall within the description of subparagraph (i), (ii), (iii) or (iv); (*Replaced 5 of 2007 s. 12*)
 - (da) the name and address of the insurance company with which the corporation has effected a policy of insurance under section 28(1) and the period covered by the policy of insurance; (*Added 5 of 2007 s. 12*)
 - (e) the name and address of any administrator;
 - (f) the particulars of any winding-up petition or winding-up order, as the case may be, required to be entered by him in the register under section 34A(2)(a). (*Added 27 of 1993 s. 13*)
- (3) The management committee shall, within 28 days of the date of any change in the particulars registered under subsection (2), other than the particulars referred to in paragraph (e) or (f) of that subsection, give notice thereof to the Land Registrar in

such form as the Land Registrar may specify. *(Amended 27 of 1993 ss. 13 & 42; 20 of 2024 s. 12)*

- (4) If a management committee contravenes subsection (3), every person who is accountable for the contravention commits an offence and is liable on conviction to a fine of \$100 for each day during which the contravention continues. *(Replaced 20 of 2024 s. 12)*
- (4A) It is a defence for a person charged with an offence under subsection (4) to establish that the person exercised all due diligence that the person ought to have exercised in the circumstances to prevent the commission of the offence. *(Added 20 of 2024 s. 12)*
- (4B) A person is taken to have established a matter that needs to be established for a defence under subsection (4A) if—
 - (a) there is sufficient evidence to raise an issue with respect to that matter; and
 - (b) the contrary is not proved by the prosecution beyond reasonable doubt. *(Added 20 of 2024 s. 12)*
- (5) Upon payment of such fee as may be prescribed, any person may—
 - (a) inspect the register and any document required to be submitted to the Land Registrar under this Ordinance; and
 - (b) require a copy or extract of any such register or document to be made and certified under the hand of the Land Registrar.

(Amended 8 of 1993 s. 3)

13. Conclusiveness of certificate of registration

A certificate of registration issued under section 8(1), or an amended certificate of registration issued under section 10(4), as

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the case may be, in respect of a corporation shall be conclusive evidence that such corporation is incorporated under this Ordinance.

(Amended 8 of 1993 s. 3; 27 of 1993 s. 14)

Part IV

Provisions Relating to Corporations

Division 1—General

(Added 20 of 2024 s. 13)

14. Powers of corporation generally

- (1) Subject to this Ordinance, at a meeting of a corporation any resolution may be passed with respect to the control, management and administration of the common parts or the renovation, improvement or decoration of those parts and any such resolution shall be binding on the management committee and all the owners. *(Amended 12 of 1998 s. 4)*
- (2) Without prejudice to the generality of subsection (1), a corporation may by resolution at a meeting remove from office and replace any member (other than a member who is the tenants' representative) of the management committee. *(Amended 27 of 1993 s. 15)*
- (3) A resolution for the removal of so many members of the management committee as would reduce the number of members below the number required under paragraph 1 of Schedule 2 shall not have effect unless there is appointed, at the meeting at which such resolution is passed, a sufficient number of further members as will comply with such requirements. *(Amended 5 of 2007 s. 48)*
- (4) Paragraph 6 of Schedule 2 shall, with necessary modifications, apply for the purposes of appointing an owner to replace a member of the management committee by the corporation under subsection (2), as it applies for the purposes of

appointing an owner to fill a vacancy in a management committee by the corporation. (*Added 5 of 2007 s. 13*)

15. Tenants' representative

- (1) The members of an approved association may, by a resolution passed by a majority of the votes of the members voting either personally or by proxy, appoint or remove from office an occupier as the tenants' representative. (*Amended 5 of 2007 s. 49*)
- (2) In this section ***approved association*** (認可組織) means an association—
 - (a) formed to represent the interests of the occupiers; and
 - (b) which has been approved for the purposes of this section by the Authority or an authorized officer.

(*Replaced 27 of 1993 s. 16*)

16. Rights etc. of owners to be exercised etc. by corporation

When the owners of a building have been incorporated under section 8, the rights, powers, privileges and duties of the owners in relation to the common parts of the building shall be exercised and performed by, and the liabilities of the owners in relation to the common parts of the building shall, subject to the provisions of this Ordinance, be enforceable against, the corporation to the exclusion of the owners, and accordingly—

- (a) any notice, order or other document which relates to any of the common parts of the building may be served upon the corporation at its registered office; and
- (b) any proceedings in the tribunal in respect of any of the common parts of the building may be brought and pursued by or against the corporation. (*Amended 27 of 1993 s. 42*)

17. Enforcement of judgments etc. against a corporation

- (1) If a judgment is given or an order is made against a corporation, execution to enforce the judgment or order may issue—
 - (a) against any property of the corporation; or
 - (b) with leave of the tribunal, against any owner.
- (2) An application for leave under subsection (1)(b) shall be made by summons served personally upon the owner against whom execution is sought.

(Amended 27 of 1993 s. 42)

18. Duties and powers of corporation

- (1) The corporation shall—
 - (a) maintain the common parts and the property of the corporation in a state of good and serviceable repair and clean condition;
 - (b) carry out such work as may be ordered or required in respect of the common parts by any public officer or public body in exercise of the powers conferred by any Ordinance;
 - (c) do all things reasonably necessary for the enforcement of the obligations contained in the deed of mutual covenant (if any) for the control, management and administration of the building.
- (2) A corporation may, in its discretion—
 - (a) engage and remunerate staff for any purpose relating to the powers or duties of the corporation under this Ordinance or the deed of mutual covenant (if any);

(Amended 27 of 1993 s. 17)

- (aa) subject to such terms and conditions as to attendance at meetings of a management committee and its sub-committees as the management committee may determine, pay the chairman, vice-chairman (if any), secretary and treasurer of the management committee appointed under section 14(2) or paragraph 2(1), 5(2), 6 or 6A of Schedule 2 such allowances as may be approved by the corporation by a corporation resolution, in accordance with, but in aggregate not exceeding, the maximum allowances specified in Schedule 4; *(Added 27 of 1993 s. 17. Amended 5 of 2007 s. 50; 20 of 2024 s. 14)*
- (b) retain and remunerate accountants for the purposes of auditing the corporation's books of accounts and preparing the annual income and expenditure accounts and balance sheets;
- (c) retain and remunerate a manager or other professional trade or business firm or person to carry out on behalf of the corporation any of the duties or powers of the corporation under this Ordinance or the deed of mutual covenant (if any); *(Amended 27 of 1993 s. 17)*
- (d) *(Repealed 69 of 2000 s. 10)*
- (e) purchase, hire or otherwise acquire movable property for use by the owners in connexion with their enjoyment of the common parts or to satisfy any requirement of a public officer or public body for the purpose of any Ordinance;
- (f) establish and maintain lawns, gardens and playgrounds on the common parts;
- (fa) carry out any renovation, improvement or decoration work, as the case may be, to the common parts; *(Added 12 of 1998 s. 5)*

- (g) act on behalf of the owners in respect of any other matter in which the owners have a common interest.
(Amended 27 of 1993 s. 17)
- (2A) Without prejudice to the generality of subsections (1) and (2), the corporation in the performance of its duties and the exercise of its powers under this section shall have regard to and be guided by Codes of Practice issued from time to time under section 44(1). *(Added 69 of 2000 s. 10)*
- (3) For the avoidance of doubt, it is declared that a member of a management committee shall not be entitled to receive an allowance under subsection (2)(aa) in respect of more than one office held by him at the same time. *(Added 27 of 1993 s. 17)*
- (4) No provision in a deed of mutual covenant or other agreement shall operate to prevent a member of a management committee who is entitled to receive an allowance under subsection (2)(aa) from receiving that allowance and any such provision, including a provision purporting to substitute some lesser allowance (howsoever named) for that allowance, shall be void and of no effect. *(Added 27 of 1993 s. 17)*
- (Amended 5 of 2007 s. 14)*

19. Corporation may sell or register charges against flat in certain circumstances

- (1) If a deed of mutual covenant provides that if an owner fails to pay any sum which is payable under the deed of mutual covenant, a person may sell that owner's interest in the land or register a charge against such interest in the Land Registry, then, notwithstanding the provisions of the deed of mutual covenant, the corporation may, to the exclusion of such person, exercise such power of sale or register such charge in the same manner and subject to the same conditions as if it

were the person referred to in the deed of mutual covenant.
(*Amended 8 of 1993 s. 2; 27 of 1993 s. 18*)

- (2) The reference in subsection (1) to “fails to pay any sum which is payable under the deed of mutual covenant” shall be construed to extend to the failure by an owner to pay the costs incurred by the management committee in connection with the exercise by it of the powers conferred by section 40(1)(a)(ii) or (b). (*Added 27 of 1993 s. 18*)

Division 2—Funds

(*Added 20 of 2024 s. 15*)

20. Establishment of funds

- (1) A corporation shall establish and maintain a general fund—
- (a) to defray the cost of the exercise of its powers and the performance of its duties under the deed of mutual covenant (if any) and this Ordinance; and
 - (b) to pay Government rent, premiums, taxes or other outgoings (including any outgoings in relation to any maintenance or repair work) which are payable in respect of the building as a whole. (*Amended 27 of 1993 s. 19; 29 of 1998 s. 105*)
- (2) A corporation may establish and maintain a contingency fund—
- (a) to provide for any expenditure of an unexpected or urgent nature; and
 - (b) to meet any payments of the kind specified in subsection (1) if the fund established thereby is insufficient to meet them.
- (3) A corporation shall open and maintain an interest-bearing account and shall use that account exclusively in respect of

the management of the building. *(Added 27 of 1993 s. 19. Amended 5 of 2007 s. 15)*

- (4) Subject to subsections (5) and (6), a corporation shall without delay pay all money received by the corporation in respect of the management of the building into the account opened and maintained under subsection (3). *(Added 27 of 1993 s. 19. Amended 5 of 2007 s. 15)*
- (5) Subject to subsection (6), the treasurer of a management committee may, out of money received by the corporation in respect of the management of the building, retain or pay into a current account a reasonable amount to cover expenditure of a minor nature, but that amount shall not exceed such figure as is determined from time to time by a management committee resolution. *(Added 27 of 1993 s. 19. Amended 20 of 2024 s. 16)*
- (6) The retention of a reasonable amount of money under subsection (5) or the payment of that amount into a current account in accordance with that subsection and any other arrangement for dealing with money received by a corporation shall be subject to such conditions as may be approved by a management committee resolution. *(Added 27 of 1993 s. 19. Amended 20 of 2024 s. 16)*
- (7) Any reference in this section to an account is a reference to an account opened—
 - (a) with a bank within the meaning of section 2 of the Banking Ordinance (Cap. 155); and
 - (b) in the name of the corporation. *(Replaced 49 of 1995 s. 53)*

20A. *(Repealed 20 of 2024 s. 17)*

21. Contributions to funds

- (1) Subject to subsection (4), a management committee shall determine the amount to be contributed by the owners to the funds established and maintained under section 20 during such period—
 - (a) in the case of the first such period after the date of registration of the corporation, not exceeding 15 months; and
 - (b) in any other case, not exceeding 12 months, as the management committee may determine. *(Replaced 27 of 1993 s. 21)*
- (1A) Subject to subsection (3), any amount (***subsequent amount*** (其後的款額)) determined by a management committee under subsection (1) after the first such amount (so determined under that subsection) shall not exceed a sum equivalent to 150% of the preceding amount (so determined under that subsection) unless that subsequent amount is approved by the corporation by a corporation resolution. *(Added 27 of 1993 s. 21. Amended 20 of 2024 s. 18)*
- (2) Subject to section 14(1) and to subsection (3), a management committee shall not increase the amount determined in accordance with subsection (1). *(Amended 27 of 1993 s. 42)*
- (3) A management committee may increase the amount required to be contributed by the owners to the extent to which the funds established and maintained under section 20 are insufficient to meet any payment due by the corporation in respect of the cost of complying with—
 - (a) an order of the tribunal; or *(Amended 27 of 1993 s. 42)*
 - (b) any notice, order or other document served upon the corporation in relation to the common parts by a public officer or public body under any Ordinance.

- (4) Schedule 5 shall have effect with respect to the amount to be determined under subsection (1), the preparation of budgets by the management committee for such determinations and the supply of copies of any documents in respect of those budgets. *(Added 27 of 1993 s. 21. Amended 5 of 2007 s. 51)*
- (5) In the event of any inconsistency between this section (which shall be construed to include Schedule 5) and the terms of a deed of mutual covenant or any other agreement, this section shall prevail. *(Added 27 of 1993 s. 21. Amended 5 of 2007 s. 51)*

22. Recovery of contributions from owners

- (1) The amount to be contributed by an owner towards the amount determined under section 21 shall be—
 - (a) fixed by the management committee in accordance with the deed of mutual covenant (if any);
 - (b) payable at such times and in such manner as the management committee may determine. *(Amended 27 of 1993 s. 22)*
- (2) If there is no deed of mutual covenant, or if the deed of mutual covenant does not provide for the fixing of contributions, the amount to be contributed by an owner towards the amount determined under section 21 shall be fixed by the management committee in accordance with the respective shares of the owners.
- (3) The amount payable by an owner under this section shall be a debt due from him to the corporation at the time when it is payable.
- (4) A certificate in writing signed by the chairman of the management committee stating the amount to be contributed under this section by an owner and when it is payable shall

be admissible in evidence in any proceedings as prima facie evidence of the facts stated therein without further proof.

23. Liability of occupier to pay contributions to funds

- (1) If any amount payable under section 22 by an owner who is not occupying a flat in the building concerned remains unpaid for a period of one month after it has become due to the corporation, the corporation may, without prejudice to any right of action against the owner, by notice in writing addressed to the occupier of the flat and served upon him either personally or by registered post, demand such amount from the occupier, who shall, subject to subsection (2), thereupon be liable to pay the same to the corporation.
- (2) Notwithstanding subsection (1), the liability of the occupier of a flat to pay an amount demanded from him under subsection (1) shall extend only to such amount of rent or other charge (exclusive of rates) as is due at the time of service on him of the demand, or falls due subsequently from him, in respect of his occupation of the flat.
- (3) In any proceedings by a corporation to recover an amount payable under subsection (1), it shall be presumed, until the contrary is proved, that the amount claimed does not exceed the amount of rent or other charge (exclusive of rates) due from the occupier at the time of commencement of such proceedings.
- (4) If an occupier of a flat has paid an amount in accordance with this section—
 - (a) that amount may, subject to the terms on which he occupies the flat, be deducted by him from the rent or other charge due in respect of his occupation of the flat; and

- (b) any person, not being the owner, to whom such rent or other charge has been paid subject to such deduction, may in like manner as the occupier deduct such amount from the rent or other charge due from him in respect of the flat.
- (5) Any deduction by an occupier or other person under subsection (4) shall operate as a discharge, to the extent of the amount so deducted, of his liability for the rent or other charge.

24. Distress for contributions

- (1) Subject to the provisions of this section, Part III of the Landlord and Tenant (Consolidation) Ordinance (Cap. 7) shall apply to an amount payable under section 22 or 23 as if the amount were rent payable to the corporation as landlord of the owner's flat.
- (2) A corporation may name as the defendant in any distress under this section “the person in occupation of” (佔用人) a flat, without specifying in the application or in the warrant the name of any person in occupation of the flat.

25. Registered mortgagee may pay contribution and recover same from the owner

If an owner fails to pay any amount payable under section 22 within one month of the same becoming due and a registered mortgagee of the flat in respect of which the owner is in default has paid such amount on the owner's behalf, such payment shall be recoverable by the registered mortgagee from the owner as if the amount of such payment formed part of the principal sum due under the registered mortgage of the flat.

26. Management committee to certify matters relating to payment of contributions

A management committee shall, on the application of an owner, a registered mortgagee, an occupier, such other person as is referred to in section 23(4)(b) or a person authorized in writing in that behalf by such owner, registered mortgagee, occupier or other person, certify— (*Amended 27 of 1993 s. 42*)

- (a) the amount payable in accordance with section 22 by the owner;
- (b) the extent to which such sum has been paid; and
- (c) the name of the person by whom and the person on whose behalf such payment was made.

Division 3—Legal Proceedings

(Added 20 of 2024 s. 19)

26A. Management committee to display information about legal proceedings

A management committee shall notify the owners of any legal proceedings to which the corporation is a party—

- (a) in the case of proceedings against the corporation, by displaying a notice containing the particulars of the proceedings in a prominent place in the building within 7 days of receiving any court documents commencing the proceedings, and causing the notice to remain so displayed for at least 7 consecutive days;
- (b) in the case of proceedings by the corporation, by displaying a notice containing the particulars of the proceedings in a prominent place in the building within 7 days of issuing any court documents commencing the proceedings, and causing the notice to remain so displayed for at least 7 consecutive days.

(Added 5 of 2007 s. 17)

Division 4—Accounts and Insurances*(Added 20 of 2024 s. 20)***27. Accounts of corporation: duties of management committee**

- (1) A management committee must—
 - (a) maintain proper books or records of account, and other financial records, of the corporation; and
 - (b) prepare financial statements of the corporation that comply with subsection (2)—
 - (i) not later than 15 months after the date of the registration of the corporation; and
 - (ii) every 12 months after the preparation of financial statements under subparagraph (i).
- (2) For the purposes of subsection (1)(b), the financial statements—
 - (a) must include—
 - (i) an income and expenditure account that gives a true and fair view of the financial transactions of the corporation for the period to which it relates; and
 - (ii) a balance sheet that gives a true and fair view of the financial position of the corporation as at the date to which the income and expenditure account is made up;
 - (b) must be signed by—
 - (i) the chairman of the management committee; and
 - (ii) the secretary or treasurer of the management committee; and

- (c) if either the total income or total expenditure of the corporation contained in the income and expenditure account, or both of them, exceed or are likely to exceed \$500,000—must be properly audited.
 - (3) For the purposes of subsection (2)(c), any financial statements are properly audited if—
 - (a) the financial statements are audited by an accountant retained by the corporation as approved by a corporation resolution; and
 - (b) the accountant reports for the audit under paragraph (a) as to whether the financial statements are, in the accountant's opinion, properly prepared so as to give a true and fair view of—
 - (i) the financial transactions of the corporation for the period to which the income and expenditure account relates; and
 - (ii) the financial position of the corporation as at the date to which the income and expenditure account is made up,subject to any qualification that the accountant thinks fit.
 - (4) The Authority may by notice published in the Gazette amend the monetary amount specified in subsection (2)(c).
 - (5) A management committee must permit—
 - (a) the Authority;
 - (b) an authorized officer;
 - (c) an owner;
 - (d) the tenants' representative;
 - (e) a registered mortgagee; or
 - (f) any person duly authorized in writing in that behalf by an owner or registered mortgagee,

to inspect, at any reasonable time, any books or records of account or any other financial records maintained by the management committee under subsection (1)(a) (*accounting documents*).

- (6) Each bill, invoice, voucher, receipt or any other document (each a *supporting document*) referred to in the accounting documents must be kept by the management committee during the period of 6 years after the date on which the management committee obtains the supporting document.
- (7) If any financial statements are prepared under subsection (1)(b), the management committee must—
 - (a) if the financial statements are required by subsection (2)(c) to be audited—
 - (i) produce a copy of the financial statements and a copy of the accountant's report in respect of the audit to the corporation at the first annual general meeting of the corporation that is convened under Schedule 3 since the corporation obtains the report from the accountant; and
 - (ii) display a copy of the financial statements and a copy of the accountant's report in a prominent place in the building as soon as reasonably practicable after the corporation so obtains the report, and cause them to remain so displayed for at least 7 consecutive days; or
 - (b) in any other case—
 - (i) produce a copy of the financial statements to the corporation at the first annual general meeting of the corporation that is convened under Schedule 3 since the financial statements are signed in accordance with subsection (2)(b); and

- (ii) display a copy of the financial statements in a prominent place in the building as soon as reasonably practicable after the statements are so signed, and cause it to remain so displayed for at least 7 consecutive days.

(Replaced 20 of 2024 s. 21)

27A. Accounts of corporation: offences

- (1) If a management committee contravenes section 27(1) or (7)(a)(i) or (b)(i), every person who is accountable for the contravention commits an offence and is liable on conviction to a fine at level 5.
- (2) If a management committee contravenes section 27(6), every person who is accountable for the contravention commits an offence and is liable on conviction to a fine at level 4.
- (3) It is a defence for a person charged with an offence under subsection (1) or (2) to establish that the person exercised all due diligence that the person ought to have exercised in the circumstances to prevent the commission of the offence.
- (4) A person is taken to have established a matter that needs to be established for a defence under subsection (3) if—
 - (a) there is sufficient evidence to raise an issue with respect to that matter; and
 - (b) the contrary is not proved by the prosecution beyond reasonable doubt.
- (5) Subsection (2) does not apply in relation to a supporting document mentioned in section 27(6) if the date on which the management committee obtains the document falls before the date on which the Building Management (Amendment) Ordinance 2024 (20 of 2024) comes into operation*.

(Added 20 of 2024 s. 22)

Editorial Note:

* Operation date: 13 July 2025.

27B. Accounts of corporation: other supplementary provisions

- (1) Schedule 6 has effect with respect to—
 - (a) the maintenance of proper books or records of account, and other financial records, under section 27 (including the keeping of them);
 - (b) the inspection of any documents referred to in the books or records maintained under that section;
 - (c) the preparation of summaries of income and expenditure of the corporation; and
 - (d) the supply of copies of those summaries, and any financial statements and accountant's reports prepared under that section.
- (2) In the event of any inconsistency between—
 - (a) section 27 or a provision in Schedule 6 (each an *accounts provision*); and
 - (b) the terms of a deed of mutual covenant or any other agreement,the accounts provision prevails.

(Added 20 of 2024 s. 22)

28. Matters regarding insurance

(Amended 5 of 2007 s. 37)

- (1) A corporation shall procure and keep in force in relation to the common parts of the building and the property of the corporation, such policy of insurance with an insurance company in respect of third party risks as complies with any requirement prescribed for the purposes of this section.

- (2) If a corporation contravenes subsection (1), every person who is accountable for the contravention commits an offence and is liable on conviction to a fine at level 5. (*Replaced 20 of 2024 s. 23*)
- (2A) It is a defence for a person charged with an offence under subsection (2) to establish that the person exercised all due diligence that the person ought to have exercised in the circumstances to prevent the commission of the offence. (*Added 20 of 2024 s. 23*)
- (2B) A person is taken to have established a matter that needs to be established for a defence under subsection (2A) if—
 - (a) there is sufficient evidence to raise an issue with respect to that matter; and
 - (b) the contrary is not proved by the prosecution beyond reasonable doubt. (*Added 20 of 2024 s. 23*)
- (3) A corporation may insure and keep insured with an insurance company the common parts of the building and the property of the corporation to the reinstatement value thereof against fire and other risks.
- (4) Where a corporation has effected any policy of insurance with an insurance company by virtue of this section the management committee shall permit the Authority, an authorized officer, the tenants' representative, an occupier, an owner, a registered mortgagee or any person duly authorized in writing in that behalf by an occupier, an owner or registered mortgagee, to inspect the policy of insurance and any receipt for the premium in respect thereof at any reasonable time.
- (5) Subject to subsection (6AA), if a person (other than the Authority or an authorized officer) referred to in subsection (4) (*requester*) requests, in writing, the corporation to supply the requester with a copy of the policy of insurance or any receipt

for the premium in respect of that policy, the management committee must supply the requester with the copy within 28 days after the date on which the request is made. *(Replaced 20 of 2024 s. 23)*

(6) The management committee—

- (a) may impose a reasonable copying charge for supplying the requester with the copy in hard copy form; and
- (b) must not impose any charge for supplying the requester with the copy in electronic form. *(Replaced 20 of 2024 s. 23)*

(6AA) If—

- (a) the request mentioned in subsection (5) is a request for a copy in hard copy form; and
- (b) the management committee imposes under subsection (6)(a) a copying charge for supplying the requester with the copy,

the management committee is not required to comply with the request unless the requester pays the charge. *(Added 20 of 2024 s. 23)*

(6AAB) If the Authority or an authorized officer requests, in writing, the corporation to supply the Authority or officer with a copy of the policy of insurance or any receipt for the premium in respect of that policy, the management committee must supply the Authority or officer with the copy—

- (a) without imposing any charge; and
- (b) within 28 days after the date on which the request is made. *(Added 20 of 2024 s. 23)*

(6A) The secretary of the management committee shall, within 28 days after the corporation has effected a policy of insurance under subsection (1), give notice of the name and address of the insurance company and the period covered by the policy

of insurance to the Land Registrar in such form as the Land Registrar may specify. (*Added 5 of 2007 s. 37*)

(7) In this section and in section 41, ***insurance company*** (保險公司)—

- (a) means an insurer authorized under section 8 of the Insurance Ordinance (Cap. 41) (***Cap. 41***), or deemed to be so authorized under section 61(1) or (2) of Cap. 41 as in force immediately before the commencement date* of section 10 of the Insurance Companies (Amendment) Ordinance 2015 (12 of 2015) having continuing effect by the operation of section 2(7) of Schedule 11 to Cap. 41, to carry on insurance business; (*Replaced 12 of 2015 s. 114*)
- (b) means the society of underwriters known in the United Kingdom as Lloyd's; and
- (c) means an association of underwriters approved by the Insurance Authority.

(*Replaced 69 of 2000 s. 12. Amended 5 of 2007 s. 37*)

Editorial Note:

* Commencement date: 26 June 2017.

Division 5—Procurement of Supplies, Goods or Services

(*Division 5 added 20 of 2024 s. 24*)

Subdivision 1—General Requirements

28A. Compliance with Code of Practice

- (1) The procurement of any supplies, goods or services required by a corporation in the performance of a function under the deed of mutual covenant or this Ordinance must comply with any Code of Practice concerning the procurement.

- (2) A contract for the procurement of any supplies, goods or services mentioned in subsection (1) is not void by reason only that the procurement does not comply with the Code of Practice.

28B. Keeping of procurement documents

- (1) If a contract is entered into for the procurement of any supplies, goods or services mentioned in section 28A(1), the management committee must, during the period of 6 years after the date on which the contract is entered into, keep all the procurement documents.
- (2) If a management committee contravenes subsection (1), every person who is accountable for the contravention commits an offence and is liable on conviction to a fine at level 4.
- (3) It is a defence for a person charged with an offence under subsection (2) to establish that the person exercised all due diligence that the person ought to have exercised in the circumstances to prevent the commission of the offence.
- (4) A person is taken to have established a matter that needs to be established for a defence under subsection (3) if—
 - (a) there is sufficient evidence to raise an issue with respect to that matter; and
 - (b) the contrary is not proved by the prosecution beyond reasonable doubt.
- (5) Subsection (2) does not apply in relation to a procurement document if the date on which the management committee obtains the document falls before the date on which the Building Management (Amendment) Ordinance 2024 (20 of 2024) (*Amendment Ordinance*) comes into operation* (*amendment date*).
- (6) If, in the circumstances described in section 44B(2), this Ordinance as amended by the Amendment Ordinance takes

effect in relation to the procurement concerned on a date (*specified date*) other than the amendment date, the reference to the amendment date in subsection (5) is to be construed as a reference to the specified date.

(7) In subsection (1)—

procurement document (採購文件), in relation to the procurement of any supplies, goods or services—

(a) means a document—

(i) that contains information that enables a person who inspects it to (whether with or without any other document) readily verify the financial liability incurred by the corporation for the procurement; or

(ii) that otherwise relates to the procurement, such as a tender document, copy of contract, statement of account and invoice; and

(b) does not include a declaration made under Schedule 6B.

Editorial Note:

* Operation date: 13 July 2025.

28C. Permitting inspection of procurement documents

(1) A management committee—

(a) must, at the written request of not less than 5% of the owners, permit any of those owners or any person appointed by those owners to inspect, at any reasonable time, any document kept by the management committee under section 28B(1); and

(b) must permit a person authorized under subsection (5) to inspect such a document at any reasonable time.

(2) Subject to subsection (4), if a person who is permitted under subsection (1) to inspect any document (***requester***) requests,

in writing, the corporation to supply the requester with a copy of the document, the management committee must supply the requester with the copy within 28 days after the date on which the request is made.

- (3) The management committee—
 - (a) may impose a reasonable copying charge for supplying the requester with the copy in hard copy form; and
 - (b) must not impose any charge for supplying the requester with the copy in electronic form.
- (4) If—
 - (a) the request mentioned in subsection (2) is a request for a copy in hard copy form; and
 - (b) the management committee imposes under subsection (3)(a) a copying charge for supplying the requester with the copy,

the management committee is not required to comply with the request unless the requester pays the charge.
- (5) The court may, for the purposes of subsection (1)(b) and on an application of an owner, by order authorize the owner or any other person named in the application to inspect any document kept by the management committee under section 28B(1) if it is satisfied that—
 - (a) the application is made in good faith; and
 - (b) the inspection is for a proper purpose.
- (6) A management committee must permit the Authority or an authorized officer to inspect, at any reasonable time, any document kept by the management committee under section 28B(1).
- (7) If the Authority or an authorized officer requests, in writing, the corporation to supply the Authority or officer with a copy

of the document, the management committee must supply the Authority or officer with the copy—

- (a) without imposing any charge; and
- (b) within 28 days after the date on which the request is made.

Subdivision 2—Specific Requirements for Certain Types of Procurement

28D. Type 1 high-value procurement

- (1) If the procurement of any supplies, goods or services mentioned in section 28A(1) is type 1 high-value procurement, the procurement must be conducted by an invitation to tender.
- (2) Moreover—
 - (a) the requirements for tendering specified in Schedule 6A must be complied with in relation to the procurement; and
 - (b) the requirements relating to declarations specified in Part 1 of Schedule 6B must be complied with in relation to the procurement.
- (3) However, subsections (1) and (2)(a) do not apply in relation to the procurement if—
 - (a) the supplies, goods or services to which the procurement relates (*target supplies, goods or services*) are of the same type as any supplies, goods or services that are for the time being supplied by a supplier for the building; and
 - (b) it is decided by a corporation resolution that the target supplies, goods or services must be procured from that

supplier on the terms and conditions that are specified in the resolution, instead of by an invitation to tender.

28E. Type 2 high-value procurement

- (1) If the procurement of any supplies, goods or services mentioned in section 28A(1) is type 2 high-value procurement, the procurement must be conducted by an invitation to tender.
- (2) Moreover—
 - (a) the requirements for tendering specified in Schedule 6A must be complied with in relation to the procurement;
 - (b) the requirements relating to declarations specified in Part 1 of Schedule 6B must be complied with in relation to the procurement;
 - (c) whether a tender submitted for the procurement is accepted or not must be decided by a corporation resolution; and
 - (d) despite anything to the contrary in a contract entered into for the procurement, the contract must not be varied or terminated by the corporation other than in accordance with a corporation resolution.
- (3) However, subsections (1) and (2)(a) and (c) do not apply in relation to the procurement if—
 - (a) the supplies, goods or services to which the procurement relates (*target supplies, goods or services*) are of the same type as any supplies, goods or services that are for the time being supplied by a supplier for the building; and
 - (b) it is decided by a corporation resolution that the target supplies, goods or services must be procured from that

supplier on the terms and conditions that are specified in the resolution, instead of by an invitation to tender.

28F. Large-scale maintenance procurement

- (1) If the procurement of any supplies, goods or services mentioned in section 28A(1) is large-scale maintenance procurement, the procurement must be conducted by an invitation to tender.
- (2) Moreover—
 - (a) the requirements for tendering specified in Schedule 6A must be complied with in relation to the procurement;
 - (b) the requirements relating to declarations specified in Parts 1 and 2 of Schedule 6B must be complied with in relation to the procurement;
 - (c) whether a tender submitted for the procurement is accepted or not must be decided by a corporation resolution;
 - (d) despite anything to the contrary in a contract entered into for the procurement, the contract must not be varied or terminated by the corporation other than in accordance with a corporation resolution; and
 - (e) Schedule 6C has effect in relation to a general meeting of the corporation convened under Schedule 3 that concerns—
 - (i) the acceptance of the tender; or
 - (ii) the variation or termination of the contract.

28G. Subdivision 1 not limited

This Subdivision does not limit Subdivision 1 of this Division.

Subdivision 3—Claims Arising from Contracts for Certain Types

of Procurement**28H. Interpretation (Subdivision 3)**

(1) In this Subdivision—

major procurement (重大採購) means—

- (a) type 1 high-value procurement;
- (b) type 2 high-value procurement; or
- (c) large-scale maintenance procurement.

(2) In this Subdivision, a reference to complying with an essential requirement in relation to a contract for any major procurement is a reference to—

- (a) if the major procurement is type 1 high-value procurement—complying with section 28D(1) in relation to the procurement;
- (b) if the major procurement is type 2 high-value procurement—
 - (i) complying with section 28E(1) in relation to the procurement;
 - (ii) complying with section 28E(2)(c) in relation to the acceptance of the tender submitted by the tenderer with whom the contract has been entered into; or
 - (iii) complying with section 28E(2)(d) in relation to a variation or termination of the contract; or
- (c) if the major procurement is large-scale maintenance procurement—
 - (i) complying with section 28F(1) in relation to the procurement;
 - (ii) complying with section 28F(2)(c) in relation to the acceptance of the tender submitted by the tenderer with whom the contract has been entered into;

- (iii) complying with section 28F(2)(d) in relation to a variation or termination of the contract; or
- (iv) meeting the voting-in-person threshold under paragraph 4 of Schedule 6C in relation to—
 - (A) the passing of a corporation resolution for compliance with section 28F(2)(c) in relation to the procurement; or
 - (B) the passing of a corporation resolution for compliance with section 28F(2)(d) in relation to the contract.

28I. Contracts voidable for non-compliance of essential requirements subject to court orders

- (1) A contract for any major procurement that is entered into by or on behalf of a corporation and in relation to which an essential requirement is not complied with—
 - (a) subject to a corporation resolution mentioned in paragraph (b) or any order made by the court under section 28J(1), is not void by reason only that an essential requirement is not complied with in relation to the contract; and
 - (b) subject to any order made by the court under section 28J(1), may be avoided by a corporation resolution, but only for the reason that an essential requirement is not complied with in relation to the contract.
- (2) If the contract is a contract for large-scale maintenance procurement, Schedule 6C has effect in relation to a general meeting of the corporation convened under Schedule 3 that concerns the avoidance of the contract under subsection (1)(b).

28J. Court orders and directions for contracts

- (1) In any proceedings in relation to a contract for any major

procurement that is entered into by or on behalf of a corporation, the court may make any orders (including an order that the contract is void or voidable) and give any directions in respect of the rights and obligations of the contractual parties that the court thinks fit having regard to all the circumstances of the case, including the following factors—

- (a) whether an essential requirement has been complied with in relation to the contract;
- (b) whether the requirements for tendering specified in Schedule 6A have been complied with in relation to the procurement;
- (c) whether the requirements relating to declarations specified in Schedule 6B have been complied with in relation to the procurement;
- (d) if the procurement is large-scale maintenance procurement—without limiting any other paragraph of this subsection, whether the requirements specified in Schedule 6C (other than essential requirements) (*Schedule 6C requirements*) have been complied with in relation to every meeting of the corporation concerning the procurement;
- (e) whether the procurement complies with any Code of Practice concerning the procurement;
- (f) whether the contract has been split from a contract that should have been made for the procurement of supplies, goods or services of greater value solely for avoiding—
 - (i) the compliance of an essential requirement in relation to the contract; or
 - (ii) if the procurement is large-scale maintenance procurement—without limiting subparagraph (i), the compliance of a Schedule 6C requirement in

relation to a meeting of the corporation concerning the procurement;

- (g) whether the supplies, goods or services procured under the contract were urgently required;
 - (h) the progress of any activities or works in relation to the supplies, goods or services;
 - (i) whether the owners have benefited from the contract;
 - (j) whether the owners have incurred any financial loss due to the contract and the extent of the loss;
 - (k) whether the supplier of the supplies, goods or services has acted in good faith;
 - (l) whether the supplier has benefited from the contract; and
 - (m) whether the supplier has incurred any financial loss due to the contract and the extent of the loss.
- (2) If the court, under subsection (1), makes an order that the contract is voidable at the instance of the corporation, it must also make an order that a general meeting of the corporation be convened and held in the way that the court thinks fit, so as to decide whether the contract is to be avoided.
- (3) In this section, a reference to a meeting of the corporation is a reference to a general meeting of the corporation convened under Schedule 3.

28K. Personal liability not affected

To avoid doubt, subject to section 29A, if—

- (a) a person enters into a contract for any major procurement on behalf of a corporation; and
- (b) an essential requirement is not complied with in relation to the contract,

the person may be personally liable for any claims arising from the contract.

Subdivision 4—Miscellaneous

28L. Power to amend monetary amounts specified in paragraph 5 of Schedule 6A

The Authority may by notice published in the Gazette amend any monetary amount specified in paragraph 5 of Schedule 6A.

28M. Specification of form of declarations for Schedule 6B

The Authority may specify the form of any declaration required for the purposes of Schedule 6B.

Division 6—Role of Management Committee

(Added 20 of 2024 s. 25)

29. Management committee to perform duties and exercise powers of corporation

Subject to this Ordinance, the powers and duties conferred or imposed by this Ordinance on a corporation shall be exercised and performed on behalf of the corporation by the management committee.

29A. Protection of participants of management committee

(Amended 20 of 2024 s. 26)

(1) No participant of a management committee, acting in good faith and in a reasonable manner, shall be personally liable for any act done or default made by or on behalf of the corporation— *(Amended 20 of 2024 s. 26)*

(a) in the exercise or purported exercise of the powers conferred by this Ordinance on the corporation; or

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- (b) in the performance or purported performance of the duties imposed by this Ordinance on the corporation.
- (2) The protection conferred by subsection (1) on a participant of a management committee shall not in any way affect the liability of the corporation for that act or default. *(Amended 20 of 2024 s. 26)*

(Added 5 of 2007 s. 19)

Part V

Dissolution of Management Committee and Appointment of Administrator

30. Dissolution of management committee and appointment of administrator

- (1) Subject to this section, the owners present at a meeting of the corporation convened under paragraph 1 of Schedule 3 may appoint an administrator and thereafter resolve that the management committee be dissolved. (*Amended 5 of 2007 s. 54*)
- (2) A resolution under subsection (1) shall have no effect until a copy thereof, certified as correct by the chairman of the meeting at which the resolution was passed, is lodged with the Land Registrar within 14 days after the date of the meeting.
- (3) An administrator shall hold office from the date upon which a certified copy of the resolution referred to in subsection (1) is lodged with the Land Registrar until—
 - (a) the owners present at a meeting of the corporation convened under paragraph 1 of Schedule 3 appoint— (*Amended 5 of 2007 s. 54*)
 - (i) another administrator; or
 - (ii) a new management committee; or
 - (b) the tribunal appoints an administrator under section 31.

(Amended 8 of 1993 s. 3; 27 of 1993 s. 42)

31. Appointment of administrator by the tribunal

- (1) The tribunal may, upon application made to it by—

- (a) an owner;
- (b) a registered mortgagee (if any);
- (c) an administrator; or
- (d) the Authority or an authorized officer, *(Replaced 27 of 1993 s. 25)*

dissolve the management committee and appoint an administrator, or remove and replace an administrator, as the case may be.

- (2) The tribunal may direct that an administrator appointed under subsection (1) shall hold office for an indefinite period or for a fixed period on such terms and conditions as to remuneration or otherwise as it thinks fit, and the remuneration and expenses of the administrator shall be deemed to be part of the expenses of management of the building under this Ordinance.

(Amended 27 of 1993 s. 42)

32. Powers and duties of an administrator

- (1) An administrator shall have all the powers and duties of a management committee and of the chairman, secretary and treasurer thereof. *(Amended 27 of 1993 s. 26)*
- (2) An administrator shall, within 7 days of the date of his appointment or the termination of his appointment, give notice thereof to the Land Registrar in such form as the Land Registrar may specify. *(Amended 8 of 1993 s. 3; 5 of 2007 s. 55)*
- (3) Any person who contravenes subsection (2) shall be guilty of an offence and shall be liable on conviction to a fine of \$100 for each day during which the contravention continues.

(Amended 27 of 1993 s. 42)

Part VI

Winding Up of Corporations

33. Winding up of corporations

- (1) A corporation may be wound up under the provisions of Part X of the Companies (Winding Up and Miscellaneous Provisions) Ordinance (Cap. 32) as if it were an unregistered company within the meaning of that Ordinance and the provisions of that Ordinance relating to the winding up of an unregistered company shall, in so far as they are applicable, apply to the winding up of a corporation. *(Amended 28 of 2012 ss. 912 & 920)*
- (2) In applying the provisions of the Companies (Winding Up and Miscellaneous Provisions) Ordinance (Cap. 32) under subsection (1)— *(Amended 28 of 2012 ss. 912 & 920)*
 - (a) a reference to a director of a company shall be deemed to be a reference to a member of a management committee; and
 - (b) a reference to a member of a company shall be deemed to be a reference to an owner.

34. Liability of owners on winding up

In the winding up of a corporation under section 33, the owners shall be liable, both jointly and severally, to contribute, according to their respective shares, to the assets of the corporation to an amount sufficient to discharge its debts and liabilities.

(Amended 27 of 1993 s. 27)

34A. Winding-up petitions and orders to be noted in register and records

- (1) Where—
 - (a) a winding-up petition in respect of a corporation is presented to the tribunal by a petitioner; or
 - (b) a winding-up order in respect of a corporation is made by the tribunal,the petitioner shall, as soon as is reasonably practicable, deliver a copy of the winding-up petition or the winding-up order, as the case may be, to the Land Registry.
- (2) The Land Registrar shall, on receipt of the copy of the winding-up petition or winding-up order, as the case may be, referred to in subsection (1)—
 - (a) enter particulars of that petition or order in the register; and
 - (b) endorse particulars of that petition or order on any record at the Land Registry in respect of a relevant owner.
- (3) If the petitioner referred to in subsection (1) fails to comply with that subsection, no action or proceeding under the Companies (Winding Up and Miscellaneous Provisions) Ordinance (Cap. 32) shall be commenced or proceeded with until such time as he complies with that subsection, and any action or proceeding which has been commenced in respect of the corporation shall be stayed by the tribunal or otherwise cease and be of no effect until such time as that petitioner complies with that subsection. (*Amended 28 of 2012 ss. 912 & 920*)

(Added 27 of 1993 s. 28)

34B. Interpretation

In this Part—

commencement of the winding up (清盤開始) means the time of the presentation of the petition to the tribunal for the winding up of the corporation;

relevant owner (有關業主) means—

- (a) a person who, at any time between the date of the commencement of the winding up and the date on which the Land Registrar enters particulars of the winding-up petition in the register under section 34A(2)(a) (***the relevant period*** (有關期間)), appears from the records at the Land Registry to be or to have been the owner of a share in a building maintained by a corporation the subject of that petition; and
- (b) a registered mortgagee in possession of that share during that relevant period.

(Added 27 of 1993 s. 28)

Part VIA

Deeds of Mutual Covenant

(Part VIA added 27 of 1993 s. 29)

34C. Application

- (1) This Part, except where otherwise expressly provided, applies only to a building in respect of which a deed of mutual covenant is in force whether that deed came into force before or after the material date.
- (2) In the event of any inconsistency between this Part and the terms of a deed of mutual covenant or any other agreement, this Part shall prevail.

34D. Interpretation

- (1) In this Part and Schedules 7 and 8, unless the context otherwise requires— *(Amended 5 of 2007 s. 56)*

material date (關鍵日期) means the commencement* of section 29 of the Multi-storey Buildings (Owners Incorporation) (Amendment) Ordinance 1993 (27 of 1993);

owners' committee (業主委員會), in relation to a building, means the committee of owners (howsoever named) formed under or in accordance with the deed of mutual covenant in respect of the building. *(Replaced 5 of 2007 s. 20)*

(Amended 20 of 2024 s. 27)

- (2) In this Part and Schedule 7, a reference to a resolution of the owners' committee is a reference to a resolution passed by a majority of the votes of the members of the owners' committee present at a meeting convened and conducted in

accordance with the deed of mutual covenant. (*Amended 5 of 2007 s. 56*)

(3) (*Repealed 20 of 2024 s. 27*)

(4) (*Repealed 5 of 2007 s. 20*)

Editorial Note:

* Commencement date: 8 May 1993.

34E. Mandatory terms in deeds of mutual covenant

- (1) Subject to subsection (4), the provisions in Schedule 7 shall be impliedly incorporated— (*Amended 5 of 2007 s. 57*)
 - (a) into every deed of mutual covenant made on or after the material date; and
 - (b) as from the material date, into every deed of mutual covenant made before that date.
- (2) The provisions incorporated into a deed of mutual covenant by virtue of this section shall—
 - (a) bind the owners and manager of the building; and
 - (b) prevail over any other provision in the deed that is inconsistent with them.
- (3) This section shall not operate to attach new legal consequences to any act done or omission occurring under a deed of mutual covenant before the material date.
- (4) The Authority may—
 - (a) subject to subsection (5), upon application by the manager of the building or any other person having an interest in the management of the building; or
 - (b) in the case of an exempt estate, upon the application of the person (*the single manager* (單一經理人)) who for the time being is, for the purpose of the deed of

mutual covenant in respect of the buildings or groups of buildings comprising the estate, managing that estate, from time to time by notice in the Gazette, exclude the application to the building, or to the buildings or groups of buildings comprising the exempt estate, as the case may be, of paragraph 7 of Schedule 7 for a period not exceeding 3 years and subject to such conditions (if any) as he sees fit.

- (5) The Authority shall not exclude the application to the building of paragraph 7 of Schedule 7 under subsection (4)(a) if the Authority receives a number of notices of objection from the owners of not less than 50% of the shares in aggregate in respect of that building, such notices opposing the application under that subsection.
- (6) Subject to subsection (7), the Authority may, upon application by any owner, manager, person referred to in section 3(1)(a) or (b), any other person having an interest in the management of a building or any single manager, specify by order published in the Gazette the addition of any estate to, or the deletion of any estate (being an exempt estate) from, Schedule 9.
- (7) No estate may be so specified under subsection (6) if—
 - (a) the Authority receives a number of notices of objection from the owners of not less than 50% of the shares in aggregate in respect of the buildings or groups of buildings comprising the estate, such notices opposing the addition of that estate to, or the deletion of that estate (being an exempt estate) from, Schedule 9;
 - (b) the conditions (if any) imposed under subsection (4) are not met or complied with; and
 - (c) in the case of the proposed addition of an estate to Schedule 9, the buildings or groups of buildings

comprising the estate are not being managed by a single manager.

- (8) The Authority shall prepare and publish in the Gazette guidelines relating to the exercise of the Authority's discretion under subsection (4) and shall, when considering an application under that subsection, have regard to those guidelines.

(Amended 5 of 2007 s. 57)

34EA. Specification of form of declarations or notices for mandatory DMC terms

The Authority—

- (a) may specify the form of any declaration required for the purposes of the mandatory DMC terms contained in Division 4 of Part 2 of Schedule 7; and
- (b) may specify the form of any notice required for the purposes of the mandatory DMC terms contained in paragraph 42 of that Schedule.

(Added 20 of 2024 s. 28)

34F. Terms added if consistent with deed of mutual covenant

- (1) The provisions in Schedule 8 shall, to the extent that they are consistent with the deed of mutual covenant, be impliedly incorporated— *(Amended 5 of 2007 s. 58)*
 - (a) into every deed of mutual covenant made on or after the material date; and
 - (b) as from the material date, into every deed of mutual covenant made before that date.
- (2) Subject to subsection (3), the provisions incorporated into a deed of mutual covenant by virtue of this section shall bind the owners and manager of the building.

- (3) Any provision in Schedule 8 that is impliedly incorporated into a deed of mutual covenant under this section may, insofar as that provision is so incorporated, be amended, deleted, or re-incorporated into the deed of mutual covenant— (*Amended 5 of 2007 s. 58; 20 of 2024 s. 29*)
 - (a) if there is a corporation—by a corporation resolution; or
 - (b) if there is no corporation—by an owners resolution. (*Amended 20 of 2024 s. 29*)
- (4) This section shall not operate to attach new legal consequences to any act done or omission occurring under a deed of mutual covenant before the material date.

34G. Management expenses of unsold property

- (1) If, at the time a deed of mutual covenant was or is made in respect of a building, any share in the building had not or has not been sold, the owner for the time being of the share shall, for so long as it remains unsold, be liable to pay the management expenses relating to the share as if he had purchased that share subject to the deed of mutual covenant.
- (2) This section shall not operate to make any person liable to pay management expenses in respect of a period before the material date.

34H. Duty to maintain property

- (1) Where a person who owns any part of a building, has the right to the exclusive possession of any part of a building or has the exclusive right to the use, occupation or enjoyment of that part, as the case may be, but the deed of mutual covenant in respect of the building does not impose an obligation on that person to maintain the part in good repair and condition, that person shall maintain that part in good repair and condition. (*Amended 69 of 2000 s. 14*)

- (2) The obligation in subsection (1) shall be deemed to be an obligation owed to all owners of the building under the deed of mutual covenant.

34I. Common parts

- (1) No person may—
- (a) convert any part of the common parts of a building to his own use unless such conversion is approved by a resolution of the owners' committee (if any);
 - (b) use or permit to be used the common parts of a building in such a manner as—
 - (i) unreasonably to interfere with the use and enjoyment of those parts by any owner or occupier of the building; or
 - (ii) to cause a nuisance or hazard to any person lawfully in the building.
- (2) Any person who contravenes subsection (1) shall be deemed to be in breach of an obligation imposed on him by the deed of mutual covenant in respect of the building.

34J. Right to establish corporation and conduct business

- (1) No provision in a deed of mutual covenant or other agreement shall operate to prevent the owners of any building from being registered as a corporation under this Ordinance and any such provision shall be void and of no effect.
- (2) No provision in a deed of mutual covenant (whether such provision is of a procedural nature or otherwise) shall operate to prevent any business relating to the management of a building being conducted at any meeting by any owner or any person managing the building and any such provision shall be void and of no effect.

- (3) Any provision in a deed of mutual covenant relating to a quorum at any meeting the attainment of which is in practice impossible or virtually impossible to achieve and which has the effect of preventing or frustrating the consideration at that meeting of any business relating to the management of a building by any owner or any person managing the building shall be void and of no effect.
- (4) The reference to *any business relating to the management of a building* in this section shall be construed to include any such business relating to—
 - (a) the appointment of a management committee under section 3, 3A, 4 or 40C; or (*Amended 5 of 2007 s. 21*)
 - (b) the termination of a manager's appointment in accordance with Schedule 7. (*Amended 5 of 2007 s. 59*)

34K. Management committee to replace owners' committee

Where a management committee in respect of a building is or has been appointed under section 3, 3A, 4 or 40C, the members of the management committee for the time being shall be deemed, for the purposes of the deed of mutual covenant in respect of that building, to be the owners' committee and shall— (*Amended 69 of 2000 s. 15*)

- (a) to the exclusion of any other persons have all the functions, powers and duties of the owners' committee under the deed of mutual covenant; and
- (b) in relation to those functions, powers and duties be subject to Schedule 2, even if that Schedule is inconsistent with the deed of mutual covenant. (*Amended 5 of 2007 s. 60*)

34L. Indemnity of manager in respect of legal costs, etc.

No provision in a deed of mutual covenant or other agreement shall

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operate to entitle the manager of any building to be indemnified by a corporation or by the owners of the flats in that building in respect of any legal costs, charges, expenses or fees relating to any civil or criminal proceedings (whether successful or otherwise) between or in respect of that manager and that corporation or those owners and any such provision shall be void and of no effect.

Part VII

Miscellaneous

35. Penalty for improper use of “Incorporated Owners”

Any person who, not being a corporation incorporated under this Ordinance, uses a name or title containing the words “Incorporated Owners” or “Owners’ Corporation” or the Chinese characters therefor, or other words or Chinese characters implying that such person is a corporation incorporated under this Ordinance, shall be guilty of an offence and shall be liable on conviction to a fine at level 3.

(Amended 27 of 1993 ss. 30 & 42; 69 of 2000 s. 16)

36. False statement or information

Any person who—

- (a) in any form required by this Ordinance, or in any notice or document given, issued or made for the purposes of this Ordinance, makes any statement or furnishes any information; or
- (b) furnishes any information required to be furnished under this Ordinance,

which he knows, or reasonably ought to know, to be false in a material particular, shall be guilty of an offence and shall be liable on conviction to a fine at level 3 and to imprisonment for 6 months.

(Amended 27 of 1993 s. 42; 69 of 2000 s. 17)

36A. Duty to keep certain documents concerning meetings

- (1) A management committee—

- (a) must keep any certified minutes for a management committee meeting during the period of 6 years after the date on which they are certified in accordance with Schedule 2; and
 - (b) must keep any certified minutes for a corporation general meeting during the period of 6 years after the date on which they are certified in accordance with Schedule 3.
- (2) A management committee must keep every lodged proxy instrument for a corporation general meeting during the period of 12 months after the conclusion of the meeting (regardless of whether the instrument is valid under this Ordinance).
- (3) A management committee must, for a corporation general meeting, keep—
 - (a) the original of every authorization notice given in hard copy form; and
 - (b) a copy of every authorization notice given in electronic form,during the period of 3 years after the conclusion of the meeting (regardless of whether paragraph 4A(4) of Schedule 3 has been complied with in relation to the notice).
- (4) If a management committee contravenes subsection (1), (2) or (3), every person who is accountable for the contravention commits an offence and is liable on conviction to a fine at level 4.
- (5) It is a defence for a person charged with an offence under subsection (4) to establish that the person exercised all due diligence that the person ought to have exercised in the circumstances to prevent the commission of the offence.
- (6) A person is taken to have established a matter that needs to be established for a defence under subsection (5) if—

- (a) there is sufficient evidence to raise an issue with respect to that matter; and
 - (b) the contrary is not proved by the prosecution beyond reasonable doubt.
- (7) Even if subsection (1) is contravened in relation to any certified minutes, subsection (4) does not apply in relation to the minutes if—
 - (a) in the case of the contravention of subsection (1)(a)—the date on which the minutes are certified in accordance with Schedule 2; or
 - (b) in the case of the contravention of subsection (1)(b)—the date on which the minutes are certified in accordance with Schedule 3,falls before the date on which the Building Management (Amendment) Ordinance 2024 (20 of 2024) comes into operation* (*amendment date*).
- (8) Even if subsection (2) or (3) is contravened in relation to a corporation general meeting, subsection (4) does not apply in relation to the meeting if a notice of the meeting is given under paragraph 2 of Schedule 3 before the amendment date.
- (9) In this section—

authorization notice given in electronic form (已發電子授權通知), in relation to a corporation general meeting, means an authorization notice (as mentioned in paragraph 4A of Schedule 3) that has been given to the secretary of the management committee in respect of the meeting by sending a copy of it in electronic form to the secretary;

authorization notice given in hard copy form (已發印本授權通知), in relation to a corporation general meeting, means an authorization notice (as mentioned in paragraph 4A of Schedule 3) that has been given to the secretary of the

management committee in respect of the meeting by lodging the original of it in hard copy form with the secretary;

corporation general meeting (法團業主大會), in relation to a management committee, means a general meeting of the corporation convened under Schedule 3;

lodged proxy instrument (已送交委任書), in relation to a corporation general meeting, means an instrument appointing a proxy that has been lodged with the secretary of the management committee in respect of the meeting;

management committee meeting (管理委員會會議), in relation to a management committee, means a meeting of the management committee convened under Schedule 2.

(Added 20 of 2024 s. 30)

Editorial Note:

* Operation date: 13 July 2025.

37. Saving for resolutions passed at meetings

A resolution passed at any meeting convened under this Ordinance shall not be invalid by reason only of the omission to give notice of the meeting to any person entitled to such notice.

38. Secretary to maintain register

- (1) The secretary of a management committee shall maintain a register, in which each flat in the building concerned shall be separately identified, and shall enter therein the following particulars with reference to each flat—
 - (a) the name and address of the owner; and
 - (b) the name and address of the registered mortgagee (if any).
- (2) For the purposes of subsection (1)—

- (a) the address of an owner shall be the address of the flat which he owns; and
 - (b) the address of a registered mortgagee shall be his address appearing in the registered mortgage, unless the owner or registered mortgagee notifies the secretary of the management committee in writing of some other address.
- (3) Every person who becomes an owner or a registered mortgagee of a flat shall forthwith give notice thereof to the secretary of the management committee, who shall amend the register accordingly.
- (4) The register maintained under subsection (1) shall be open to inspection by the Authority, an authorized officer, the tenants' representative, an owner or a registered mortgagee or any person duly authorized in writing in that behalf by an owner or registered mortgagee. *(Replaced 27 of 1993 s. 31)*

39. Determination of owner's shares

An owner's share shall be determined—

- (a) in the manner provided in an instrument including a deed of mutual covenant (if any) which is registered in the Land Registry; or *(Amended 8 of 1993 s. 2)*
- (b) if there is no such instrument, or the instrument contains no such provision, then in the proportion which his undivided share in the building bears to the total number of shares into which the building is divided.

(Amended 27 of 1993 s. 32)

40. Powers of entry and inspection

- (1) A member of a management committee and any other person authorized in that behalf by the management committee may,

on reasonable notice to the owner or occupier thereof, enter a flat at any reasonable time for the purpose of— (*Amended 27 of 1993 s. 33*)

- (a) inspecting, repairing, maintaining or renewing—
 - (i) any common parts in the flat; or
 - (ii) any other property in the flat the condition of which does or may affect adversely the common parts or other owners;
 - (b) abating any hazard or nuisance which does or may adversely affect the common parts or other owners.
- (2) A magistrate may, if satisfied by information on oath that it is necessary for any person to break into any flat which he is empowered to enter under subsection (1), by warrant authorize such person to break into the flat in the presence of a police officer.
- (3) Notwithstanding section 19(2), any costs incurred by the management committee in connexion with the exercise by it of the powers conferred by subsection (1)(a)(ii) or (b) shall be recoverable by the corporation as a civil debt from the owner of the flat in respect of which such costs were incurred. (*Amended 27 of 1993 ss. 33 & 42*)

40A. Powers of Authority or authorized officer

- (1) The Authority or an authorized officer may, for the purpose of ascertaining the manner in which a building is being controlled, managed or administered—
 - (a) enter and inspect any common parts of a building;
 - (b) attend any general meeting of a corporation;
 - (c) require a corporation or any person managing the building to furnish him with such information in the possession of the corporation or that person, as the

case may be, as the Authority or authorized officer may specify in relation to the control, management and administration of the building;

- (d) inspect the books or records of account and other records maintained under section 27(1) including any accounts relating to any fund established and maintained under section 20; and
 - (e) inspect any other documents or records kept by a corporation in relation to any of its functions, duties or powers.
- (2) Any person who obstructs, or fails to comply with a reasonable requirement of, the Authority or an authorized officer acting under subsection (1) commits an offence and is liable to a fine at level 4. *(Amended 69 of 2000 s. 18)*

(Added 27 of 1993 s. 34)

40B. Appointment of building management agent by order of Authority

- (1) Where it appears to the Authority in the case of any building having a management committee that—
 - (a) no person is, for the time being, managing that building;
 - (b) the management committee has, in any material particular, failed substantially to perform the duties of a corporation under section 18 including without limitation, the duty of a corporation under subsection (2A) of that section to have regard to and be guided by Codes of Practice; and
 - (c) by reason of the circumstances mentioned in paragraphs (a) and (b), there is a danger or risk of danger to the occupiers or owners of the building,

the Authority may order that, within such reasonable period as shall be specified in the order, the management committee must appoint a building management agent for the purposes of managing that building.

- (2) If a management committee without reasonable excuse fails to comply with an order made under subsection (1), every person who is accountable for the failure commits an offence and is liable on conviction to a fine at level 5 and in the case of a continuing offence, to a further fine of \$1,000 for each day during which the offence continues. *(Replaced 20 of 2024 s. 31)*
- (2A) It is a defence for a person charged with an offence under subsection (2) to establish that the person exercised all due diligence that the person ought to have exercised in the circumstances to prevent the commission of the offence. *(Added 20 of 2024 s. 31)*
- (2B) A person is taken to have established a matter that needs to be established for a defence under subsection (2A) if—
 - (a) there is sufficient evidence to raise an issue with respect to that matter; and
 - (b) the contrary is not proved by the prosecution beyond reasonable doubt. *(Added 20 of 2024 s. 31)*
- (3) For the purposes of this section and section 40C, a person is eligible to be appointed as a building management agent if his name appears in a list of persons engaged in the business of the management of buildings compiled by the Authority from time to time and published in the Gazette. *(Replaced 5 of 2007 s. 22)*

(Added 69 of 2000 s. 19)

40C. Appointment of management committee or building management agent by order of tribunal

- (1) Where upon the application of the Authority it appears to the tribunal in the case of any building that—
 - (a) a management committee has not been and is not likely to be appointed under section 3, 3A or 4, notwithstanding an order of the tribunal made under section 4;
 - (b) no person is, for the time being, managing that building; and
 - (c) the Authority is satisfied that by reason of the circumstances mentioned in paragraphs (a) and (b), there is a danger or risk of danger to the occupiers or owners of the building,the tribunal may order that, within such reasonable period as shall be specified in the order, a meeting of owners must be convened by such owner as shall be named in the order to deal with the matters referred to in subsection (2) for the purposes of managing that building.
- (2) The matters referred to in subsection (1) are, consecutively—
 - (a) to consider and, if thought fit, to pass a resolution which appoints a management committee;
 - (b) where that resolution is not passed, to consider and, if thought fit, to pass a resolution which appoints a building management agent,for the purposes of managing that building.
- (3) At a meeting of owners convened under this section, the owners may, by a resolution passed by a majority of the votes of the owners voting either personally or by proxy, appoint—
 - (a) a management committee; or
 - (b) (if no management committee is appointed) a building management agent. (*Replaced 5 of 2007 s. 23*)

- (3A) If no management committee or building management agent is appointed at the meeting of owners, the convenor may appoint a building management agent directly. *(Added 5 of 2007 s. 23)*
- (4) The convenor shall, at least 14 days before the date of the meeting of owners, give notice of the meeting to each owner and the person referred to in section 3(1)(a) or (b) (if any). *(Replaced 5 of 2007 s. 23)*
- (5) The notice of meeting shall specify—
 - (a) the date, time and place of the meeting; and
 - (b) the resolutions that are to be proposed at the meeting and are related only to the appointment of a management committee, the incorporation of the owners and the appointment of a building management agent. *(Added 5 of 2007 s. 23)*
- (6) The notice of meeting may be given—
 - (a) in the case of an owner—
 - (i) by delivering it personally to the owner;
 - (ii) by sending it by post to the owner at his last known address; or
 - (iii) by leaving it at the owner's flat or depositing it in the letter box for that flat; or
 - (b) in the case of a person referred to in section 3(1)(a) or (b)—
 - (i) by delivering it personally to the person; or
 - (ii) by sending it by post to the person at his last known address. *(Added 5 of 2007 s. 23)*
- (7) The convenor shall also, at least 14 days before the date of the meeting of owners, display the notice of meeting in a prominent place in the building. *(Added 5 of 2007 s. 23)*

- (8) The convenor shall preside at a meeting of owners convened under this section. *(Added 5 of 2007 s. 23)*
- (9) The quorum at a meeting of owners convened under this section shall be 10% of the owners. *(Added 5 of 2007 s. 23)*
- (10) At a meeting of owners convened under this section—
 - (a) each owner shall have one vote;
 - (b) an owner may cast a vote personally or by proxy;
 - (c) in the case of co-owners, the vote may be cast—
 - (i) by a proxy jointly appointed by the co-owners;
 - (ii) by a person appointed by the co-owners from amongst themselves; or
 - (iii) if no appointment is made under subparagraph (i) or (ii), either by one of the co-owners personally or by a proxy appointed by one of the co-owners; and
 - (d) where, in the case of co-owners, more than one of the co-owners seeks to cast a vote, only the vote that is cast, whether personally or by proxy, by the co-owner whose name, in order of priority, stands highest in the register kept at the Land Registry shall be treated as valid. *(Added 5 of 2007 s. 23)*
- (11) For the purposes of subsection (10)—
 - (a) the instrument appointing a proxy shall be in the form set out in Form 1 in Schedule 1A, and—
 - (i) shall be signed by the owner; or
 - (ii) if the owner is a body corporate, shall, notwithstanding anything to the contrary in its constitution, be impressed with the seal or chop of the body corporate and signed by a person authorized by the body corporate in that behalf;

- (b) the instrument appointing a proxy shall be lodged with the convenor at least 48 hours before the time for the holding of the meeting;
- (c) the instrument appointing a proxy is valid only if it is made and lodged in accordance with paragraphs (a) and (b);
- (d) a proxy appointed by an owner to attend and vote on behalf of the owner shall, for the purposes of the meeting, be treated as being the owner present at the meeting; and
- (e) where an instrument appointing a proxy is lodged with the convenor, the convenor shall—
 - (i) acknowledge receipt of the instrument by leaving a receipt at the flat of the owner who made the instrument, or depositing the receipt in the letter box for that flat, before the time for the holding of the meeting;
 - (ii) determine the validity of the instrument in accordance with paragraph (c); and
 - (iii) display information of the owner's flat in a prominent place in the place of the meeting before the time for the holding of the meeting, and cause the information to remain so displayed until the conclusion of the meeting. (*Added 5 of 2007 s. 23*)
- (12) Subject to subsection (13A), the convenor must, during the period of 12 months after the conclusion of the meeting, keep all the instruments for the appointment of proxies that have been lodged with the convenor in respect of the meeting (***lodged proxy instrument***). (*Replaced 20 of 2024 s. 32*)
- (13) If a management committee or building management agent has been appointed at the meeting—

- (a) the convenor must, immediately after the conclusion of the meeting, deliver all the lodged proxy instruments to the management committee or building management agent (as the case may be); and
 - (b) the management committee or building management agent (as the case may be) must, during the period of 12 months after the conclusion of the meeting, keep all the lodged proxy instruments that are so delivered. *(Replaced 20 of 2024 s. 32)*
- (13A) Subsection (12) ceases to apply in relation to a lodged proxy instrument if the convenor complies with subsection (13)(a) in relation to the instrument. *(Added 20 of 2024 s. 32)*
- (13B) Subsections (12), (13) and (13A) apply in relation to any lodged proxy instruments regardless of whether they are valid under this Ordinance. *(Added 20 of 2024 s. 32)*
- (14) Subject to subsection (15), where a meeting of owners convened under this section is adjourned, subsections (4), (5), (6), (7), (8), (9), (10), (11), (12), (13), (13A) and (13B) apply to the adjourned meeting as they apply to the original meeting. *(Added 5 of 2007 s. 23. Amended 20 of 2024 s. 32)*
- (15) Where a meeting of owners convened under this section is adjourned, a valid instrument appointing a proxy made for the purposes of the original meeting shall remain valid for the purposes of the adjourned meeting unless—
 - (a) contrary intention is shown on the instrument;
 - (b) the instrument is revoked; or
 - (c) the instrument is replaced by a new instrument appointing a proxy. *(Added 5 of 2007 s. 23)*

(Added 69 of 2000 s. 19)

40CA. Offences for contravening section 40C(12) or (13)

- (1) If the convenor of the meeting of owners concerned contravenes section 40C(12), the convenor commits an offence and is liable on conviction to a fine at level 4.
- (2) If a management committee contravenes section 40C(13)(b), every person who is accountable for the contravention commits an offence and is liable on conviction to a fine at level 4.
- (3) If the building management agent concerned contravenes section 40C(13)(b), the building management agent commits an offence and is liable on conviction to a fine at level 4.
- (4) It is a defence for a person charged with an offence under subsection (1), (2) or (3) to establish that the person exercised all due diligence that the person ought to have exercised in the circumstances to prevent the commission of the offence.
- (5) A person is taken to have established a matter that needs to be established for a defence under subsection (4) if—
 - (a) there is sufficient evidence to raise an issue with respect to that matter; and
 - (b) the contrary is not proved by the prosecution beyond reasonable doubt.
- (6) Subsections (1), (2) and (3) do not apply in relation to the meeting of owners concerned if a notice of the meeting is given under section 40C before the date on which the Building Management (Amendment) Ordinance 2024 (20 of 2024) comes into operation*.

(Added 20 of 2024 s. 33)

Editorial Note:

* Operation date: 13 July 2025.

40D. Powers of building management agent appointed following order of tribunal

- (1) A building management agent appointed under section 40C may carry on any activity or business relating to the management of a building, including without limitation, any activity or business of the description mentioned in Schedule 7 in relation to the activities or business of a manager.
(Amended 5 of 2007 s. 62)
- (2) An order made under section 40C may direct that a building management agent appointed under section 40C(2)(b) shall hold his appointment for a fixed period on such terms and conditions as to remuneration and expenses or otherwise in respect of the carrying on by him of any activity or business relating to the management of the building as the tribunal shall think fit and specify in the order and the remuneration and expenses of the building management agent as so specified shall be a debt due to him from the owners in accordance with their respective shares at the time that that remuneration and those expenses are payable.

(Added 69 of 2000 s. 19)

41. Power to make regulations

The Chief Executive in Council may make regulations for any of the following matters— *(Amended 34 of 1999 s. 3)*

- (a) the fees payable in respect of the registration or filing of any documents submitted to the Land Registrar under this Ordinance; *(Amended 8 of 1993 s. 3)*
- (b) the fees payable for the inspection or copying of any document so registered or filed;
- (c) the fees payable for the issue of any certificate under this Ordinance;
- (ca) the effecting of policies of insurance in respect of third party risks and against fire and other risks by corporations with insurance companies and the

conditions and requirements which are to apply in respect of those policies, including without limitation—

- (i) the conditions and requirements in respect of policies which are binding on corporations; *(Amended 5 of 2007 s. 24)*
- (ii) the conditions and requirements in respect of policies which are binding on insurance companies;
- (iii) the conditions to policies which are to be void and of no effect;
- (iv) the duty of insurance companies to satisfy judgments against corporations in respect of third party risks; *(Amended 5 of 2007 s. 24)*
- (v) *(Repealed 5 of 2007 s. 24)*
- (vi) the effect of the insolvency or winding up of a corporation in respect of claims by third parties; *(Amended 5 of 2007 s. 24)*
- (vii) the avoidance of the imposition by insurance companies of restrictions on the scope of policies covering third party risks;
- (viii) the conditions and requirements as to the minimum amount of insurance cover;
- (ix) the conditions and requirements as to the system of accounts to be kept and the returns to be furnished by insurance companies;
- (x) the obligations of third parties; *(Added 69 of 2000 s. 20)*
- (xi) the avoidance of any arrangements, agreements or understandings, or parts thereof, made or reached in respect of the liability of corporations towards third parties; *(Added 5 of 2007 s. 24)*

- (d) prescribing anything which is to be or may be prescribed under this Ordinance;
- (e) the better carrying out of the purposes of this Ordinance.

42. Power to amend Schedules

- (1) The Chief Executive in Council may, by order published in the Gazette, amend any Schedule to this Ordinance other than Schedule 9. *(Replaced 20 of 2024 s. 34)*
- (2) *(Repealed 20 of 2024 s. 34)*
- (3) The Authority may, by order published in the Gazette, amend Schedule 9.
(Replaced 27 of 1993 s. 35. Amended 34 of 1999 s. 3; 5 of 2007 s. 63)

43. Saving of owner's rights

Nothing in this Ordinance shall prevent an owner from selling, assigning, mortgaging, charging, leasing or otherwise disposing of or dealing with his share.

(Amended 27 of 1993 s. 42)

44. Codes of Practice

- (1) The Authority may from time to time prepare, revise and issue Codes of Practice giving guidance and direction as to—
 - (a) the procurement of supplies, goods or services required by a corporation or an owner in the performance of a function under the deed of mutual covenant or this Ordinance, including such procurement by invitation to tender and the tender procedure in respect thereof;
(Amended 20 of 2024 s. 35)

- (b) the standards and practices of management and safety that are to be observed and followed by a corporation including standards and practices relating to—
 - (i) building management;
 - (ii) building safety;
 - (iii) fire safety;
 - (iv) slope safety;
 - (v) lifts and escalators; and
 - (vi) utilities and other installations in the common parts of a building. *(Replaced 69 of 2000 s. 21)*
- (2) A failure on the part of any person to observe any Code of Practice issued under subsection (1) shall not of itself render that person liable to criminal proceedings of any kind but any such failure may, in any proceedings whether civil or criminal including proceedings for an offence under this Ordinance, be relied upon as tending to establish or to negative any liability which is in question in those proceedings.

(Added 27 of 1993 s. 36)

44A. Legal professional privilege

In complying with a request made by the Authority or an authorized officer in the performance of a function under this Ordinance, a person is not required to permit the inspection of any document, or to supply any document or information, that the person would on grounds of legal professional privilege be entitled to refuse to supply in legal proceedings.

(Added 20 of 2024 s. 36)

44B. Transitional provisions for Building Management (Amendment) Ordinance 2024

- (1) If the initiation date for the procurement of any supplies,

goods or services required by a corporation or an owner in the performance of a function under the deed of mutual covenant or this Ordinance precedes the date on which the Building Management (Amendment) Ordinance 2024 (20 of 2024) (*Amendment Ordinance*) comes into operation* (*amendment date*), this Ordinance as in force immediately before the amendment date continues to apply in relation to the procurement as if the amendments to this Ordinance made by the Amendment Ordinance had not been made.

- (2) However, if, by the expiry of the period of 3 years after the amendment date (*grace period*), no contract for the procurement has been entered into by or on behalf of the corporation or the owners—
- (a) for the purposes of this Ordinance, any initiation decision made before the amendment date for the procurement is taken to have not been made, and accordingly the initiation date for the procurement would no longer precede the amendment date; and
 - (b) because of paragraph (a), this Ordinance as amended by the Amendment Ordinance takes effect in relation to the procurement on the expiry of the grace period.

(Added 20 of 2024 s. 36)

Editorial Note:

* Operation date: 13 July 2025.

Part VIII

Jurisdiction Vested in Lands Tribunal

(Part VIII added 27 of 1993 s. 37)

45. Jurisdiction of tribunal in relation to building management

- (1) The tribunal shall have jurisdiction to hear and determine any proceedings specified in Schedule 10.
- (2) No person other than a person to whom this section applies shall be competent to commence any proceedings referred to in subsection (1).
- (3) Subject to the provisions of this Ordinance, nothing in this section or Schedule 10 shall be construed to vest in the tribunal any jurisdiction other than civil jurisdiction or any jurisdiction to make any order which would, if made, have the effect of rendering void, negating or substantially varying in whole or in part any contractual or proprietary right enjoyed by any owner or occupier or otherwise referred to in the terms and provisions of an instrument which is registered in the Land Registry including a deed of mutual covenant (if any). *(Amended 69 of 2000 s. 22)*
- (4) This section applies to the following persons, namely—
 - (a) an owner;
 - (aa) the Authority; *(Added 69 of 2000 s. 22)*
 - (b) a person referred to in section 3(1)(a) or (b);
 - (c) a management committee;
 - (d) a corporation;
 - (e) a manager; *(Amended 20 of 2024 s. 37)*

- (f) an owners' committee within the meaning of Part VIA;
(*Amended 20 of 2024 s. 37*)
 - (g) a registered mortgagee;
 - (h) an administrator;
 - (i) with leave of the tribunal, the tenants' representative; or
 - (j) with leave of the tribunal, any other person specified in an instrument which is registered in the Land Registry including a deed of mutual covenant (if any).
- (5) In this section and Schedule 10, ***proprietary right*** (所有權權利) includes any such right express or implied whether specified in an easement, licence, permission or otherwise.

(*Amended 5 of 2007 s. 64*)

Schedule 1

[ss. 2 & 42]

(Amended 5 of 2007 s. 25)

Common Parts

1. External walls and load bearing walls, foundations, columns, beams and other structural supports.
2. Walls enclosing passageways, corridors and staircases.
3. The roofs, chimneys, gables, gutters, lightning conductors, satellite dishes and ancillary equipment, aerials and aerial cables. *(Amended 27 of 1993 s. 38)*
4. Parapet walls, fences and boundary walls.
5. Vents serving 2 or more flats. *(Amended 27 of 1993 s. 42)*
6. Water tanks, reservoirs, pumps, wells, sewers, sewage treatment plants, drains, soil pipes, waste pipes, channels, water-courses, gutters, ducts, downpipes, cables, conduits, refuse chutes, hoppers and refuse container chambers. *(Amended 27 of 1993 s. 38)*
7. Cellars, toilets, water closets, wash houses, bathhouses, kitchens and caretakers' flats.
8. Passageways, corridors, staircases, landings, light wells, staircase window frames and glazing, hatchways, roofways and outlets to the roofs and doors and gates giving access thereto.

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9. Lifts, escalators, lift shafts and machinery and apparatus used in connexion therewith and the housing thereof.
 10. Lighting apparatus, air conditioning apparatus, central heating apparatus, fire fighting equipment and installations intended for the use and benefit of all of the owners generally and any room or chamber in which such apparatus, equipment or installation is fitted or installed.
 11. Fixtures situated in a flat which are used in connexion with the enjoyment of any other flat or other portion of the building.
 12. Lawns, gardens and playgrounds and any other recreational areas.
(Added 27 of 1993 s. 38)
 13. Swimming pools, tennis courts, basketball courts, squash courts and premises containing or housing any other sporting or recreational facilities. *(Added 27 of 1993 s. 38. Amended E.R. 2 of 2018)*
 14. Clubhouses, gymnasiums, sauna rooms and premises containing health or leisure facilities. *(Added 27 of 1993 s. 38)*
 15. Slopes, gradients and retaining walls including sea walls (if any) comprising or forming part of any land which is in common ownership with the building. *(Added 27 of 1993 s. 38)*
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Schedule 1A

[ss. 3, 3A, 4, 40C & 42 &
Schs. 3 & 8]

Forms

Form 1

Instrument of Proxy for Meetings of Owners

Meeting of the owners of
(description of building)

I/We, (name(s) of owner(s)),
being the owner(s) of (unit and
address of building), hereby appoint
(name of proxy) *[or failing him (name of
alternative proxy)], as my/our proxy to attend and vote on my/our behalf
at the meeting of the owners of the building described above, to be held
on the day of *[and at any
adjournment thereof].

Dated this day of .

(Signature of owner(s))

*Delete where inapplicable.

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Form 2

Instrument of Proxy for Meetings of Corporation

The Incorporated Owners of
(description of building)

I/We, (name(s) of owner(s)),
being the owner(s) of
..... (unit and address of building),
hereby appoint (name of proxy)
*[or failing him (name of alternative
proxy)], as my/our proxy to attend and vote on my/our behalf at the
[*general meeting/annual general meeting] of The Incorporated Owners
of (description of building), to be
held on the day of *[and
at any adjournment thereof].

Dated this day of

(Signature of owner(s))

*Delete where inapplicable.

(Schedule 1A added 5 of 2007 s. 26)

Schedule 2

[ss. 2, 6, 7, 14, 18, 34K, 36A
& 42 & Schs. 3 & 6B]

(Amended 5 of 2007 s. 27; 20 of 2024 s. 38)

Composition and Procedure of Management Committee

(Format changes—E.R. 1 of 2015)

1. (1) The number of members of a management committee shall be as follows—
 - (a) where the building contains not more than 50 flats, the number of members shall be not less than 3;
 - (b) where the building contains more than 50 flats but not more than 100 flats, the number of members shall be not less than 7;
 - (c) where the building contains more than 100 flats, the number of members shall be not less than 9.
- (2) Subject to subparagraph (1), the number of members of a management committee shall be decided by a resolution of the owners under paragraph 2(1)(a).
- (3) Subject to subparagraph (1), the number of members of a management committee as decided under paragraph 2(1)(a) may be changed from time to time by a corporation resolution (except such a resolution passed at a general meeting of the corporation convened under paragraph 6A(1)). *(Amended 20 of 2024 s. 38)*
- (4) A management committee shall include the tenants' representative (if any) appointed under section 15(1).

(Replaced 5 of 2007 s. 27)

- 1A. In paragraph 1, *flats* (單位) does not mean any garage, carpark or carport.

(Added 69 of 2000 s. 23)

2. (1) At a meeting of owners convened under section 3, 3A, 4 or 40C, after a management committee is appointed—
- (a) the owners shall, by a resolution passed by a majority of the votes of the owners, decide the number of members of the management committee;
 - (b) subject to subparagraph (2), the owners shall, by resolution, appoint, from amongst the owners, the members of the management committee;
 - (c) the owners shall, by resolution—
 - (i) appoint a person, from amongst the members of the management committee, as the chairman of the management committee;
 - (ii) appoint a person, whether or not he is a member of the management committee, as the secretary of the management committee; and
 - (iii) appoint a person, whether or not he is a member of the management committee, as the treasurer of the management committee; and
 - (d) the owners may, by resolution, appoint a person, from amongst the members of the management committee, as the vice-chairman of the management committee.
- (Replaced 5 of 2007 s. 27)*

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- (2) The tenants' representative appointed under section 15(1) shall be deemed to be appointed by the owners as a member of the management committee.
 - (3) For the purposes of appointing the members of a management committee under subparagraph (1)(b)—
 - (a) where the number of candidates is not more than the number of members of the management committee to be appointed, the candidates shall be deemed to be appointed as members of the management committee, and a resolution to that effect shall be deemed to be passed under subparagraph (1)(b) accordingly;
 - (b) where there are more candidates than the number of members of the management committee to be appointed—
 - (i) the votes shall be given and counted in accordance with the simple or relative majority system of voting (otherwise known as the “first past the post” system of voting), under which—
 - (A) an owner may vote for not more than the number of members of the management committee to be appointed; and
 - (B) the candidates to be appointed as members of the management committee are those who obtain the greatest number of votes and then the next greatest and so on until the required number of members of the management committee is appointed;
 - (ii) if, after the counting is finished, a member of the management committee is still to be appointed and the most successful candidates remaining have an equal number of votes, the person who presides at the meeting shall determine the result by drawing

lots, and the candidate on whom the lot falls is to be appointed as a member of the management committee. (*Added 5 of 2007 s. 27*)

- (4) For the purposes of appointing the chairman, vice-chairman (if applicable), secretary and treasurer of a management committee under subparagraph (1)(c) and (d)—
- (a) where there is only one candidate for the office of the chairman, vice-chairman, secretary or treasurer of the management committee, the candidate shall be deemed to be appointed as the chairman, vice-chairman, secretary or treasurer, as the case may be, of the management committee, and a resolution to that effect shall be deemed to be passed under subparagraph (1)(c) or (d), as the case may be, accordingly;
 - (b) where there is more than one candidate for the office of the chairman, vice-chairman, secretary or treasurer of the management committee—
 - (i) the votes shall be given and counted in accordance with the simple or relative majority system of voting (otherwise known as the “first past the post” system of voting), under which the candidate to be appointed as the chairman, vice-chairman, secretary or treasurer, as the case may be, of the management committee is the candidate who obtains the greatest number of votes;
 - (ii) if, after the counting is finished, the most successful candidates for the office of the chairman, vice-chairman, secretary or treasurer of the management committee have an equal number of votes, the person who presides at the meeting shall determine the result by drawing lots, and the candidate on whom the lot falls is to be appointed as the chairman, vice-chairman, secretary or

treasurer, as the case may be, of the management committee. *(Added 5 of 2007 s. 27)*

- (5) A person who is not a member of the management committee appointed under subparagraph (1)(b) does not by virtue of his appointment as the secretary or treasurer of the management committee under subparagraph (1)(c)(ii) or (iii), as the case may be, become a member of the management committee. *(Added 5 of 2007 s. 27)*
- (6) For the purposes of appointing the members, chairman, vice-chairman (if applicable), secretary and treasurer of a management committee under subparagraph (1)(b), (c) and (d) at a meeting of owners convened under section 3, 3A, 4 or 40C—
- (a) if the meeting is convened under section 3, sections 3(7), (8), (9), (10), (10A), (13) and (14), 4A and 4B apply as they apply for the purposes of appointing a management committee under section 3;
 - (b) if the meeting is convened under section 3A, sections 3A(3E), (3F), (3G), (3H), (3HA), (3K) and (3L), 4A and 4B apply as they apply for the purposes of appointing a management committee under section 3A;
 - (c) if the meeting is convened under section 4, sections 4(9), (10), (11), (12), (12A), (15) and (16), 4A and 4B apply as they apply for the purposes of appointing a management committee under section 4; or
 - (d) if the meeting is convened under section 40C, sections 40C(8), (9), (10), (11), (12), (13), (13A), (13B), (14) and (15) and 40CA apply as they apply for the purposes of appointing a management committee under section 40C. *(Added 5 of 2007 s. 27. Amended 20 of 2024 s. 38)*

(Replaced 27 of 1993 s. 39)

3. Subject to section 14 and paragraph 4, the members of the management committee appointed under paragraph 2(1)(b) shall hold office until the members of a new management committee are appointed under paragraph 5(2)(a).

(Amended 69 of 2000 s. 23; 5 of 2007 s. 27)

4. (1) For the purposes of section 14(2) and paragraphs 2(1)(b), 5(2)(a), 6 and 6A, a person is not eligible to be appointed as a member of a management committee if he—
- (a) is an undischarged bankrupt at the time of the appointment or has, within the previous 5 years, either obtained a discharge in bankruptcy or entered into a voluntary arrangement within the meaning of the Bankruptcy Ordinance (Cap. 6) with his creditors, in either case without paying the creditors in full;
 - (b) has, within the previous 5 years, been convicted of an offence in Hong Kong or any other place for which he has been sentenced to imprisonment, whether suspended or not, for a term exceeding 3 months without the option of a fine. *(Replaced 5 of 2007 s. 27)*
- (2) A member of a management committee shall cease to be a member of the committee if he—
- (a) becomes disqualified for appointment as a member of a management committee under sub-paragraph (1);
 - (b) becomes incapacitated by physical or mental illness;

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- (c) absents himself from 3 or more consecutive meetings of the management committee without the consent of the management committee;
 - (d) resigns his office, by notice in writing delivered to the secretary of the management committee or (if he is the secretary or the office of the secretary is vacant) the chairman of the management committee; (*Amended 5 of 2007 s. 27*)
 - (da) in the case of a person deemed to be appointed under paragraph 2(2) in his capacity as the tenants' representative, ceases to be an occupier of a flat; (*Added 27 of 1993 s. 39*)
 - (e) ceases to be an owner, if appointed in his capacity as an owner; or (*Amended 5 of 2007 s. 27*)
 - (f) is removed from office by a corporation resolution. (*Amended 20 of 2024 s. 38*)
- (3) Every member of the management committee appointed under section 14(2) or paragraph 2(1)(b), 5(2)(a), 6 or 6A shall, within 21 days after the appointment, lodge with the secretary of the management committee a statement, in such form as the Land Registrar may specify, stating that he does not fall within the description of subparagraph (1)(a) or (b). (*Added 5 of 2007 s. 27. Amended 18 of 2014 s. 56*)
 - (4) A member of the management committee who fails to comply with subparagraph (3) shall cease to be such member. (*Added 5 of 2007 s. 27*)
 - (5) Subject to subparagraph (7), where a change occurs in any matter stated in a statement referred to in subparagraph (3), the person who made the statement shall, within 21 days after the change occurs, lodge with the secretary of the management committee another statement, in such form as

the Land Registrar may specify, stating the particulars of the change. *(Added 5 of 2007 s. 27. Amended 18 of 2014 s. 56)*

- (6) The secretary of the management committee shall—
- (a) after receiving a statement by virtue of subparagraph (3) from a member of the management committee appointed under paragraph 2(1)(b), cause the statement to be lodged with the Land Registrar within the period of 28 days referred to in section 7(1);
 - (b) within 28 days after receiving a statement by virtue of subparagraph (3) from a member of the management committee appointed under section 14(2) or paragraph 5(2)(a), 6 or 6A, or by virtue of subparagraph (5), lodge with the Land Registrar the statement. *(Added 5 of 2007 s. 27. Amended 18 of 2014 s. 56)*
- (7) Where the person referred to in subparagraph (5) is the secretary of the management committee, that person shall, within 28 days after the relevant change occurs, lodge with the Land Registrar a statement, in such form as the Land Registrar may specify, stating the particulars of the change. *(Added 5 of 2007 s. 27. Amended 18 of 2014 s. 56)*
- (8) Where, after the commencement* of Part 9 of the Statute Law (Miscellaneous Provisions) Ordinance 2014 (18 of 2014), a change occurs in any matter stated in a declaration lodged before the commencement* under subparagraph (3) that was in force immediately before the commencement*, the person who made the declaration must lodge a statement in accordance with subparagraph (5) or (7) as if that declaration were a statement lodged under subparagraph (3) on or after the commencement*. *(Added 18 of 2014 s. 56)*

Editorial Note:

* Commencement date: 5 January 2015.

5. (1) At the second annual general meeting of a corporation convened in accordance with paragraph 1(1)(b) of Schedule 3 and thereafter at every alternate annual general meeting— (*Amended 5 of 2007 ss. 27 & 65*)
- (a) all members of the management committee (other than the member (if any) deemed to be appointed under paragraph 2(2) in his capacity as the tenants' representative);
 - (b) if the secretary of the management committee is not a member of the management committee, the secretary; and
 - (c) if the treasurer of the management committee is not a member of the management committee, the treasurer,
- shall retire from office. (*Amended 5 of 2007 s. 27*)
- (2) At an annual general meeting of a corporation at which the members of the management committee retire under subparagraph (1)—
- (a) subject to subparagraph (2A), the corporation shall, by a corporation resolution passed at the general meeting, appoint, from amongst the owners, the members of a new management committee;
 - (b) the corporation shall, by a corporation resolution passed at the general meeting— (*Amended 20 of 2024 s. 38*)
 - (i) appoint a person, from amongst the members of the new management committee, as the chairman of the new management committee;

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- (ii) appoint a person, whether or not he is a member of the new management committee, as the secretary of the new management committee; and
 - (iii) appoint a person, whether or not he is a member of the new management committee, as the treasurer of the new management committee; and
 - (c) the corporation may, by a corporation resolution passed at the general meeting, appoint a person, from amongst the members of the new management committee, as the vice-chairman of the new management committee.
(Replaced 5 of 2007 s. 27. Amended 20 of 2024 s. 38)
 - (2A) The tenants' representative appointed under section 15(1) shall be deemed to be appointed by the corporation as a member of the new management committee. *(Added 5 of 2007 s. 27)*
 - (2B) For the purposes of appointing the members of the new management committee under subparagraph (2)(a)—
 - (a) where the number of candidates is not more than the number of members of the new management committee to be appointed, the candidates shall be deemed to be appointed as members of the new management committee, and a corporation resolution to that effect shall be deemed to be passed under subparagraph (2)(a) accordingly; *(Amended 20 of 2024 s. 38)*
 - (b) where there are more candidates than the number of members of the new management committee to be appointed—
 - (i) the votes shall be given and counted in accordance with the simple or relative majority system of voting (otherwise known as the “first past the post” system of voting), under which—

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- (A) an owner may vote for not more than the number of members of the new management committee to be appointed; and
 - (B) the candidates to be appointed as members of the new management committee are those who obtain the greatest number of votes and then the next greatest and so on until the required number of members of the new management committee is appointed;
 - (ii) if, after the counting is finished, a member of the new management committee is still to be appointed and the most successful candidates remaining have an equal number of votes, the person who presides at the meeting shall determine the result by drawing lots, and the candidate on whom the lot falls is to be appointed as a member of the new management committee. *(Added 5 of 2007 s. 27)*
 - (2C) For the purposes of appointing the chairman, vice-chairman (if applicable), secretary and treasurer of the new management committee under subparagraph (2)(b) and (c)—
 - (a) where there is only one candidate for the office of the chairman, vice-chairman, secretary or treasurer of the new management committee, the candidate shall be deemed to be appointed as the chairman, vice-chairman, secretary or treasurer, as the case may be, of the new management committee, and a corporation resolution to that effect shall be deemed to be passed under subparagraph (2)(b) or (c), as the case may be, accordingly; *(Amended 20 of 2024 s. 38)*
 - (b) where there is more than one candidate for the office of the chairman, vice-chairman, secretary or treasurer of the new management committee—

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- (i) the votes shall be given and counted in accordance with the simple or relative majority system of voting (otherwise known as the “first past the post” system of voting), under which the candidate to be appointed as the chairman, vice-chairman, secretary or treasurer, as the case may be, of the new management committee is the candidate who obtains the greatest number of votes;
 - (ii) if, after the counting is finished, the most successful candidates for the office of the chairman, vice-chairman, secretary or treasurer of the new management committee have an equal number of votes, the person who presides at the meeting shall determine the result by drawing lots, and the candidate on whom the lot falls is to be appointed as the chairman, vice-chairman, secretary or treasurer, as the case may be, of the new management committee. (*Added 5 of 2007 s. 27*)
 - (3) Members of the management committee who retire under sub-paragraph (1) shall be eligible for re-appointment under sub-paragraph (2).
 - (4) A person who is not a member of the new management committee appointed under subparagraph (2)(a) does not by virtue of his appointment as the secretary or treasurer of the new management committee under subparagraph (2)(b)(ii) or (iii), as the case may be, become a member of the new management committee. (*Added 5 of 2007 s. 27*)

5A. A member of a management committee who ceases to be a member of the committee under paragraph 4(2) or (4) or retires from office

under paragraph 5(1) and does not seek re-appointment to the committee shall, within 14 days of his ceasing to be a member or of his retirement, as the case may be, hand over to the secretary or, if the office of the secretary is vacant, the chairman of the management committee any books or records of account, papers, documents and other records in respect of the control, management and administration of the building together with any movable property belonging to the corporation that are under his control or in his custody or possession.

(Added 27 of 1993 s. 39. Amended 5 of 2007 s. 27)

6. (1) Notwithstanding paragraph 1, subject to subparagraph (1A) and paragraph 6A, a vacancy in a management committee which occurs other than by reason of the expiration of the term of office may be filled by the corporation or the management committee under subparagraph (3), (4) or (5), as the case requires. *(Replaced 5 of 2007 s. 27)*
- (1A) If the vacancy is caused by the tenants' representative ceasing to be a member of the management committee for whatever reason, the vacancy may be filled by the approved association (within the meaning of section 15(2)) appointing a new tenants' representative under section 15(1). *(Replaced 5 of 2007 s. 27)*
- (1B) *(Repealed 5 of 2007 s. 27)*
- (2) *(Repealed 5 of 2007 s. 27)*
- (3) If the vacancy occurs in the office of a member of a management committee (other than a vacancy caused by the tenants' representative ceasing to be a member of the management committee)—

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- (a) the corporation may, by a corporation resolution, appoint an owner to fill the vacancy till the next annual general meeting of the corporation at which the members of the management committee retire under paragraph 5(1); or
 - (b) if no general meeting of the corporation has been so convened or no appointment is made to fill the vacancy at a general meeting so convened, the management committee may appoint an owner to fill the vacancy till the next general meeting of the corporation. (*Added 5 of 2007 s. 27*)
 - (4) If the vacancy occurs in the office of the chairman or vice-chairman of a management committee—
 - (a) the corporation may, by a corporation resolution, appoint a person, from amongst the members of the management committee, to fill the vacancy till the next annual general meeting of the corporation at which the members of the management committee retire under paragraph 5(1); or
 - (b) if no general meeting of the corporation has been so convened or no appointment is made to fill the vacancy at a general meeting so convened, the members of the management committee may appoint a person, from amongst themselves, to fill the vacancy till the next general meeting of the corporation. (*Added 5 of 2007 s. 27*)
 - (5) If the vacancy occurs in the office of the secretary or treasurer of a management committee—
 - (a) the corporation may, by a corporation resolution, appoint a person, whether or not he is a member of the management committee, to fill the vacancy till the next annual general meeting of the corporation at which the members of the management committee retire under paragraph 5(1); or

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- (b) if no general meeting of the corporation has been so convened or no appointment is made to fill the vacancy at a general meeting so convened, the management committee may appoint a person, whether or not he is a member of the management committee, to fill the vacancy till the next general meeting of the corporation.
(*Added 5 of 2007 s. 27*)
 - (6) A person who is not a member of a management committee does not by virtue of his appointment as the secretary or treasurer of the management committee under subparagraph (5)(a) or (b), as the case may be, become a member of the management committee. (*Added 5 of 2007 s. 27*)
 - (7) For the purposes of filling the vacancy occurring in the office of a member of a management committee under subparagraph (3)(a)—
 - (a) where the number of candidates is not more than the number of members of the management committee to be appointed, the candidates shall be deemed to be appointed as members of the management committee, and a corporation resolution to that effect shall be deemed to be passed under subparagraph (3)(a) accordingly;
 - (b) where there are more candidates than the number of members of the management committee to be appointed—
 - (i) the votes shall be given and counted in accordance with the simple or relative majority system of voting (otherwise known as the “first past the post” system of voting), under which—
 - (A) an owner may vote for not more than the number of members of the management committee to be appointed; and

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- (B) the candidates to be appointed as members of the management committee are those who obtain the greatest number of votes and then the next greatest and so on until the required number of members of the management committee is appointed;
 - (ii) if, after the counting is finished, a member of the management committee is still to be appointed and the most successful candidates remaining have an equal number of votes, the person who presides at the meeting shall determine the result by drawing lots, and the candidate on whom the lot falls is to be appointed as a member of the management committee. (*Added 5 of 2007 s. 27*)
 - (8) For the purposes of filling the vacancy occurring in the office of the chairman or vice-chairman of a management committee under subparagraph (4)(a), or the office of the secretary or treasurer of a management committee under subparagraph (5)(a)—
 - (a) where there is only one candidate for the office of the chairman, vice-chairman, secretary or treasurer of the management committee, the candidate shall be deemed to be appointed as the chairman, vice-chairman, secretary or treasurer, as the case may be, of the management committee, and a corporation resolution to that effect shall be deemed to be passed under subparagraph (4)(a) or (5)(a), as the case may be, accordingly;
 - (b) where there is more than one candidate for the office of the chairman, vice-chairman, secretary or treasurer of the management committee—
 - (i) the votes shall be given and counted in accordance with the simple or relative majority system of

voting (otherwise known as the “first past the post” system of voting), under which the candidate to be appointed as the chairman, vice-chairman, secretary or treasurer, as the case may be, of the management committee is the candidate who obtains the greatest number of votes;

- (ii) if, after the counting is finished, the most successful candidates for the office of the chairman, vice-chairman, secretary or treasurer of the management committee have an equal number of votes, the person who presides at the meeting shall determine the result by drawing lots, and the candidate on whom the lot falls is to be appointed as the chairman, vice-chairman, secretary or treasurer, as the case may be, of the management committee. (*Added 5 of 2007 s. 27. Amended 20 of 2024 s. 38*)

- 6A. (1) Notwithstanding paragraphs 1 and 9, where the number of vacancies occurring in the offices of members of a management committee is more than 50% of the number of members of the management committee as decided under paragraph 2(1)(a) or, if that number of members has been changed under paragraph 1(3), 50% of the number of members so changed—
- (a) the chairman of the management committee may convene a general meeting of the corporation for the sole purpose of filling the vacancies in the management committee; or
 - (b) if one of the vacancies occurs in the office of the chairman of the management committee, the remaining

members of the management committee may appoint a person, from amongst themselves, to convene a general meeting of the corporation for the sole purpose of filling the vacancies in the management committee.

- (2) For the purposes of filling the vacancies in a management committee under subparagraph (1)—
- (a) paragraph 6(3)(a), (4)(a), (5)(a), (6), (7) and (8) shall apply as it applies where the number of vacancies occurring in the offices of members of a management committee is not more than 50% of the number of members of the management committee as decided under paragraph 2(1)(a) or, if that number of members has been changed under paragraph 1(3), 50% of the number of members so changed; and
 - (b) Schedule 3 (except paragraph 1 of that Schedule) shall, subject to the following modifications, apply as it applies to a general meeting of the corporation convened by a management committee—
 - (i) where the general meeting of the corporation is convened under subparagraph (1)(a) and one of the vacancies occurs in the office of the secretary of the management committee, the references to the secretary of the management committee in Schedule 3 shall be construed as references to the chairman of the management committee;
 - (ii) where the general meeting of the corporation is convened under subparagraph (1)(b), the references to the chairman of the management committee in Schedule 3 shall be construed as references to the person appointed under that subparagraph to convene the meeting;

- (iii) where the general meeting of the corporation is convened under subparagraph (1)(b) and one of the vacancies occurs in the office of the secretary of the management committee, the references to the secretary of the management committee in Schedule 3 shall be construed as references to the person appointed under that subparagraph to convene the meeting.

(Added 5 of 2007 s. 27)

- 7. A management committee shall meet at least once in every period of 3 months.

(Replaced 27 of 1993 s. 39)

- 8. (1) A meeting of a management committee—
 - (a) may be convened at any time by the chairman or the vice-chairman (if any) in the absence of the chairman; and
 - (b) shall be convened by the secretary, at the written request of any 2 members thereof, within 14 days of receiving such request, and held within 21 days of receiving such request. *(Amended 5 of 2007 s. 27; 20 of 2024 s. 38)*
- (2) The secretary shall, at least 7 days before the date of the meeting of the management committee, give notice of the meeting to each member of the management committee and (if the treasurer of the management committee is not a member of the management committee) the treasurer of the

management committee, and display the notice of meeting in a prominent place in the building. *(Replaced 5 of 2007 s. 27)*

(2AA) The notice of meeting shall specify—

- (a) the date, time and place of the meeting; and
- (b) the resolutions (if any) that are to be proposed at the meeting. *(Added 5 of 2007 s. 27)*

(2A) The notice of meeting may be given—

- (a) by delivering it personally to the member of the management committee or (if the treasurer of the management committee is not a member of the management committee) the treasurer of the management committee;
- (b) by sending it by post to the member or, if applicable, the treasurer, at his last known address; or
- (c) by leaving it at the flat of the member or, if applicable, the treasurer or depositing it in the letter box for that flat. *(Replaced 5 of 2007 s. 27)*

(3) *(Repealed 5 of 2007 s. 27)*

8A. In paragraphs 9, 10, 10A, 10B and 11A, a reference to a meeting of a management committee is a reference to such a meeting convened under paragraph 8.

(Added 20 of 2024 s. 38)

9. The quorum at a meeting of the management committee shall be 50% of the members of the management committee (rounded up

to the nearest whole number) or 3 such members, whichever is the greater.

(Replaced 27 of 1993 s. 39)

10. (1) A meeting of a management committee shall be presided over by—
 - (a) the chairman; or
 - (aa) in the absence of the chairman, the vice-chairman (if any); or *(Added 27 of 1993 s. 39)*
 - (b) in the absence of the chairman and the vice-chairman (if any), a member appointed as chairman for that meeting by the management committee.
- (2) All acts, matters or things authorized or required to be done by the management committee may be decided by a resolution passed by a majority of the votes of members of the management committee present at a meeting of the management committee.
- (3) At a meeting of the management committee, each member present shall have one vote on a question before the committee and if there is an equality of votes the person presiding over the meeting shall have, in addition to a deliberative vote, a casting vote.
- (4) The secretary shall keep minutes of the proceedings at every meeting of a management committee.
- (4A) The minutes referred to in subparagraph (4) shall be certified by the person presiding over the meeting as containing a true record of the proceedings of the meeting of the management committee to which they relate. *(Added 27 of 1993 s. 39)*

- (4B) For every meeting of the management committee, the management committee must display the certified minutes in a prominent place in the building within 28 days after the date of the meeting, and cause the minutes to remain so displayed for at least 7 consecutive days. *(Replaced 20 of 2024 s. 38)*

Note—

See section 36A for the management committee's duty to keep the certified minutes for a meeting of the management committee. *(Added 20 of 2024 s. 38)*

- (5) *(Repealed 20 of 2024 s. 38)*

- 10A. (1) Subject to subparagraph (3), if a specified person requests, in writing, the corporation to supply the specified person with a copy of the certified minutes for a meeting of the management committee, the management committee must supply the specified person with the copy within 28 days after the date on which the request is made.
- (2) The management committee—
- (a) may impose a reasonable copying charge for supplying the specified person with the copy in hard copy form; and
 - (b) must not impose any charge for supplying the specified person with the copy in electronic form.
- (3) If—
- (a) the request mentioned in subparagraph (1) is a request for a copy in hard copy form; and
 - (b) the management committee imposes under subparagraph (2)(a) a copying charge for supplying the specified person with the copy,

the management committee is not required to comply with the request unless the specified person pays the charge.

- (4) If the Authority or an authorized officer requests, in writing, the corporation to supply the Authority or officer with a copy of the certified minutes for a meeting of the management committee, the management committee must supply the Authority or officer with the copy—

- (a) without imposing any charge; and
- (b) within 28 days after the date on which the request is made.

- (5) In this paragraph—

specified person (指明人士) means—

- (a) an owner;
- (b) the tenants' representative;
- (c) a registered mortgagee; or
- (d) any person duly authorized in writing by an owner or registered mortgagee to make a request mentioned in subparagraph (1).

(Replaced 20 of 2024 s. 38)

- 10B. (1) Without limiting paragraphs 10 and 10A and section 36A, this paragraph applies in relation to a meeting of a management committee if—

- (a) a tender submitted for any large-scale maintenance procurement in respect of the building has been assessed at the meeting; or
- (b) a proposal for varying or terminating, or avoiding under section 28I(1)(b), a contract for any large-scale

maintenance procurement in respect of the building has been considered at the meeting.

- (2) The management committee must, within 28 days after the date of the meeting, supply each of the owners and the tenants' representative (if any) (***recipient***) with a copy of the certified minutes for the meeting—
- (a) by delivering a copy of the minutes in hard copy form personally to the recipient;
 - (b) by sending a copy of the minutes in hard copy form by post to the recipient at the recipient's last known address;
 - (c) by leaving a copy of the minutes in hard copy form at the recipient's flat or depositing such a copy in the letter box for that flat; or
 - (d) by sending validly a copy of the minutes in electronic form to the recipient.

(Added 20 of 2024 s. 38)

11. (1) Where an owner or other person, being a body corporate, is appointed as a member of a management committee under this Schedule that body corporate may appoint a director or other officer of that body or some other individual to act as its representative (***authorized representative*** (獲授權代表)) for the purposes of this Ordinance as if the authorized representative were a member of the management committee in his own right and paragraph 4(1), (2)(a), (b), (c), (d) and (f), (3), (4) and (5) shall apply to the authorized representative.
(Amended 5 of 2007 s. 27)
- (2) If an authorized representative ceases to be a member of a management committee under paragraph 4(2)(a), (b), (c),

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(d) or (f) or (4), the body corporate may appoint another authorized representative in his place, and paragraph 4(1), (2)(a), (b), (c), (d) and (f), (3), (4) and (5) shall apply to that other authorized representative. *(Replaced 5 of 2007 s. 27)*

(Added 27 of 1993 s. 39)

- 11A. Subject to this Ordinance, the procedure at meetings of a management committee is to be determined by the management committee.

(Added 20 of 2024 s. 38)

12. In the event of any inconsistency between this Schedule and the terms of a deed of mutual covenant or any other agreement, this Schedule shall prevail.

(Added 27 of 1993 s. 39)

(Amended 27 of 1993 ss. 39 & 42)

Schedule 3

[ss. 2, 8, 10, 27, 28F, 28I,
28J, 30, 36A & 42 & Schs. 2,
6B, 6C, 7 & 11]

(Amended 5 of 2007 s. 28; 20 of 2024 s. 39)

Meetings and Procedure of Corporation

1. (1) The management committee shall convene—
 - (a) the first annual general meeting of a corporation not later than 15 months after the date of the registration of the corporation;
 - (b) an annual general meeting not earlier than 12 months, and not later than 15 months, after the date of the first or previous annual general meeting; *(Replaced 27 of 1993 s. 40)*
 - (c) a general meeting of the corporation at any time for such purposes as the management committee thinks fit.
 - (2) The chairman of the management committee shall convene a general meeting of the corporation at the written request of not less than 5% of the owners for the purposes specified by such owners within 14 days of receiving such request, and hold the general meeting within 45 days of receiving such request. *(Amended 5 of 2007 s. 28; 20 of 2024 s. 39)*
-
- 1A. In this Schedule, a reference to a meeting of the corporation—

- (a) is a reference to a general meeting of the corporation convened under paragraph 1; and
- (b) if a meeting mentioned in sub-subparagraph (a) is adjourned—includes the adjourned meeting.

(Added 20 of 2024 s. 39)

- 2. (1) The secretary of the management committee shall, at least 14 days before the date of the meeting of the corporation, give notice of the meeting to each owner and the tenants' representative (if any). *(Replaced 5 of 2007 s. 28)*

(1AA) The notice of meeting shall specify—

- (a) the date, time and place of the meeting; and
- (b) the resolutions (if any) that are to be proposed at the meeting or other matters that are to be discussed at the meeting. *(Added 5 of 2007 s. 28)*

(1A) The notice of meeting may be given— *(Amended 5 of 2007 s. 28)*

- (a) by delivering it personally to the owner or tenants' representative (if any); or
- (b) by sending it by post to the owner or tenants' representative (if any) at his last known address; or
- (c) by leaving it at the flat of the owner or tenants' representative (if any) or depositing it in the letter box for that flat. *(Replaced 5 of 2007 s. 28)*

(Added 27 of 1993 s. 40. Amended 12 of 1998 s. 8; 5 of 2007 s. 28)

- (2) The secretary shall also, at least 14 days before the date of the meeting of the corporation, display the notice of meeting

in a prominent place in the building. *(Replaced 5 of 2007 s. 28)*

3.
 - (1) A meeting of the corporation shall be presided over by—
 - (a) the chairman of the management committee;
 - (b) in the absence of the chairman of the management committee, the vice-chairman (if any) of the management committee; or
 - (c) in the absence of the chairman and the vice-chairman (if any) of the management committee, a person appointed by the owners present at the meeting from amongst themselves. *(Replaced 5 of 2007 s. 28)*
 - (2) *(Repealed 5 of 2007 s. 28)*
 - (3) Subject to section 10(1) and paragraphs 5(2), (2B) and (2C), 6(3)(a), (4)(a), (5)(a), (7) and (8) and 6A(2)(a) of Schedule 2, all matters arising at a meeting of the corporation at which a quorum is present shall be decided by a majority of the votes of the owners voting either personally or by proxy. *(Amended 5 of 2007 s. 28)*
 - (4) If there is an equality of votes the person presiding over the meeting shall have, in addition to a deliberative vote, a casting vote.
 - (5)
 - (a) At any meeting of the corporation an owner shall, unless the deed of mutual covenant (if any) otherwise provides and subject to sub-paragraph (6), have one vote in respect of each share which he owns. *(Amended 8 of 1993 s. 2; 5 of 2007 s. 28)*
 - (b) Where 2 or more persons are the co-owners of a share, the vote in respect of the share may be cast—

-
- (i) by a proxy jointly appointed by the co-owners;
 - (ii) by a person appointed by the co-owners from amongst themselves; or
 - (iii) if no appointment is made under sub-sub-subparagraph (i) or (ii), either by one of the co-owners personally or by a proxy appointed by one of the co-owners. *(Replaced 5 of 2007 s. 28)*
 - (c) Where 2 or more persons are the co-owners of a share and more than one of the co-owners seeks to cast a vote in respect of the share, only the vote that is cast, whether personally or by proxy, by the co-owner whose name, in order of priority, stands highest in relation to that share in the register kept at the Land Registry shall be treated as valid. *(Added 5 of 2007 s. 28)*
- (5A) If—
- (a) a co-owner of a share is a corporate flat owner; and
 - (b) an authorized natural person is available to act for the corporate flat owner for a meeting of the corporation,
- for the purposes of subparagraph (5)(b), the authorized natural person is taken to be a co-owner eligible to be appointed under sub-sub-subparagraph (ii) of that subparagraph to cast the vote in respect of the share at the meeting. *(Added 20 of 2024 s. 39)*
- (6) If a registered mortgagee is in possession of an owner's flat, such mortgagee shall, to the exclusion of the owner, be entitled to exercise the voting rights of such owner.
 - (7) No resolution passed at any meeting of the corporation shall have effect unless the same was set forth in the notice given in accordance with paragraph 2 or is ancillary or incidental to a resolution or other matter so set forth. *(Amended 5 of 2007 s. 28)*

-
- (8) Nothing in sub-paragraph (7) shall preclude the passing of a resolution as amended at a meeting of a corporation.
4. (1) At a meeting of the corporation, an owner may cast a vote personally or by proxy. *(Amended 5 of 2007 s. 28)*
- (1A) However, if the owner is a corporate flat owner and an authorized natural person is available to act for the corporate flat owner for the meeting—
- (a) if the corporate flat owner has not appointed a proxy for the meeting—the corporate flat owner is not permitted to do so; or
- (b) if the corporate flat owner has appointed a proxy for the meeting—the instrument appointing the proxy is regarded as revoked. *(Added 20 of 2024 s. 39)*
- (2) The instrument appointing a proxy shall be in the form set out in Form 2 in Schedule 1A, and— *(Amended 5 of 2007 s. 28)*
- (a) shall be signed by the owner; or
- (b) if the owner is a body corporate, shall, notwithstanding anything to the contrary in its constitution, be impressed with the seal or chop of the body corporate and signed by a person authorized by the body corporate in that behalf. *(Amended 5 of 2007 s. 28)*
- (3) The instrument appointing a proxy shall be lodged with the secretary of the management committee at least 48 hours before the time for the holding of the meeting. *(Replaced 5 of 2007 s. 28)*

-
- (4) The instrument appointing a proxy is valid only if it is made and lodged in accordance with subparagraphs (2) and (3). *(Added 5 of 2007 s. 28)*
 - (5) Where an instrument appointing a proxy is lodged with the secretary of the management committee—
 - (a) the secretary must acknowledge receipt of the instrument by leaving a receipt at the flat of the owner who made the instrument, or depositing the receipt in the letter box for that flat, before the time for the holding of the meeting; and *(Replaced 20 of 2024 s. 39)*
 - (b) the chairman of the management committee or, if he is absent, the person who presides at the meeting, shall determine the validity of the instrument in accordance with subparagraphs (1A) and (4). *(Added 5 of 2007 s. 28. Amended 20 of 2024 s. 39)*
 - (5A) For a meeting of the corporation, the secretary must—
 - (a) set out on a list every flat (if any) in respect of which an instrument appointing a proxy is lodged with the secretary for the meeting; and
 - (b) display the list (if any) in a prominent place in the place of the meeting before the time for the holding of the meeting, and cause the list to remain so displayed until the conclusion of the meeting. *(Added 20 of 2024 s. 39)*
 - (6) *(Repealed 20 of 2024 s. 39)*

Note—

See section 36A for the management committee's duty to keep the instruments for the appointment of proxies for a meeting of the corporation. *(Added 20 of 2024 s. 39)*

- 4A. (1) A natural person authorized by a corporate flat owner under

subparagraph (2) in respect of a meeting of the corporation may act for the corporate flat owner for the meeting.

- (2) A corporate flat owner may by written notice (***authorization notice***) given in accordance with subparagraph (4) authorize 1 natural person for the purposes of subparagraph (1).
- (3) Subparagraph (2) does not prevent a corporate flat owner from, after it has authorized a person as an authorized natural person in respect of a meeting of the corporation (***original authorized natural person***), authorizing another person as an authorized natural person in respect of the meeting in substitution of the original authorized natural person.
- (4) The authorization notice—
 - (a) must be given in the specified form;
 - (b) must, despite anything to the contrary in the corporate flat owner's constitution, be—
 - (i) impressed with its seal or chop; and
 - (ii) signed by a person authorized by it in that behalf; and
 - (c) must be given to the secretary of the management committee at least 48 hours before the time for the holding of the meeting—
 - (i) by lodging the original of the notice in hard copy form with the secretary; or
 - (ii) by sending validly a copy of the notice in electronic form to the secretary.
- (5) If an authorization notice is given by a corporate flat owner to the secretary of the management committee in respect of a meeting of the corporation—
 - (a) the secretary must acknowledge receipt of the notice before the time for the holding of the meeting—

- (i) by leaving a receipt in hard copy form at the corporate flat owner's flat in the building or depositing such a receipt in the letter box for that flat; or
 - (ii) by sending validly a receipt in electronic form to the corporate flat owner; and
 - (b) the chairman of the management committee or, if the chairman is absent, the person who presides at the meeting must determine whether subparagraph (4) is complied with in relation to the authorization notice.
- (6) For a meeting of the corporation, the secretary must—
- (a) set out on a list every flat (if any) in respect of which an authorization notice is given to the secretary for the meeting; and
 - (b) display the list (if any) in a prominent place in the place of the meeting before the time for the holding of the meeting, and cause the list to remain so displayed until the conclusion of the meeting.
- (7) This paragraph does not apply in relation to a meeting of the corporation if—
- (a) for an original meeting—a notice of the meeting; or
 - (b) for an adjourned meeting—a notice of the original meeting,
- is given under paragraph 2 before the date on which the Building Management (Amendment) Ordinance 2024 (20 of 2024) comes into operation*.

Note—

See section 36A for the management committee's duty to keep certain documents in respect of an authorization under paragraph 4A.

(Added 20 of 2024 s. 39)

Editorial Note:

* Operation date: 13 July 2025.

- 4B. (1) An authorized natural person who attends a meeting of the corporation on behalf of a corporate flat owner under paragraph 4A(1) is, for all purposes relating to the meeting, taken to be the corporate flat owner present at the meeting.
- (2) A corporate flat owner is, for all purposes relating to a meeting of the corporation, taken to cast a vote personally at the meeting if an authorized natural person casts a vote on behalf of the corporate flat owner at the meeting under paragraph 4A(1).

(Added 20 of 2024 s. 39)

5. (1) The quorum at a meeting of the corporation shall be— *(Amended 69 of 2000 s. 24)*
- (a) 20% of the owners, in the case of a meeting at which a resolution for the dissolution of the management committee under section 30 is proposed; or
- (b) 10% of the owners in any other case.
- (2) A proxy appointed by an owner to attend and vote on behalf of the owner at a meeting of the corporation shall, for the purposes of the meeting, be treated as being the owner present at the meeting. *(Replaced 5 of 2007 s. 28)*

- 5A. (1) This paragraph applies if a meeting of the corporation is adjourned. *(Replaced 20 of 2024 s. 39)*
- (2) A valid instrument appointing a proxy made for the purposes of the original meeting shall remain valid for the purposes of the adjourned meeting unless— *(Amended 20 of 2024 s. 39)*
- (a) contrary intention is shown on the instrument;
 - (b) the instrument is revoked; or
 - (c) the instrument is replaced by a new instrument appointing a proxy.
- (3) A corporate flat owner's authorized natural person for the original meeting is, for the purposes of this Schedule, also taken to be the corporate flat owner's authorized natural person for the adjourned meeting unless—
- (a) contrary intention is shown on the notice given under paragraph 4A(2) in respect of the original meeting ***(original authorization notice)***;
 - (b) the original authorization notice is revoked; or
 - (c) the corporate flat owner authorizes another person under paragraph 4A(2) in respect of the adjourned meeting. *(Added 20 of 2024 s. 39)*

(Added 5 of 2007 s. 28)

6. (1) The secretary of the management committee shall keep minutes of the proceedings at every meeting of the corporation.
- (2) The minutes referred to in subparagraph (1) shall be certified by the person presiding over the meeting as containing a true record of the proceedings of the meeting to which they relate.

- (3) For every meeting of the corporation, the management committee must display the certified minutes in a prominent place in the building within 28 days after the date of the meeting, and cause the minutes to remain so displayed for at least 7 consecutive days. *(Replaced 20 of 2024 s. 39)*

Note—

See section 36A for the management committee's duty to keep the certified minutes for a meeting of the corporation. *(Added 20 of 2024 s. 39)*

(Added 27 of 1993 s. 40. Amended 20 of 2024 s. 39)

- 6A. (1) Subject to subparagraph (3), if a specified person requests, in writing, the corporation to supply the specified person with a copy of the certified minutes for a meeting of the corporation, the management committee must supply the specified person with the copy within 28 days after the date on which the request is made.
- (2) The management committee—
- (a) may impose a reasonable copying charge for supplying the specified person with the copy in hard copy form; and
 - (b) must not impose any charge for supplying the specified person with the copy in electronic form.
- (3) If—
- (a) the request mentioned in subparagraph (1) is a request for a copy in hard copy form; and
 - (b) the management committee imposes under subparagraph (2)(a) a copying charge for supplying the specified person with the copy,

the management committee is not required to comply with the request unless the specified person pays the charge.

- (4) If the Authority or an authorized officer requests, in writing, the corporation to supply the Authority or officer with a copy of the certified minutes for a meeting of the corporation, the management committee must supply the Authority or officer with the copy—

- (a) without imposing any charge; and
- (b) within 28 days after the date on which the request is made.

- (5) In this paragraph—

specified person (指明人士) means—

- (a) an owner;
- (b) the tenants' representative;
- (c) a registered mortgagee; or
- (d) any person duly authorized in writing by an owner or registered mortgagee to make a request mentioned in subparagraph (1).

(Replaced 20 of 2024 s. 39)

7. Subject to this Ordinance, the procedure at a meeting of the corporation is as is determined by the corporation.

(Added 27 of 1993 s. 40. Amended 20 of 2024 s. 39)

8. In the event of any inconsistency between this Schedule and the terms of a deed of mutual covenant or any other agreement, this

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Schedule shall prevail.

(Added 27 of 1993 s. 40)

9. *(Repealed 5 of 2007 s. 28)*

(Amended 27 of 1993 ss. 40 & 42)

Schedule 4

[ss. 18 & 42]

(Amended 5 of 2007 s. 29)

Maximum Allowances Payable to Chairman, Vice-chairman, Secretary and Treasurer of Management Committee

(Amended 5 of 2007 s. 29)

Item	Number of flats	Maximum per month for each person \$
1.	Not more than 50	600
2.	More than 50 but not more than 100	900
3.	More than 100	1,200

(Added 27 of 1993 s. 41. Amended 5 of 2007 s. 29)

Schedule 5

[ss. 2D, 21 & 42]

(Amended 5 of 2007 s. 30; 20 of 2024 s. 40)

Annual Budget

1. The amount to be determined by the management committee under section 21(1) shall be based upon a budget prepared by the management committee for the period specified by the management committee under that subsection.
2. The budget referred to in paragraph 1 shall set out the sums which in the opinion of the management committee will be reasonably necessary to meet payments of the kind specified in section 20(1) and shall, if a contingency fund is established under section 20(2), set out the sums which in the opinion of the management committee will be reasonably necessary to meet payments of the kind specified in that subsection.
3. A revised budget may be prepared if the management committee is of the opinion that any sum set out in a budget in respect of which the revised budget is to be prepared is insufficient to meet the proposed expenditure which that sum was intended to meet.
4.
 - (1) Subject to subparagraph (3), if a specified person requests, in writing, the corporation to supply the specified person with a copy of a budget referred to in this Schedule, the management committee must supply the specified person with the copy within 28 days after the date on which the request is made.
 - (2) The management committee—

-
- (a) may impose a reasonable copying charge for supplying the specified person with the copy in hard copy form; and
 - (b) must not impose any charge for supplying the specified person with the copy in electronic form.
 - (3) If—
 - (a) the request mentioned in subparagraph (1) is a request for a copy in hard copy form; and
 - (b) the management committee imposes under subparagraph (2)(a) a copying charge for supplying the specified person with the copy,

the management committee is not required to comply with the request unless the specified person pays the charge.
 - (4) If the Authority or an authorized officer requests, in writing, the corporation to supply the Authority or officer with a copy of a budget referred to in this Schedule, the management committee must supply the Authority or officer with the copy—
 - (a) without imposing any charge; and
 - (b) within 28 days after the date on which the request is made.
 - (5) In this paragraph—

specified person (指明人士) means—

 - (a) an owner;
 - (b) the tenants' representative;
 - (c) a registered mortgagee; or
 - (d) any person duly authorized in writing by an owner or registered mortgagee to make a request mentioned in subparagraph (1).

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(Replaced 20 of 2024 s. 40)

5. *(Repealed 20 of 2024 s. 40)*

(Schedule 5 added 27 of 1993 s. 41)

Schedule 6

[ss. 27B & 42 & Sch. 11]

(Amended 5 of 2007 s. 31; 20 of 2024 s. 41)

Accounts

1. *(Repealed 20 of 2024 s. 41)*

1A. The management committee shall—

- (a) at the written request of not less than 5% of the owners, permit those owners or any person appointed by those owners to inspect any bills, invoices, vouchers, receipts or other documents referred to in section 27(6) at any reasonable time; and
- (b) permit any person authorized by the court to inspect any bills, invoices, vouchers, receipts or other documents referred to in section 27(6) at any reasonable time.

(Added 5 of 2007 s. 31. Amended 20 of 2024 s. 41)

1B. For the purposes of paragraph 1A(b), an owner may apply to the court for an order authorizing the owner, or any other person named in the application, to inspect any bills, invoices, vouchers, receipts or other documents referred to in section 27(6).

(Added 5 of 2007 s. 31. Amended 20 of 2024 s. 41)

1C. The court may make an order under paragraph 1B only if it is satisfied that—

- (a) the application is made in good faith; and
- (b) the inspection applied for is for a proper purpose.

(Added 5 of 2007 s. 31)

2. Within 1 month after each consecutive period of 3 months, or such shorter period as the management committee may select, the treasurer shall prepare a summary of the income and expenditure of the corporation in respect of that period, display a copy of the summary in a prominent place in the building, and cause it to remain so displayed for at least 7 consecutive days.

(Amended 5 of 2007 s. 31)

3.
 - (1) Subject to subparagraph (3), if a specified person requests, in writing, the corporation to supply the specified person with a copy of—
 - (a) any financial statements and, if applicable, accountant's report prepared under section 27; or
 - (b) a summary of the income and expenditure of the corporation prepared under paragraph 2,the management committee must supply the specified person with the copy within 28 days after the date on which the request is made.
 - (2) The management committee—
 - (a) may impose a reasonable copying charge for supplying the specified person with the copy in hard copy form; and
 - (b) must not impose any charge for supplying the specified person with the copy in electronic form.
 - (3) If—
 - (a) the request mentioned in subparagraph (1) is a request for a copy in hard copy form; and
 - (b) the management committee imposes under subparagraph (2)(a) a copying charge for supplying the specified person with the copy,

the management committee is not required to comply with the request unless the specified person pays the charge.

- (4) If the Authority or an authorized officer requests, in writing, the corporation to supply the Authority or officer with a copy of any document mentioned in subparagraph (1), the management committee must supply the Authority or officer with the copy—

- (a) without imposing any charge; and
- (b) within 28 days after the date on which the request is made.

- (5) In this paragraph—

specified person (指明人士) means—

- (a) an owner;
- (b) the tenants' representative;
- (c) a registered mortgagee; or
- (d) any person duly authorized in writing by an owner or registered mortgagee to make a request mentioned in subparagraph (1).

(Replaced 20 of 2024 s. 41)

4. *(Repealed 20 of 2024 s. 41)*

(Schedule 6 added 27 of 1993 s. 41)

Schedule 6A

[ss. 28D, 28E, 28F, 28J, 28L
& 42 & Sch. 7]

Requirements for Tendering Specified for Subdivision 2 of Division 5 of Part IV

1. Interpretation (Schedule 6A)

In this Schedule—

deadline (入標期限), in relation to the submission of a tender for any procurement, means the time after which the submission may no longer be made under—

- (a) subject to sub-subparagraph (b), the terms of the invitation to tender issued for the procurement; or
- (b) if the invitation is revised—the terms of the revised invitation issued for the procurement.

2. Content of invitation to tender

- (1) An invitation to tender issued for the procurement must set out clearly—
 - (a) the nature of the supplies, goods or services to which the procurement relates; and
 - (b) a specified time on a specified day after which a tender may no longer be submitted for the procurement.
- (2) To avoid doubt, subparagraph (1)(b) does not prevent the invitation to tender from containing any terms in respect of a postponement, for reasons such as inclement weather, of the time after which a tender may no longer be submitted for the procurement.

- (3) In this paragraph, a reference to an invitation to tender issued for the procurement includes, if applicable, any revised invitation to tender issued for the procurement.

3. Display of copy of invitation to tender

- (1) If an invitation to tender is issued for the procurement, the management committee must display a copy of the invitation in a prominent place in the building as soon as reasonably practicable after the invitation is issued, and cause it to remain so displayed until the deadline for the submission of a tender for the procurement.
- (2) If a revised invitation to tender is issued for the procurement—
- (a) the requirement under this paragraph to cause a copy of the previous version of the invitation to remain displayed in a prominent place in the building ceases to apply; and
 - (b) the management committee must display a copy of the revised invitation in a prominent place in the building as soon as reasonably practicable after the revised invitation is issued, and cause it to remain so displayed until the deadline for the submission of a tender for the procurement.

4. No acceptance of tender submitted after deadline

Any tender submitted for the procurement after the deadline must not be accepted.

5. No acceptance of tender without approval under certain circumstances

- (1) Subject to subparagraph (4), no tender may be accepted for the procurement if—

- (a) the procurement is the procurement of any supplies, goods or services the value of which exceeds, or is likely to exceed, \$200,000, and an invitation to tender has not been specifically issued to 5 or more potential suppliers for the procurement; or
 - (b) the procurement is the procurement of any supplies, goods or services the value of which—
 - (i) exceeds, or is likely to exceed, \$10,000; but
 - (ii) does not exceed, or is unlikely to exceed, \$200,000,and an invitation to tender has not been specifically issued to 3 or more potential suppliers for the procurement.
- (2) For the purposes of subparagraph (1), an invitation to tender is specifically issued to a person if it is issued—
 - (a) by delivering a copy of the invitation in hard copy form personally to the person;
 - (b) by sending a copy of the invitation in hard copy form by post, or by courier service, to the person at the person's last known business address; or
 - (c) by sending validly a copy of the invitation in electronic form to the person.
- (3) Subparagraph (1) applies regardless of whether an invitation to tender issued for the procurement is advertised (such as in a local newspaper or on a website) and is open to any potential suppliers.
- (4) Subparagraph (1) does not have any effect in relation to the procurement if it is so decided by—
 - (a) if the procurement is type 1 high-value procurement—a management committee resolution; or

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- (b) if the procurement is type 2 high-value procurement or large-scale maintenance procurement—a corporation resolution.
- (5) In this paragraph, a reference to an invitation to tender issued for the procurement includes, if applicable, any revised invitation to tender issued for the procurement.

(Schedule 6A added 20 of 2024 s. 42)

Schedule 6B

[ss. 2, 28B, 28D, 28E, 28F,
28J, 28M & 42]

Requirements Relating to Declarations Specified for Subdivision 2 of Division 5 of Part IV

Part 1

Declarations of Interests or Connections etc. and Related Restrictions for Type 1 High-value Procurement, Type 2 High-value Procurement and Large-scale Maintenance Procurement

Division 1—Declarations by Participants of Management Committee

- 1. Declarations of interests or connections for tenders submitted, etc.**
 - (1) If a participant of the management committee becomes aware that, before a contract is entered into for the procurement, the participant has any pecuniary or other personal interest in a tender submitted for the procurement, the participant must, as soon as reasonably practicable after becoming so aware, declare the interest in accordance with paragraphs 2 and 3.
 - (2) If a participant of the management committee becomes aware that, before a contract is entered into for the procurement, the participant has any connection with a person who has submitted a tender for the procurement, the participant must,

as soon as reasonably practicable after becoming so aware, declare the connection in accordance with paragraphs 2 and 3.

(3) If the procurement is conducted in the circumstances described in section 28D(3) or 28E(3), then for the purposes of this paragraph—

(a) the reference to a tender submitted for the procurement in subparagraph (1) is to be construed as a reference to the procurement of supplies, goods or services from the specified supplier; and

(b) the reference to a person who has submitted a tender for the procurement in subparagraph (2) is to be construed as a reference to the specified supplier.

(4) In this paragraph—

specified supplier (指明供應商), in relation to the procurement of any supplies, goods or services conducted in the circumstances described in section 28D(3) or 28E(3), means the supplier from whom the supplies, goods or services are to be procured under the decision mentioned in that section.

2. Form of declarations

(1) The declaration must be made in the specified form.

(2) If a person who makes the declaration is a body corporate, then despite anything to the contrary in its constitution, the declaration must be—

(a) impressed with its seal or chop; and

(b) signed by a person authorized by it in that behalf.

3. Persons to whom declarations are made

(1) The declaration must be made to—

(a) subject to sub-subparagraph (b)—

- (i) if the person who makes the declaration (*declarant*) is neither the chairman nor secretary of the management committee—the chairman or secretary of the management committee;
 - (ii) if the declarant is the chairman of the management committee—the secretary of the management committee; or
 - (iii) if the declarant is the secretary of the management committee—the chairman of the management committee; or
 - (b) if making the declaration under sub-subparagraph (a) is impracticable for reasons such as vacancy in an office—every member of the management committee (not including the declarant).
- (2) For the purposes of this paragraph, a declaration is made to a person if—
- (a) the declaration in hard copy form (whether being the original copy or otherwise) is lodged with the person; or
 - (b) a copy of the declaration in electronic form is sent validly to the person.

4. Display of notice of declarations

- (1) If a declaration under paragraph 1 has been made, the management committee must display a notice of the declaration that complies with subparagraph (2) in a prominent place in the building within 7 days after the date on which the declaration is made, and cause it to remain so displayed for at least 7 consecutive days.
- (2) The notice—
 - (a) must identify the procurement and tender concerned;

- (b) must specify whether the person who made the declaration assumes a particular office of the management committee and, if so, which office; and
 - (c) must contain a statement indicating the right to inspect a copy of the declaration under paragraph 6(2).
- (3) If a declaration is made to different members of the management committee as required by paragraph 3(1)(b) and is so made on different dates, then for the purposes of subparagraph (1), the last such date is taken to be the date on which the declaration is made.

5. Specific meeting procedure relating to declarations

- (1) If a declaration under paragraph 1 has been made, the management committee must ensure that—
 - (a) a copy of the declaration is produced to the management committee at the first procurement meeting since the making of the declaration; and
 - (b) a copy of a notice mentioned in paragraph 4(1) is attached to the minutes of the proceedings at the meeting kept under this Ordinance.
- (2) Subparagraph (1) does not limit Schedule 2 in relation to the procedure at a meeting of a management committee convened under that Schedule.
- (3) In this paragraph—
procurement meeting (採購會議), in relation to a declaration, means a meeting of the management committee convened under Schedule 2 that concerns the relevant procurement.

6. Keeping of and permitting inspection of declarations

- (1) If a declaration under paragraph 1 has been made in relation to the procurement, the management committee must, during

the period of 6 years after the date on which a contract is entered into for the procurement, keep a copy of the declaration.

(2) The management committee must permit a specified person to inspect the copy at any reasonable time.

(3) In this paragraph—

specified person (指明人士) means—

- (a) the Authority;
- (b) an authorized officer;
- (c) an owner;
- (d) the tenants' representative;
- (e) a registered mortgagee; or
- (f) any person duly authorized in writing by an owner or registered mortgagee to conduct an inspection mentioned in subparagraph (2).

7. **Prohibition from attending meetings of management committee**

(1) A person who has made a declaration under paragraph 1 in relation to the procurement (***declarant***)—

- (a) must not preside over or otherwise attend a meeting of the management committee convened under Schedule 2 to the extent that it concerns the procurement; and
- (b) must not be counted toward the quorum at the meeting to that extent.

(2) If a declarant is absent from a meeting in compliance with subparagraph (1), the person presiding over the meeting must ensure that the minutes of the proceedings at the meeting kept under this Ordinance (***meeting minutes***) contain a record of the fact that the declarant is so absent.

- (3) A declarant is exempt from subparagraph (1)(a) if it is so decided by—
- (a) a management committee resolution; or
 - (b) a corporation resolution,
- but even so the declarant must neither vote on any proposed resolution of the management committee concerning the procurement at the meeting of the management committee, nor be present at the meeting when the proposed resolution is being voted on.
- (4) A resolution for exempting a declarant under subparagraph (3) (*exemption resolution*) must not be proposed at a meeting unless the reasons for proposing the resolution are given at the meeting.
- (5) The person presiding over a meeting at which an exemption resolution is proposed must ensure that the meeting minutes contain the reasons mentioned in subparagraph (4).
- (6) A declarant must not vote on any proposed exemption resolution concerning the procurement.
- (7) In the event of an inconsistency between a management committee resolution, and a corporation resolution, mentioned in subparagraph (3), the corporation resolution prevails to the extent of the inconsistency.
- (8) If a declarant is the secretary of the management committee (*original secretary*), the management committee must appoint another person to act as the secretary of the management committee for the duration for which the original secretary is absent from a meeting in compliance with subparagraph (1).
- (9) This paragraph—
- (a) does not limit Schedule 2 in relation to the procedure at a meeting of a management committee convened under that Schedule; and

- (b) does not limit Schedule 3 or 6C in relation to the procedure at a general meeting of a corporation convened under Schedule 3.

8. Prohibition from participating in procurement activities

A person who has made a declaration under paragraph 1 in relation to the procurement must not participate in any assessment of tenders submitted for the procurement or any negotiation or other activity relating to the procurement.

Division 2—Declarations by Responsible Persons

9. Declarations of dealings or connections with members of management committee

- (1) If a responsible person for the procurement becomes aware that, after the initiation decision is made for the procurement but before a contract is entered into for it, the responsible person has any pecuniary or other personal dealing with a member of the management committee, the responsible person must, as soon as reasonably practicable after becoming so aware, declare the dealing in accordance with paragraphs 11 and 12.
- (2) If a responsible person for the procurement becomes aware that, after the initiation decision is made for the procurement but before a contract is entered into for it, the responsible person has any connection with a member of the management committee, the responsible person must, as soon as reasonably practicable after becoming so aware, declare the connection in accordance with paragraphs 11 and 12.

10. Declarations of interests or connections for tenders submitted, etc.

- (1) If a responsible person for the procurement becomes aware

that, before a contract is entered into for the procurement, the responsible person has any pecuniary or other personal interest in a tender submitted for the procurement, the responsible person must, as soon as reasonably practicable after becoming so aware, declare the interest in accordance with paragraphs 11 and 12.

- (2) If a responsible person for the procurement becomes aware that, before a contract is entered into for the procurement, the responsible person has any connection with a person who has submitted a tender for the procurement, the responsible person must, as soon as reasonably practicable after becoming so aware, declare the connection in accordance with paragraphs 11 and 12.
- (3) If the procurement is conducted in the circumstances described in section 28D(3) or 28E(3), then for the purposes of this paragraph—
 - (a) the reference to a tender submitted for the procurement in subparagraph (1) is to be construed as a reference to the procurement of supplies, goods or services from the specified supplier; and
 - (b) the reference to a person who has submitted a tender for the procurement in subparagraph (2) is to be construed as a reference to the specified supplier.
- (4) In this paragraph—

specified supplier (指明供應商), in relation to the procurement of any supplies, goods or services conducted in the circumstances described in section 28D(3) or 28E(3), means the supplier from whom the supplies, goods or services are to be procured under the decision mentioned in that section.

11. Form of declarations

- (1) The declaration must be made in the specified form.

- (2) If a person who makes the declaration is a body corporate, then despite anything to the contrary in its constitution, the declaration must be—
 - (a) impressed with its seal or chop; and
 - (b) signed by a person authorized by it in that behalf.

12. Persons to whom declarations are made

- (1) The declaration must be made to—
 - (a) subject to sub-subparagraph (b), the chairman or secretary of the management committee; or
 - (b) if making the declaration under sub-subparagraph (a) is impracticable for reasons such as vacancy in an office—every member of the management committee.
- (2) For the purposes of this paragraph, a declaration is made to a person if—
 - (a) the declaration in hard copy form (whether being the original copy or otherwise) is lodged with the person; or
 - (b) a copy of the declaration in electronic form is sent validly to the person.

13. Display of notice of declarations

- (1) If a declaration under paragraph 9 or 10 has been made, the management committee must display a notice of the declaration that complies with subparagraph (2) in a prominent place in the building within 7 days after the date on which the declaration is made, and cause it to remain so displayed for at least 7 consecutive days.
- (2) The notice—
 - (a) must identify—

- (i) the procurement concerned and, for a declaration under paragraph 10, the tender concerned; and
 - (ii) the person who made the declaration;
- (b) must specify in which of the following capacities the person made the declaration—
 - (i) the manager of the building;
 - (ii) a person who is accustomed or obliged to act in accordance with the directions or instructions of the manager in connection with substantive matters in respect of the procurement; and
- (c) must contain a statement indicating the right to inspect a copy of the declaration under paragraph 15(2).
- (3) If a declaration is made to different members of the management committee as required by paragraph 12(1)(b) and is so made on different dates, then for the purposes of subparagraph (1), the last such date is taken to be the date on which the declaration is made.

14. Specific meeting procedure relating to declarations

- (1) If a declaration under paragraph 9 or 10 has been made, the management committee must ensure that—
 - (a) a copy of the declaration is produced to the management committee at the first procurement meeting since the making of the declaration; and
 - (b) a copy of a notice mentioned in paragraph 13(1) is attached to the minutes of the proceedings at the meeting kept under this Ordinance.
- (2) Subparagraph (1) does not limit Schedule 2 in relation to the procedure at a meeting of a management committee convened under that Schedule.
- (3) In this paragraph—

procurement meeting (採購會議), in relation to a declaration, means a meeting of the management committee convened under Schedule 2 that concerns the relevant procurement.

15. Keeping of and permitting inspection of declarations

- (1) If a declaration under paragraph 9 or 10 has been made in relation to the procurement, the management committee must, during the period of 6 years after the date on which a contract is entered into for the procurement, keep a copy of the declaration.
- (2) The management committee must permit a specified person to inspect the copy at any reasonable time.

(3) In this paragraph—

specified person (指明人士) means—

- (a) the Authority;
- (b) an authorized officer;
- (c) an owner;
- (d) the tenants' representative;
- (e) a registered mortgagee; or
- (f) any person duly authorized in writing by an owner or registered mortgagee to conduct an inspection mentioned in subparagraph (2).

16. Prohibition from participating in procurement activities

- (1) A person who has made a declaration under paragraph 9 or 10 in relation to the procurement must not participate in any assessment of tenders submitted for the procurement or any negotiation or other activity relating to the procurement.
- (2) A person mentioned in subparagraph (1) is exempt from that subparagraph if it is so decided by—

- (a) a management committee resolution; or
 - (b) a corporation resolution.
- (3) A resolution for exempting a person under subparagraph (2) (*exemption resolution*) must not be proposed at a meeting unless the reasons for proposing the resolution are given at the meeting.
- (4) The person presiding over a meeting at which an exemption resolution is proposed must ensure that the minutes of the proceedings at the meeting kept under this Ordinance contain the reasons mentioned in subparagraph (3).
- (5) In the event of an inconsistency between a management committee resolution, and a corporation resolution, mentioned in subparagraph (2), the corporation resolution prevails to the extent of the inconsistency.
- (6) This paragraph—
 - (a) does not limit Schedule 2 in relation to the procedure at a meeting of a management committee convened under that Schedule; and
 - (b) does not limit Schedule 3 or 6C in relation to the procedure at a general meeting of a corporation convened under Schedule 3.

Part 2

Declarations of No Interest or Connection for Large-scale Maintenance Procurement

Division 1—Declarations by Participants of Management Committee

17. Declaration of no interest or connection for tenders submitted

If any tender has been submitted for the large-scale maintenance procurement, every participant of the management committee must, before the first tender acceptance meeting is held, declare in accordance with paragraphs 18 and 19—

- (a) that the participant, as at the date of the declaration—
 - (i) if the participant has declared an interest under paragraph 1(1) in respect of the tender—does not have any pecuniary or other personal interest in the tender except for the interest so declared; or
 - (ii) in any other case—does not have any pecuniary or other personal interest in the tender; and
- (b) that the participant, as at the date of the declaration—
 - (i) if the participant has declared a connection under paragraph 1(2) in respect of the tender—does not have any connection with a person who has submitted the tender except for the connection so declared; or
 - (ii) in any other case—does not have any connection with a person who has submitted the tender.

18. Form of declarations

- (1) The declaration must be made in the specified form.
- (2) If a person who makes the declaration is a body corporate, then despite anything to the contrary in its constitution, the declaration must be—
 - (a) impressed with its seal or chop; and
 - (b) signed by a person authorized by it in that behalf.

19. Persons to whom declarations are made

- (1) The declaration must be made to—

-
- (a) subject to sub-subparagraph (b)—
 - (i) if the person who makes the declaration (*declarant*) is neither the chairman nor secretary of the management committee—the chairman or secretary of the management committee;
 - (ii) if the declarant is the chairman of the management committee—the secretary of the management committee; or
 - (iii) if the declarant is the secretary of the management committee—the chairman of the management committee; or
 - (b) if making the declaration under sub-subparagraph (a) is impracticable for reasons such as vacancy in an office—every member of the management committee (not including the declarant).
 - (2) For the purposes of this paragraph, a declaration is made to a person if—
 - (a) the declaration in hard copy form (whether being the original copy or otherwise) is lodged with the person; or
 - (b) a copy of the declaration in electronic form is sent validly to the person.

20. Specific meeting procedure relating to declarations for first tender acceptance meeting

- (1) For every declaration that has been made under paragraph 17, the management committee must ensure that a document in respect of the declaration that complies with subparagraph (2) is attached to the minutes of the proceedings at the first tender acceptance meeting kept under this Ordinance.
- (2) The document—
 - (a) must identify the procurement and tender concerned;

- (b) must specify whether the person who made the declaration assumes a particular office of the management committee and, if so, which office; and
- (c) must contain a statement indicating the right to inspect a copy of the declaration under paragraph 21(2).
- (3) Subparagraph (1) does not limit Schedule 3 or 6C in relation to the procedure at a general meeting of a corporation convened under Schedule 3.

21. **Keeping of and permitting inspection of declarations**

- (1) If a declaration under paragraph 17 has been made in relation to the large-scale maintenance procurement, the management committee must, during the period of 6 years after the date on which a contract is entered into for the procurement, keep a copy of the declaration.
- (2) The management committee must permit a specified person to inspect the copy at any reasonable time.
- (3) In this paragraph—

specified person (指明人士) means—

- (a) the Authority;
- (b) an authorized officer;
- (c) an owner;
- (d) the tenants' representative;
- (e) a registered mortgagee; or
- (f) any person duly authorized in writing by an owner or registered mortgagee to conduct an inspection mentioned in subparagraph (2).

Division 2—Declarations by Responsible Persons

22. Declaration of no dealing or connection with members of management committee

If the initiation decision has been made for the large-scale maintenance procurement, every responsible person for the procurement must, before the first tender acceptance meeting is held, declare in accordance with paragraphs 24 and 25—

- (a) that the responsible person, as at the date of the declaration—
 - (i) if the responsible person has declared a dealing under paragraph 9(1)—does not have any pecuniary or other personal dealing with a member of the management committee except for the dealing so declared; or
 - (ii) in any other case—does not have any pecuniary or other personal dealing with a member of the management committee; and
- (b) that the responsible person, as at the date of the declaration—
 - (i) if the responsible person has declared a connection under paragraph 9(2)—does not have any connection with a member of the management committee except for the connection so declared; or
 - (ii) in any other case—does not have any connection with a member of the management committee.

23. Declaration of no interest or connection for tenders submitted

If any tender has been submitted for the large-scale maintenance procurement, every responsible person for the procurement must, before the first tender acceptance meeting is held, declare in accordance with paragraphs 24 and 25—

- (a) that the responsible person, as at the date of the declaration—
 - (i) if the responsible person has declared an interest under paragraph 10(1) in respect of the tender—does not have any pecuniary or other personal interest in the tender except for the interest so declared; or
 - (ii) in any other case—does not have any pecuniary or other personal interest in the tender; and
- (b) that the responsible person, as at the date of the declaration—
 - (i) if the responsible person has declared a connection under paragraph 10(2) in respect of the tender—does not have any connection with a person who has submitted the tender except for the connection so declared; or
 - (ii) in any other case—does not have any connection with a person who has submitted the tender.

24. Form of declarations

- (1) The declaration must be made in the specified form.
- (2) If a person who makes the declaration is a body corporate, then despite anything to the contrary in its constitution, the declaration must be—
 - (a) impressed with its seal or chop; and
 - (b) signed by a person authorized by it in that behalf.

25. Persons to whom declarations are made

- (1) The declaration must be made to—
 - (a) subject to sub-subparagraph (b), the chairman or secretary of the management committee; or

- (b) if making the declaration under sub-subparagraph (a) is impracticable for reasons such as vacancy in an office—every member of the management committee.
- (2) For the purposes of this paragraph, a declaration is made to a person if—
 - (a) the declaration in hard copy form (whether being the original copy or otherwise) is lodged with the person; or
 - (b) a copy of the declaration in electronic form is sent validly to the person.

26. Specific meeting procedure relating to declarations for first tender acceptance meeting

- (1) For every declaration that has been made under paragraph 22 or 23, the management committee must ensure that a document in respect of the declaration that complies with subparagraph (2) is attached to the minutes of the proceedings at the first tender acceptance meeting kept under this Ordinance.
- (2) The document—
 - (a) must identify—
 - (i) the procurement and tender concerned; and
 - (ii) the person who made the declaration;
 - (b) must specify in which of the following capacities the person made the declaration—
 - (i) the manager of the building;
 - (ii) a person who is accustomed or obliged to act in accordance with the directions or instructions of the manager in connection with substantive matters in respect of the procurement; and

- (c) must contain a statement indicating the right to inspect a copy of the declaration under paragraph 27(2).
- (3) Subparagraph (1) does not limit Schedule 3 or 6C in relation to the procedure at a general meeting of a corporation convened under Schedule 3.

27. Keeping of and permitting inspection of declarations

- (1) If a declaration under paragraph 22 or 23 has been made in relation to the large-scale maintenance procurement, the management committee must, during the period of 6 years after the date on which a contract is entered into for the procurement, keep a copy of the declaration.
- (2) The management committee must permit a specified person to inspect the copy at any reasonable time.
- (3) In this paragraph—

specified person (指明人士) means—

- (a) the Authority;
- (b) an authorized officer;
- (c) an owner;
- (d) the tenants' representative;
- (e) a registered mortgagee; or
- (f) any person duly authorized in writing by an owner or registered mortgagee to conduct an inspection mentioned in subparagraph (2).

(Schedule 6B added 20 of 2024 s. 42)

Schedule 6C

[ss. 28F, 28H, 28I, 28J & 42
& Schs. 6B, 7 & 11]

Specific Procedure at General Meetings of Corporations Concerning Large-scale Maintenance Procurement

Part 1

Preliminary

1. Interpretation (Schedule 6C)

- (1) In this Schedule, a reference to a meeting of a corporation—
 - (a) is a reference to a general meeting of the corporation convened under Schedule 3; and
 - (b) if a meeting mentioned in sub-subparagraph (a) is adjourned—includes the adjourned meeting.
- (2) In this Schedule, a reference to a proposed large-scale maintenance procurement resolution is a reference to a proposed resolution of the owners for deciding—
 - (a) whether a tender submitted for any large-scale maintenance procurement is to be accepted or not; or
 - (b) whether a contract entered into for any large-scale maintenance procurement—
 - (i) is to be varied or not;
 - (ii) is to be terminated or not; or
 - (iii) is to be avoided under section 28I(1)(b) or not.

2. Schedule 3 not limited unless inconsistent

This Schedule does not limit Schedule 3 in relation to the procedure at a meeting of a corporation to the extent that Schedule 3 is consistent with this Schedule.

Part 2

Procedure

3. Notices of meeting

- (1) If a resolution that is to be proposed at a meeting of a corporation is a proposed large-scale maintenance procurement resolution, the statement in the notice of the meeting specifying the proposed resolution for compliance with paragraph 2(1AA)(b) of Schedule 3 must be titled **“Important Reminder”** in English and **“重要提示”** in Chinese.
- (2) If the proposed large-scale maintenance procurement resolution concerns the question mentioned in paragraph 1(2)(a), the notice of the meeting must, in relation to each tender that is valid under the terms of the relevant invitation to tender, set out clearly and legibly—
 - (a) the estimated amount to be contributed from each building management fund for the procurement; and
 - (b) the estimated apportioned amount that each of the owners is to contribute for the procurement in addition to a contribution mentioned in sub-subparagraph (a).
- (3) If the proposed large-scale maintenance procurement resolution concerns a question mentioned in paragraph 1(2)(b) and the corporation or the owners (or both of the corporation and the owners) are expected to incur any financial liability (including legal costs) because of the relevant variation,

termination or avoidance of contract, the notice of the meeting must set out clearly and legibly—

- (a) the estimated amount to be contributed from each building management fund for settling the costs; and
 - (b) the estimated apportioned amount that each of the owners is to contribute for settling the costs in addition to a contribution mentioned in sub-subparagraph (a).
- (4) To avoid doubt, even if the estimated amount mentioned in subparagraph (2) or (3) is zero, that subparagraph does require such an amount to be set out in accordance with that subparagraph.
- (5) In this paragraph—

building management fund (建築物管理基金) means—

- (a) a general fund established and maintained by the corporation under section 20(1);
- (b) a contingency fund established and maintained by the corporation under section 20(2);
- (c) a special fund established and maintained by the manager of the building under the mandatory DMC terms contained in paragraph 4(1) of Schedule 7; or
- (d) any fund other than the special fund that is established and maintained by the manager of the building for performing a function under the deed of mutual covenant or this Ordinance.

4. Voting-in-person threshold

- (1) The voting in respect of a proposed large-scale maintenance procurement resolution at a meeting of a corporation is subject to a voting-in-person threshold specified under subparagraph (2).
- (2) The voting-in-person threshold is the lesser of—

- (a) 5% of the owners; or
- (b) 100 owners.

5. Recording of votes cast personally and by proxy

If votes have been cast for a proposed large-scale maintenance procurement resolution at a meeting of a corporation, the person presiding over the meeting must not certify the minutes of the proceedings at the meeting under paragraph 6(2) of Schedule 3 unless the person is satisfied that the minutes contain a clear and legible record of—

- (a) the total number of such votes cast personally; and
- (b) the total number of such votes cast by proxy.

6. Supply of copies of minutes of proceedings at meetings

- (1) This paragraph applies if a proposed large-scale maintenance procurement resolution is considered at a meeting of a corporation.
- (2) The management committee must, within 28 days after the date of the meeting, supply each of the owners and the tenants' representative (if any) (*recipient*) with a copy of the certified minutes for the meeting—
 - (a) by delivering a copy of the minutes in hard copy form personally to the recipient;
 - (b) by sending a copy of the minutes in hard copy form by post to the recipient at the recipient's last known address;
 - (c) by leaving a copy of the minutes in hard copy form at the recipient's flat or depositing such a copy in the letter box for that flat; or
 - (d) by sending validly a copy of the minutes in electronic form to the recipient.

Building Management Ordinance

Schedule 6C—Part 2

S6C-10

Cap. 344

(Schedule 6C added 20 of 2024 s. 42)

Schedule 7

[ss. 2, 2D, 34D, 34E, 34EA,
34J, 40D & 42 & Schs. 6C &
11]

(Amended 69 of 2000 s. 25; 5 of 2007 s. 32; 20 of 2024 s. 43)

Mandatory Terms in Deeds of Mutual Covenant

Part 1

General Provisions Relating to Managers

(Added 20 of 2024 s. 43)

Division 1—General Duties of Managers

(Added 20 of 2024 s. 43)

1. Determination of total amount of management expenses

- (1) Subject to subparagraphs (3), (5), (6) and (8), the total amount of management expenses payable by the owners during any period of 12 months adopted by the manager of a building as the financial year in respect of the management of that building shall be the total proposed expenditure during that year as specified by the manager in accordance with subparagraph (2).
- (2) In respect of each financial year, the manager shall—
 - (a) prepare a draft budget setting out the proposed expenditure during the financial year;
 - (b) send a copy of the draft budget to the owners' committee or, where there is no owners' committee, display a copy of the draft budget in a prominent place

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- in the building, and cause it to remain so displayed for at least 7 consecutive days; (*Amended 5 of 2007 s. 32*)
- (c) send or display, as the case may be, with the copy of the draft budget a notice inviting each owner to send his comments on the draft budget to the manager within a period of 14 days from the date the draft budget was sent or first displayed;
 - (d) after the end of that period, prepare a budget specifying the total proposed expenditure during the financial year;
 - (e) send a copy of the budget to the owners' committee or, where there is no owners' committee, display a copy of the budget in a prominent place in the building, and cause it to remain so displayed for at least 7 consecutive days. (*Amended 5 of 2007 s. 32*)
- (3) Where, in respect of a financial year, the manager has not complied with subparagraph (2) before the start of that financial year, the total amount of the management expenses for that year shall—
- (a) until he has so complied, be deemed to be the same as the total amount of management expenses (if any) for the previous financial year;
 - (b) when he has so complied, be the total proposed expenditure specified in the budget for that financial year, and the amount that the owners shall contribute towards the management expenses shall be calculated and adjusted accordingly.
- (4) Where a budget has been sent or displayed in accordance with subparagraph (2)(e) and the manager wishes to revise it, he shall follow the same procedures in respect of the revised budget as apply to the draft budget and budget by virtue of subparagraph (2).

- (5) Where a revised budget is sent or displayed in accordance with subparagraph (4), the total amount of the management expenses for that financial year shall be the total expenditure or proposed expenditure specified in the revised budget and the amount that owners shall contribute towards the management expenses shall be calculated and adjusted accordingly.
- (6) If there is a corporation and, within a period of 1 month from the date that a budget or revised budget for a financial year is sent or first displayed in accordance with subparagraph (2) or (4), the corporation decides, by a corporation resolution, to reject the budget or revised budget, as the case may be, the total amount of management expenses for the financial year shall, until another budget or revised budget is sent or displayed in accordance with subparagraph (2) or (4) and is not so rejected under this subparagraph, be deemed to be the same as the total amount of management expenses (if any) for the previous financial year, together with an amount not exceeding 10% of that total amount as the manager may determine. *(Amended 20 of 2024 s. 43)*
- (7) Subject to subparagraph (7B), if an owner requests, in writing, the manager to supply the owner with a copy of any draft budget, budget or revised budget, the manager must supply the owner with the copy within 28 days after the date on which the request is made. *(Replaced 20 of 2024 s. 43)*
- (7A) The manager—
 - (a) may impose a reasonable copying charge for supplying the owner with the copy in hard copy form; and
 - (b) must not impose any charge for supplying the owner with the copy in electronic form. *(Added 20 of 2024 s. 43)*
- (7B) If—

- (a) the request mentioned in subparagraph (7) is a request for a copy in hard copy form; and
 - (b) the manager imposes under subparagraph (7A)(a) a copying charge for supplying the owner with the copy, the manager is not required to comply with the request unless the owner pays the charge. (*Added 20 of 2024 s. 43*)
- (8) For the purposes of this paragraph, **expenditure** (開支) includes all costs, charges and expenses to be borne by the owners, including the remuneration of the manager.

2. Keeping of accounts

- (1) The manager shall maintain proper books or records of account and other financial records and shall keep all bills, invoices, vouchers, receipts and other documents referred to in those books and records for at least 6 years.
- (2) Within 1 month after each consecutive period of 3 months, or such shorter period as the manager may select, the manager shall prepare a summary of income and expenditure and a balance sheet in respect of that period, display a copy of the summary and balance sheet in a prominent place in the building, and cause it to remain so displayed for at least 7 consecutive days. (*Amended 5 of 2007 s. 32*)
- (3) The manager must prepare an income and expenditure account and balance sheet (**financial statements**) for each financial year. (*Replaced 20 of 2024 s. 43*)
- (4) Each set of financial statements prepared under subparagraph (3) must include details of the special fund required by paragraph 4 and an estimate of the time when there will be a need to draw on that fund, and the amount of money that will be then needed. (*Amended 20 of 2024 s. 43*)

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- (4A) Any summary, balance sheet or income and expenditure account prepared under this paragraph must be signed by the manager. *(Added 20 of 2024 s. 43)*
 - (5) *(Repealed 20 of 2024 s. 43)*
 - (6) Any financial statements prepared under subparagraph (3) must be properly audited if either the total income or total expenditure contained in the income and expenditure account, or both of them, exceed or are likely to exceed the monetary amount specified in section 27(2)(c). *(Replaced 20 of 2024 s. 43)*
 - (6A) For the purposes of subparagraph (6), any financial statements are properly audited if—
 - (a) the financial statements are audited by an accountant approved by an owners resolution; and
 - (b) the accountant reports for the audit under subparagraph (a) as to whether the financial statements are, in the accountant's opinion, properly prepared so as to give a true and fair view of—
 - (i) the financial transactions in respect of the management of the building for the period to which the income and expenditure account relates; and
 - (ii) the financial position in respect of the management of the building as at the date to which the income and expenditure account is made up,
 subject to any qualification that the accountant thinks fit.
(Added 20 of 2024 s. 43)
 - (6B) If any financial statements are prepared under subparagraph (3), the manager must—
 - (a) if the financial statements are required by subparagraph (6) to be audited—display a copy of the financial

statements and a copy of the accountant's report in respect of the audit in a prominent place in the building as soon as reasonably practicable after the manager obtains the report from the accountant, and cause them to remain so displayed for at least 7 consecutive days; or

- (b) in any other case—display a copy of the financial statements in a prominent place in the building as soon as reasonably practicable after the statements are signed in accordance with subparagraph (4A), and cause it to remain so displayed for at least 7 consecutive days. *(Added 20 of 2024 s. 43)*

(6C) The manager must permit a specified person to inspect any accounting document at any reasonable time. *(Added 20 of 2024 s. 43)*

(6D) Subject to subparagraph (6F), if a specified person requests, in writing, the manager to supply the specified person with a copy of any accounting document, the manager must supply the specified person with the copy within 28 days after the date on which the request is made. *(Added 20 of 2024 s. 43)*

(6E) The manager—

- (a) may impose a reasonable copying charge for supplying the specified person with the copy in hard copy form; and
- (b) must not impose any charge for supplying the specified person with the copy in electronic form. *(Added 20 of 2024 s. 43)*

(6F) If—

- (a) the request mentioned in subparagraph (6D) is a request for a copy in hard copy form; and

- (b) the manager imposes under subparagraph (6E)(a) a copying charge for supplying the specified person with the copy,

the manager is not required to comply with the request unless the specified person pays the charge. (*Added 20 of 2024 s. 43*)

- (7) The financial year may not be changed more than once in every 5 years, unless that change is previously approved by a resolution of the owners' committee (if any).

- (8) In this paragraph—

accounting document (會計文件) means—

- (a) any book or record maintained, or document kept, under subparagraph (1);
- (b) any summary of income and expenditure, or balance sheet, prepared under subparagraph (2);
- (c) any financial statements prepared under subparagraph (3); or
- (d) any accountant's report in respect of an audit under subparagraph (6A)(a);

specified person (指明人士) means—

- (a) an owner;
- (b) a registered mortgagee; or
- (c) any person duly authorized in writing by an owner or registered mortgagee to conduct an inspection mentioned in subparagraph (6C). (*Added 20 of 2024 s. 43*)

3. **Manager to open and maintain bank account**

(*Amended 5 of 2007 s. 32*)

- (1) The manager shall open and maintain an interest-bearing account and shall use that account exclusively in respect of the management of the building. (*Amended 5 of 2007 s. 32*)

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- (1A) Without prejudice to the generality of subparagraph (1), if there is a corporation, the manager shall open and maintain one or more segregated interest-bearing accounts, each of which shall be designated as a trust account or client account, for holding money received by him from or on behalf of the corporation in respect of the management of the building. *(Added 5 of 2007 s. 32)*
 - (1B) The manager shall display a document showing evidence of any account opened and maintained under subparagraph (1) or (1A) in a prominent place in the building. *(Added 5 of 2007 s. 32)*
 - (2) Subject to subparagraphs (3) and (4), the manager shall without delay pay all money received by him in respect of the management of the building into the account opened and maintained under subparagraph (1) or, if there is a corporation, the account or accounts opened and maintained under subparagraph (1A). *(Amended 5 of 2007 s. 32)*
 - (3) Subject to subparagraph (4), the manager may, out of money received by him in respect of the management of the building, retain or pay into a current account a reasonable amount to cover expenditure of a minor nature, but that amount shall not exceed such figure as is determined from time to time by a resolution of the owners' committee (if any).
 - (4) The retention of a reasonable amount of money under subparagraph (3) or the payment of that amount into a current account in accordance with that subparagraph and any other arrangement for dealing with money received by the manager shall be subject to such conditions as may be approved by a resolution of the owners' committee (if any).
 - (5) Any reference in this paragraph to an account is a reference to an account opened with a bank within the meaning of section 2 of the Banking Ordinance (Cap. 155), the title of

which refers to the management of the building. (*Amended 49 of 1995 s. 53*)

4. Special fund

- (1) The manager shall establish and maintain a special fund to provide for expenditure of a kind not expected by him to be incurred annually.
- (2) If there is a corporation, the corporation shall determine, by a corporation resolution, the amount to be contributed to the special fund by the owners in any financial year, and the time when those contributions shall be payable. (*Amended 20 of 2024 s. 43*)
- (3) The manager shall open and maintain at a bank within the meaning of section 2 of the Banking Ordinance (Cap. 155) an interest-bearing account, the title of which shall refer to the special fund for the building, and shall use that account exclusively for the purpose referred to in subparagraph (1). (*Amended 49 of 1995 s. 53; 5 of 2007 s. 32*)
- (3A) Without prejudice to the generality of subparagraph (3), if there is a corporation, the manager shall open and maintain one or more segregated interest-bearing accounts, each of which shall be designated as a trust account or client account, for holding money received by him from or on behalf of the corporation in respect of the special fund. (*Added 5 of 2007 s. 32*)
- (3B) The manager shall display a document showing evidence of any account opened and maintained under subparagraph (3) or (3A) in a prominent place in the building. (*Added 5 of 2007 s. 32*)
- (4) The manager shall without delay pay all money received by him in respect of the special fund into the account opened and maintained under subparagraph (3) or, if there is a

corporation, the account or accounts opened and maintained under subparagraph (3A). (*Amended 5 of 2007 s. 32*)

- (5) Except in a situation considered by the manager to be an emergency, no money shall be paid out of the special fund unless it is for a purpose approved by a resolution of the owners' committee (if any).

4A. Communication among owners

The manager must, on the channels of communication among owners on any business relating to the management of the building—

- (a) if there is a corporation—consult (either generally or in any particular case) the corporation at a general meeting of the corporation convened under Schedule 3 and adopt the approach decided by the corporation; or
- (b) if there is no corporation—consult (either generally or in any particular case) the owners' committee at a meeting of owners convened under the deed of mutual covenant and adopt the approach decided by the owners' committee.

(Added 20 of 2024 s. 43)

5. *(Repealed 20 of 2024 s. 43)*

Division 2—Termination of Manager's Appointment

(Added 20 of 2024 s. 43)

6. Resignation of manager

- (1) No resignation of the manager shall take effect unless he has previously given not less than 3 months' notice in writing of his intention to resign—
- (a) by sending such a notice to the owners' committee; or

- (b) where there is no owners' committee, by giving such a notice to each of the owners and by displaying such a notice in a prominent place in the building.
- (2) The notice referred to in subparagraph (1)(b) may be given— *(Amended 5 of 2007 s. 32)*
 - (a) by delivering it personally to the owner; or
 - (b) by sending it by post to the owner at his last known address; or
 - (c) by leaving it at the owner's flat or depositing it in the letter box for that flat. *(Amended 12 of 1998 s. 9)*

(Amended 5 of 2007 s. 32)

7. Termination of manager's appointment by owners' corporation

- (1) Subject to subparagraph (5A), at a general meeting convened for the purpose, a corporation may, by a resolution—
 - (a) passed by a majority of the votes of the owners voting either personally or by proxy; and
 - (b) supported by the owners of not less than 50% of the shares in aggregate,
 terminate by notice the DMC manager's appointment without compensation. *(Replaced 5 of 2007 s. 32)*
- (2) A resolution under subparagraph (1) shall have effect only if—
 - (a) the notice of termination of appointment is in writing;
 - (b) provision is made in the resolution for a period of not less than 3 months' notice or, in lieu of notice, provision is made for an agreement to be made with the DMC manager for the payment to him of a sum equal to the amount of remuneration which would have accrued to

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- him during that period; (*Replaced 69 of 2000 s. 25. Amended E.R. 2 of 2018*)
- (c) the notice is accompanied by a copy of the resolution terminating the DMC manager's appointment; and
 - (d) the notice and the copy of the resolution is given to the DMC manager within 14 days after the date of the meeting.
- (3) The notice and the copy of the resolution referred to in subparagraph (2)(d) may be given— (*Amended 5 of 2007 s. 32*)
- (a) by delivering them personally to the DMC manager; or
 - (b) by sending them by post to the DMC manager at his last known address.
 - (c) (*Repealed 5 of 2007 s. 32*)
- (4)-(5) (*Repealed 5 of 2007 s. 32*)
- (5A) For the purposes of subparagraph (1)—
- (a) only the owners of shares who pay or who are liable to pay the management expenses relating to those shares shall be entitled to vote;
 - (b) the reference in subparagraph (1)(b) to ***the owners of not less than 50% of the shares in aggregate*** shall be construed as a reference to the owners of not less than 50% of the shares in aggregate who are entitled to vote. (*Added 69 of 2000 s. 25. Amended 5 of 2007 s. 69*)
- (5B) If a contract for the appointment of a manager other than a DMC manager contains no provision for the termination of the manager's appointment, subparagraphs (1), (2), (3) and (5A) apply to the termination of the manager's appointment as they apply to the termination of a DMC manager's appointment. (*Added 5 of 2007 s. 32*)

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- (5C) Subparagraph (5B) operates without prejudice to any other power there may be in a contract for the appointment of a manager other than a DMC manager to terminate the appointment of the manager. *(Added 5 of 2007 s. 32)*
- (6) If a notice to terminate a manager's appointment is given under this paragraph—
- (a) no appointment of a new manager shall take effect unless the appointment is approved by a resolution of the owners' committee (if any); and
 - (b) if no such appointment is approved under sub-subparagraph (a) by the time the notice expires, the corporation may appoint another manager and, if it does so, the corporation shall have exclusive power to appoint any subsequent manager.
- (7) If any person has given an undertaking in writing to, or has entered into an agreement with, the Government to manage or be responsible for the management of the building, and the corporation has appointed a manager under subparagraph (6)(b), the corporation shall be deemed to have given to that person an instrument of indemnity under which the corporation shall be liable to indemnify that person in respect of any act or omission by the manager appointed under that subparagraph that may otherwise render that person liable for a breach of that undertaking or agreement.
- (8) This paragraph is subject to any notice relating to the building that may be published by the Authority under section 34E(4) but does not apply to any single manager referred to in that section.

(Amended 5 of 2007 s. 32)

8. Obligations after manager's appointment ends

- (1) Subject to subparagraph (2), if the manager's appointment

ends for any reason, he shall, as soon as practicable after his appointment ends, and in any event within 14 days of the date his appointment ends, deliver to the owners' committee (if any) or the manager appointed in his place any movable property in respect of the control, management and administration of the building that is under his control or in his custody or possession, and that belongs to the corporation (if any) or the owners. *(Added 5 of 2007 s. 32)*

- (2) If the manager's appointment ends for any reason, he shall within 2 months of the date his appointment ends— *(Amended 5 of 2007 s. 32)*

(a) prepare—

- (i) an income and expenditure account for the period beginning with the commencement of the financial year in which his appointment ends and ending on the date his appointment ended; and
- (ii) a balance sheet as at the date his appointment ended,

and shall arrange for that account and balance sheet to be audited by an accountant or by some other independent auditor specified in a resolution of the owners' committee (if any) or, in the absence of any such specification, by such accountant or other independent auditor as may be chosen by the manager; and

- (b) deliver to the owners' committee (if any) or the manager appointed in his place any books or records of accounts, papers, documents and other records which are required for the purposes of sub-subparagraph (a) and have not been delivered under subparagraph (1). *(Replaced 5 of 2007 s. 32)*

9. *(Repealed 20 of 2024 s. 43)*

Part 2

Procurement of Supplies, Goods or Services

Division 1—Keeping of and Permitting Inspection of Procurement Documents

10. **Keeping of procurement documents**

- (1) This paragraph applies if there is no corporation.
- (2) If a contract is entered into for the procurement of any supplies, goods or services required by the owners in the performance of a function under the deed of mutual covenant or this Ordinance, the manager must, during the period of 6 years after the date on which the contract is entered into, keep all the procurement documents.
- (3) In subparagraph (2)—
procurement document (採購文件), in relation to the procurement of any supplies, goods or services—
 - (a) means a document—
 - (i) that contains information that enables a person who inspects it to (whether with or without any other document) readily verify the financial liability incurred by the owners for the procurement; or
 - (ii) that otherwise relates to the procurement, such as a tender document, copy of contract, statement of account and invoice; and
 - (b) does not include a declaration made under Division 4.

11. Permitting inspection of procurement documents

- (1) The manager must, at the written request of not less than 5% of the owners, permit any of those owners or any person appointed by those owners to inspect, at any reasonable time, any document kept by the manager under paragraph 10(2).
- (2) Subject to subparagraph (4), if a person who is permitted under subparagraph (1) to inspect any document (*requester*) requests, in writing, the manager to supply the requester with a copy of the document, the manager must supply the requester with the copy within 28 days after the date on which the request is made.
- (3) The manager—
 - (a) may impose a reasonable copying charge for supplying the requester with the copy in hard copy form; and
 - (b) must not impose any charge for supplying the requester with the copy in electronic form.
- (4) If—
 - (a) the request mentioned in subparagraph (2) is a request for a copy in hard copy form; and
 - (b) the manager imposes under subparagraph (3)(a) a copying charge for supplying the requester with the copy,the manager is not required to comply with the request unless the requester pays the charge.

Division 2—Specific Requirements for Certain Types of Procurement**12. Type 1 high-value procurement**

- (1) The manager must not enter into any contract for any type 1

high-value procurement unless—

- (a) the procurement complies with any Code of Practice concerning the procurement; and
 - (b) the procurement is conducted by an invitation to tender.
- (2) Moreover, if there is no corporation—
- (a) the requirements for tendering specified in Division 3 must be complied with in relation to the procurement; and
 - (b) the requirements relating to declarations specified in Subdivision 1 of Division 4 must be complied with in relation to the procurement.
- (3) However, subparagraphs (1)(b) and (2)(a) do not apply in relation to the procurement if—
- (a) the supplies, goods or services to which the procurement relates (*target supplies, goods or services*) are of the same type as any supplies, goods or services that are for the time being supplied by a supplier for the building; and
 - (b) it is decided by—
 - (i) in the case of subparagraph (1)(b)—
 - (A) if there is a corporation—a corporation resolution; or
 - (B) if there is no corporation—an owners resolution; or
 - (ii) in the case of subparagraph (2)(a)—an owners resolution,

that the target supplies, goods or services must be procured from that supplier on the terms and conditions that are specified in the resolution, instead of by an invitation to tender.

13. Type 2 high-value procurement

- (1) The manager must not enter into any contract for any type 2 high-value procurement unless—
 - (a) the procurement complies with any Code of Practice concerning the procurement;
 - (b) the procurement is conducted by an invitation to tender;
 - (c) for every tender submitted for the procurement, whether it is accepted or not is decided by—
 - (i) if there is a corporation—a corporation resolution; or
 - (ii) if there is no corporation—an owners resolution; and
 - (d) the contract is entered into with the tenderer whose tender is accepted as decided in the way mentioned in sub-subparagraph (c).
- (2) Moreover, if there is no corporation—
 - (a) the requirements for tendering specified in Division 3 must be complied with in relation to the procurement; and
 - (b) the requirements relating to declarations specified in Subdivision 1 of Division 4 must be complied with in relation to the procurement.
- (3) However, subparagraphs (1)(b), (c) and (d) and (2)(a) do not apply in relation to the procurement if—
 - (a) the supplies, goods or services to which the procurement relates (*target supplies, goods or services*) are of the same type as any supplies, goods or services that are for the time being supplied by a supplier for the building; and

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- (b) it is decided by—
 - (i) in the case of subparagraph (1)(b), (c) or (d)—
 - (A) if there is a corporation—a corporation resolution; or
 - (B) if there is no corporation—an owners resolution; or
 - (ii) in the case of subparagraph (2)(a)—an owners resolution,

that the target supplies, goods or services must be procured from that supplier on the terms and conditions that are specified in the resolution, instead of by an invitation to tender.
 - (4) Despite anything to the contrary in a contract entered into for any type 2 high-value procurement, the manager must not vary or terminate the contract unless the contract is varied or terminated in accordance with—
 - (a) if there is a corporation—a corporation resolution; or
 - (b) if there is no corporation—an owners resolution.

14. Large-scale maintenance procurement

- (1) The manager must not enter into any contract for any large-scale maintenance procurement unless—
 - (a) the procurement complies with any Code of Practice concerning the procurement;
 - (b) the procurement is conducted by an invitation to tender;
 - (c) the following conditions are met—
 - (i) if there is a corporation—
 - (A) that for every tender submitted for the procurement, whether it is accepted or not is decided by a corporation resolution; and

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- (B) that the voting-in-person threshold under paragraph 4 of Schedule 6C is met in relation to the passing of a corporation resolution for compliance with section 28F(2)(c) in relation to the procurement; or
 - (ii) if there is no corporation—
 - (A) that for every tender submitted for the procurement, whether it is accepted or not is decided by an owners resolution; and
 - (B) that the voting-in-person threshold under paragraph 49 in relation to the passing of an owners resolution for compliance with sub-sub-sub-paragraph (A) in relation to the procurement is met; and
 - (d) the contract is entered into with the tenderer whose tender is accepted as decided in the way mentioned in sub-subparagraph (c)(i)(A) or (ii)(A).
 - (2) Moreover, if there is no corporation—
 - (a) the requirements for tendering specified in Division 3 must be complied with in relation to the procurement; and
 - (b) the requirements relating to declarations specified in Subdivisions 1 and 2 of Division 4 must be complied with in relation to the procurement.
 - (3) Despite anything to the contrary in a contract entered into for any large-scale maintenance procurement, the manager must not vary or terminate the contract unless—
 - (a) if there is a corporation—
 - (i) the contract is varied or terminated in accordance with a corporation resolution; and

- (ii) the voting-in-person threshold under paragraph 4 of Schedule 6C is met in relation to the passing of a corporation resolution for compliance with section 28F(2)(d) in relation to the contract; or
- (b) if there is no corporation—
 - (i) the contract is varied or terminated in accordance with an owners resolution; and
 - (ii) the voting-in-person threshold under paragraph 49 is met in relation to the passing of an owners resolution for compliance with sub-sub-paragraph (i) in relation to the contract.

Note—

See Division 4 of Part 3 of this Schedule for the specific procedure at meetings of owners concerning large-scale maintenance procurement.

Division 3—Requirements for Tendering where there is No Corporation

15. Effect of Division 3

This Division has effect for the purposes of paragraphs 12(2)(a), 13(2)(a) and 14(2)(a).

16. Interpretation (Division 3)

In this Division—

deadline (入標期限), in relation to the submission of a tender for any procurement, means the time after which the submission may no longer be made under—

- (a) subject to sub-subparagraph (b), the terms of the invitation to tender issued for the procurement; or
- (b) if the invitation is revised—the terms of the revised invitation issued for the procurement.

17. Content of invitation to tender

- (1) An invitation to tender issued for the procurement must set out clearly—
 - (a) the nature of the supplies, goods or services to which the procurement relates; and
 - (b) a specified time on a specified day after which a tender may no longer be submitted for the procurement.
- (2) To avoid doubt, subparagraph (1)(b) does not prevent the invitation to tender from containing any terms in respect of a postponement, for reasons such as inclement weather, of the time after which a tender may no longer be submitted for the procurement.
- (3) In this paragraph, a reference to an invitation to tender issued for the procurement includes, if applicable, any revised invitation to tender issued for the procurement.

18. Display of copy of invitation to tender

- (1) If an invitation to tender is issued for the procurement, the manager must display a copy of the invitation in a prominent place in the building as soon as reasonably practicable after the invitation is issued, and cause it to remain so displayed until the deadline for the submission of a tender for the procurement.
- (2) If a revised invitation to tender is issued for the procurement—
 - (a) the requirement under this paragraph to cause a copy of the previous version of the invitation to remain displayed in a prominent place in the building ceases to apply; and

- (b) the manager must display a copy of the revised invitation in a prominent place in the building as soon as reasonably practicable after the revised invitation is issued, and cause it to remain so displayed until the deadline for the submission of a tender for the procurement.

19. No acceptance of tender submitted after deadline

Any tender submitted for the procurement after the deadline must not be accepted.

20. No acceptance of tender without approval under certain circumstances

- (1) Subject to subparagraph (4), no tender may be accepted for the procurement if—
 - (a) the procurement is the procurement of any supplies, goods or services the value of which exceeds, or is likely to exceed, the monetary amount specified in paragraph 5(1)(a) of Schedule 6A, and an invitation to tender has not been specifically issued to 5 or more potential suppliers for the procurement; or
 - (b) the procurement is the procurement of any supplies, goods or services the value of which—
 - (i) exceeds, or is likely to exceed, the monetary amount specified in paragraph 5(1)(b)(i) of that Schedule; but
 - (ii) does not exceed, or is unlikely to exceed, the monetary amount specified in paragraph 5(1)(b)(ii) of that Schedule,and an invitation to tender has not been specifically issued to 3 or more potential suppliers for the procurement.

- (2) For the purposes of subparagraph (1), an invitation to tender is specifically issued to a person if it is issued—
 - (a) by delivering a copy of the invitation in hard copy form personally to the person;
 - (b) by sending a copy of the invitation in hard copy form by post, or by courier service, to the person at the person's last known business address; or
 - (c) by sending validly a copy of the invitation in electronic form to the person.
- (3) Subparagraph (1) applies regardless of whether an invitation to tender issued for the procurement is advertised (such as in a local newspaper or on a website) and is open to any potential suppliers.
- (4) Subparagraph (1) does not have any effect in relation to the procurement if it is so decided by an owners resolution.
- (5) In this paragraph, a reference to an invitation to tender issued for the procurement includes, if applicable, any revised invitation to tender issued for the procurement.

Division 4—Requirements Relating to Declarations where there is No Corporation

Subdivision 1—Declarations of Interests or Connections etc. by Responsible Persons and Related Restrictions for Type 1 High-value Procurement, Type 2 High-value Procurement and Large-scale Maintenance Procurement

21. Effect of Subdivision 1

This Subdivision has effect for the purposes of paragraphs 12(2)(b), 13(2)(b) and 14(2)(b).

22. Declarations of dealings or connections with members of

owners' committee

- (1) If the manager becomes aware that, after the initiation decision is made for the procurement but before a contract is entered into for it, the manager has any pecuniary or other personal dealing with a member of the owners' committee, the manager must, as soon as reasonably practicable after becoming so aware, declare the dealing in accordance with paragraphs 24 and 25.
- (2) If the manager becomes aware that, after the initiation decision is made for the procurement but before a contract is entered into for it, the manager has any connection with a member of the owners' committee, the manager must, as soon as reasonably practicable after becoming so aware, declare the connection in accordance with paragraphs 24 and 25.
- (3) If there is a responsible person for the procurement other than the manager, the manager—
 - (a) must require the responsible person to comply with subparagraphs (1) and (2) that are to be construed as if a reference to the manager in those subparagraphs were a reference to the responsible person; and
 - (b) must use the manager's best endeavors to prevent any contravention of the requirement by the responsible person.

23. Declarations of interests or connections for tenders submitted

- (1) If the manager becomes aware that, before a contract is entered into for the procurement, the manager has any pecuniary or other personal interest in a tender submitted for the procurement, the manager must, as soon as reasonably practicable after becoming so aware, declare the interest in accordance with paragraphs 24 and 25.

- (2) If the manager becomes aware that, before a contract is entered into for the procurement, the manager has any connection with a person who has submitted a tender for the procurement, the manager must, as soon as reasonably practicable after becoming so aware, declare the connection in accordance with paragraphs 24 and 25.
- (3) If there is a responsible person for the procurement other than the manager, the manager—
- (a) must require the responsible person to comply with subparagraphs (1) and (2) that are to be construed as if a reference to the manager in those subparagraphs were a reference to the responsible person; and
 - (b) must use the manager's best endeavors to prevent any contravention of the requirement by the responsible person.
- (4) If the procurement is conducted in the circumstances described in paragraph 12(3) or 13(3), then for the purposes of this paragraph—
- (a) the reference to a tender submitted for the procurement in subparagraph (1) is to be construed as a reference to the procurement of supplies, goods or services from the specified supplier; and
 - (b) the reference to a person who has submitted a tender for the procurement in subparagraph (2) is to be construed as a reference to the specified supplier.
- (5) In this paragraph—
- specified supplier*** (指明供應商), in relation to the procurement of any supplies, goods or services conducted in the circumstances described in paragraph 12(3) or 13(3), means the supplier from whom the supplies, goods or services are to be procured under the decision mentioned in that paragraph.

24. Form of declarations

- (1) The declaration must be made in the specified form.
- (2) If a person who makes the declaration is a body corporate, then despite anything to the contrary in its constitution, the declaration must be—
 - (a) impressed with its seal or chop; and
 - (b) signed by a person authorized by it in that behalf.

25. Persons to whom declarations are made

- (1) The declaration must be made to—
 - (a) subject to sub-subparagraph (b), the chairman of the owners' committee; or
 - (b) if the person who makes the declaration (*declarant*) is the chairman of the owners' committee, or making the declaration under sub-subparagraph (a) is impracticable for reasons such as vacancy in an office—every member of the owners' committee (not including the declarant in the case where the declarant is a member of the owners' committee).
- (2) For the purposes of this paragraph, a declaration is made to a person if—
 - (a) the declaration in hard copy form (whether being the original copy or otherwise) is lodged with the person; or
 - (b) a copy of the declaration in electronic form is sent validly to the person.

26. Display of notice of declarations

- (1) If a declaration under paragraph 22 or 23 has been made, the manager must display a notice of the declaration that complies with subparagraph (2) in a prominent place in the

building within 7 days after the date on which the declaration is made, and cause it to remain so displayed for at least 7 consecutive days.

- (2) The notice—
 - (a) must identify—
 - (i) the procurement concerned and, for a declaration under paragraph 23, the tender concerned; and
 - (ii) the person who made the declaration;
 - (b) must specify in which of the following capacities the person made the declaration—
 - (i) the manager of the building;
 - (ii) a person who is accustomed or obliged to act in accordance with the directions or instructions of the manager in connection with substantive matters in respect of the procurement; and
 - (c) must contain a statement indicating the right to inspect a copy of the declaration under paragraph 28(2).
- (3) If a declaration is made to different members of the owners' committee as required by paragraph 25(1)(b) and is so made on different dates, then for the purposes of subparagraph (1), the last such date is taken to be the date on which the declaration is made.

27. Specific meeting procedure relating to declarations

- (1) If a declaration under paragraph 22 or 23 has been made, the manager must ensure that—
 - (a) a copy of the declaration is produced to the owners at the first procurement meeting since the making of the declaration; and

- (b) a copy of a notice mentioned in paragraph 26(1) is attached to the minutes of the proceedings at the meeting kept under the deed of mutual covenant.
- (2) Subparagraph (1) does not limit any other terms of the deed of mutual covenant in relation to the procedure at a meeting of owners convened under the deed of mutual covenant.
- (3) In this paragraph—
procurement meeting (採購會議), in relation to a declaration, means a meeting of owners convened under the deed of mutual covenant that concerns the relevant procurement.

28. Keeping of and permitting inspection of declarations

- (1) If a declaration under paragraph 22 or 23 has been made in relation to the procurement, the manager must, during the period of 6 years after the date on which a contract is entered into for the procurement, keep a copy of the declaration.
- (2) The manager must permit a specified person to inspect the copy at any reasonable time.
- (3) In this paragraph—
specified person (指明人士) means—
 - (a) an owner;
 - (b) a registered mortgagee; or
 - (c) any person duly authorized in writing by an owner or registered mortgagee to conduct an inspection mentioned in subparagraph (2).

29. Prohibition from participating in procurement activities

- (1) A person who has made a declaration under paragraph 22 or 23 in relation to the procurement must not participate in any assessment of tenders submitted for the procurement or any negotiation or other activity relating to the procurement.

- (2) A person mentioned in subparagraph (1) is exempt from that subparagraph if it is so decided by an owners resolution.
- (3) A resolution for exempting a person under subparagraph (2) (*exemption resolution*) must not be proposed at a meeting unless the reasons for proposing the resolution are given at the meeting.
- (4) The person presiding over a meeting at which an exemption resolution is proposed must ensure that the minutes of the proceedings at the meeting kept under the deed of mutual covenant contain the reasons mentioned in subparagraph (3).
- (5) This paragraph does not limit any other terms of the deed of mutual covenant in relation to the procedure at a meeting of owners convened under the deed of mutual covenant.

Subdivision 2—Declarations of No Interest or Connection by Responsible Persons for Large-scale Maintenance Procurement

30. Effect of Subdivision 2

This Subdivision has effect for the purposes of paragraph 14(2)(b).

31. Declaration of no dealing or connection with members of owners' committee

- (1) If the initiation decision has been made for the large-scale maintenance procurement, the manager must, before the first tender acceptance meeting is held, declare in accordance with paragraphs 33 and 34—
 - (a) that the manager, as at the date of the declaration—
 - (i) if the manager has declared a dealing under paragraph 22(1)—does not have any pecuniary or other personal dealing with a member of the owners' committee except for the dealing so declared; or

-
- (ii) in any other case—does not have any pecuniary or other personal dealing with a member of the owners' committee; and
 - (b) that the manager, as at the date of the declaration—
 - (i) if the manager has declared a connection under paragraph 22(2)—does not have any connection with a member of the owners' committee except for the connection so declared; or
 - (ii) in any other case—does not have any connection with a member of the owners' committee.
 - (2) If there is a responsible person for the procurement other than the manager, the manager—
 - (a) must require the responsible person to comply with subparagraph (1) that is to be construed in accordance with subparagraph (3); and
 - (b) must use the manager's best endeavors to prevent any contravention of the requirement by the responsible person.
 - (3) For the purposes of subparagraph (2)(a), subparagraph (1) is to be construed as if—
 - (a) a reference to the manager in subparagraph (1) were a reference to the responsible person;
 - (b) the reference to declaring a dealing under paragraph 22(1) in subparagraph (1)(a)(i) were a reference to declaring a dealing in compliance with a requirement imposed by the manager under paragraph 22(3)(a); and
 - (c) the reference to declaring a connection under paragraph 22(2) in subparagraph (1)(b)(i) were a reference to declaring a connection in compliance with a requirement imposed by the manager under paragraph 22(3)(a).

32. Declaration of no interest or connection for tenders submitted

- (1) If any tender has been submitted for the large-scale maintenance procurement, the manager must, before the first tender acceptance meeting is held, declare in accordance with paragraphs 33 and 34—
 - (a) that the manager, as at the date of the declaration—
 - (i) if the manager has declared an interest under paragraph 23(1) in respect of the tender—does not have any pecuniary or other personal interest in the tender except for the interest so declared; or
 - (ii) in any other case—does not have any pecuniary or other personal interest in the tender; and
 - (b) that the manager, as at the date of the declaration—
 - (i) if the manager has declared a connection under paragraph 23(2) in respect of the tender—does not have any connection with a person who has submitted the tender except for the connection so declared; or
 - (ii) in any other case—does not have any connection with a person who has submitted the tender.
- (2) If there is a responsible person for the procurement other than the manager, the manager—
 - (a) must require the responsible person to comply with subparagraph (1) that is to be construed in accordance with subparagraph (3); and
 - (b) must use the manager's best endeavors to prevent any contravention of the requirement by the responsible person.
- (3) For the purposes of subparagraph (2)(a), subparagraph (1) is to be construed as if—

- (a) a reference to the manager in subparagraph (1) were a reference to the responsible person;
- (b) the reference to declaring an interest under paragraph 23(1) in subparagraph (1)(a)(i) were a reference to declaring an interest in compliance with a requirement imposed by the manager under paragraph 23(3)(a); and
- (c) the reference to declaring a connection under paragraph 23(2) in subparagraph (1)(b)(i) were a reference to declaring a connection in compliance with a requirement imposed by the manager under paragraph 23(3)(a).

33. Form of declarations

- (1) The declaration must be made in the specified form.
- (2) If a person who makes the declaration is a body corporate, then despite anything to the contrary in its constitution, the declaration must be—
 - (a) impressed with its seal or chop; and
 - (b) signed by a person authorized by it in that behalf.

34. Persons to whom declarations are made

- (1) The declaration must be made to—
 - (a) subject to sub-subparagraph (b), the chairman of the owners' committee; or
 - (b) if the person who makes the declaration (*declarant*) is the chairman of the owners' committee, or making the declaration under sub-subparagraph (a) is impracticable for reasons such as vacancy in an office—every member of the owners' committee (not including the declarant in the case where the declarant is a member of the owners' committee).

- (2) For the purposes of this paragraph, a declaration is made to a person if—
 - (a) the declaration in hard copy form (whether being the original copy or otherwise) is lodged with the person; or
 - (b) a copy of the declaration in electronic form is sent validly to the person.

35. Specific meeting procedure relating to declarations for first tender acceptance meeting

- (1) For every declaration that has been made under paragraph 31 or 32, the manager must ensure that a document in respect of the declaration that complies with subparagraph (2) is attached to the minutes of the proceedings at the first tender acceptance meeting kept under the deed of mutual covenant.
- (2) The document—
 - (a) must identify—
 - (i) the procurement and tender concerned; and
 - (ii) the person who made the declaration;
 - (b) must specify in which of the following capacities the person made the declaration—
 - (i) the manager of the building;
 - (ii) a person who is accustomed or obliged to act in accordance with the directions or instructions of the manager in connection with substantive matters in respect of the procurement; and
 - (c) must contain a statement indicating the right to inspect a copy of the declaration under paragraph 36(2).
- (3) Subparagraph (1) does not limit any other terms of the deed of mutual covenant in relation to the procedure at a meeting of owners convened under the deed of mutual covenant.

36. Keeping of and permitting inspection of declarations

- (1) If a declaration under paragraph 31 or 32 has been made in relation to the large-scale maintenance procurement, the manager must, during the period of 6 years after the date on which a contract is entered into for the procurement, keep a copy of the declaration.
- (2) The manager must permit a specified person to inspect the copy at any reasonable time.
- (3) In this paragraph—
specified person (指明人士) means—
 - (a) an owner;
 - (b) a registered mortgagee; or
 - (c) any person duly authorized in writing by an owner or registered mortgagee to conduct an inspection mentioned in subparagraph (2).

(Part 2 added 20 of 2024 s. 43)

Part 3

Procedure at Meetings of Owners

Division 1—Preliminary

37. Application

- (1) This Part applies if there is no corporation.
- (2) Paragraphs 40 and 41 and Division 3 do not apply in relation to a meeting of owners if—
 - (a) for an original meeting—a notice of the meeting; or

(b) for an adjourned meeting—a notice of the original meeting,

is given under the deed of mutual covenant before the date on which the Building Management (Amendment) Ordinance 2024 (20 of 2024) comes into operation*.

Editorial Note:

* Operation date: 13 July 2025.

38. Reference to meetings of owners

In this Part (except paragraph 39), a reference to a meeting of owners—

- (a) is a reference to such a meeting convened under the deed of mutual covenant; and
- (b) if a meeting mentioned in sub-subparagraph (a) is adjourned—includes the adjourned meeting.

Division 2—General Procedure

39. Notices of meeting

- (1) A person who convenes a meeting of owners under the deed of mutual covenant must, at least 14 days before the date of the meeting, give notice of the meeting to each owner.
- (2) The notice of meeting must specify—
 - (a) the date, time and place of the meeting; and
 - (b) the resolutions (if any) that are to be proposed at the meeting.
- (3) If the meeting is adjourned, subparagraphs (1) and (2) apply in relation to the adjourned meeting as they apply in relation to the original meeting.

40. Minutes of proceedings at meetings

- (1) The manager must keep minutes of the proceedings at every meeting of owners.
- (2) The manager must display the minutes in a prominent place in the building within 28 days after the date of the meeting to which the minutes relate, and cause the minutes to remain so displayed for at least 7 consecutive days.
- (3) The manager must keep the minutes during the period of 6 years after the date of the meeting to which the minutes relate.

41. Supply of copies of minutes of proceedings at meetings

- (1) Subject to subparagraph (3), if a specified person requests, in writing, the manager to supply the specified person with a copy of the minutes of the proceedings kept under paragraph 40, the manager must supply the specified person with the copy within 28 days after the date on which the request is made.
- (2) The manager—
 - (a) may impose a reasonable copying charge for supplying the specified person with the copy in hard copy form; and
 - (b) must not impose any charge for supplying the specified person with the copy in electronic form.
- (3) If—
 - (a) the request mentioned in subparagraph (1) is a request for a copy in hard copy form; and
 - (b) the manager imposes under subparagraph (2)(a) a copying charge for supplying the specified person with the copy,

the manager is not required to comply with the request unless the specified person pays the charge.

(4) In this paragraph—

specified person (指明人士) means—

- (a) an owner;
- (b) a registered mortgagee; or
- (c) any person duly authorized in writing by an owner or registered mortgagee to make a request mentioned in subparagraph (1).

Division 3—Authorized Natural Persons for Corporate Flat Owners

42. Acting for corporate flat owners by authorized natural persons

- (1) A natural person authorized by a corporate flat owner under subparagraph (2) in respect of a meeting of owners may act for the corporate flat owner for the meeting.
- (2) A corporate flat owner may by written notice (***authorization notice***) given in accordance with subparagraph (4) authorize 1 natural person for the purposes of subparagraph (1).
- (3) Subparagraph (2) does not prevent a corporate flat owner from, after it has authorized a person as an authorized natural person in respect of a meeting of owners (***original authorized natural person***), authorizing another person as an authorized natural person in respect of the meeting in substitution of the original authorized natural person.
- (4) The authorization notice—
 - (a) must be given in the specified form;
 - (b) must, despite anything to the contrary in the corporate flat owner's constitution, be—

- (i) impressed with its seal or chop; and
 - (ii) signed by a person authorized by it in that behalf; and
- (c) must be given to the person in charge of the meeting at least 48 hours before the time for the holding of the meeting—
 - (i) by lodging the original of the notice in hard copy form with the person; or
 - (ii) by sending validly a copy of the notice in electronic form to the person.
- (5) In subparagraph (4)(c), a reference to the person in charge of a meeting of owners is a reference to—
 - (a) if the meeting is convened by the owners' committee—the chairman of the owners' committee; or
 - (b) in any other case—the convenor of the meeting.

43. Supplementary terms relating to authorized natural persons

- (1) An authorized natural person who attends a meeting of owners on behalf of a corporate flat owner under paragraph 42(1) is, for all purposes relating to the meeting, taken to be the corporate flat owner present at the meeting.
- (2) A corporate flat owner is, for all purposes relating to a meeting of owners, taken to cast a vote personally at the meeting if an authorized natural person casts a vote on behalf of the corporate flat owner at the meeting under paragraph 42(1).
- (3) If—
 - (a) under another term of the deed of mutual covenant—
 - (i) in the event that 2 or more persons are the co-owners of a share, the vote in respect of the share

may be cast at a meeting of owners by a person appointed by any or all of the co-owners; and

- (ii) one or more of the co-owners (*eligible co-owners*) are eligible to be so appointed for that purpose;

- (b) an eligible co-owner is a corporate flat owner; and

- (c) an authorized natural person is available to act for the eligible co-owner for the meeting,

the authorized natural person is also eligible to be so appointed for that purpose.

- (4) If an authorized natural person is available to act for a corporate flat owner for a meeting of owners—

- (a) if the corporate flat owner has not appointed a proxy for the meeting—the corporate flat owner is not permitted to do so; or

- (b) if the corporate flat owner has appointed a proxy for the meeting—the instrument appointing the proxy is regarded as revoked.

44. Effect of authorization of authorized natural persons for adjourned meetings

If a meeting of owners is adjourned, a corporate flat owner's authorized natural person for the original meeting is, for the purposes of the deed of mutual covenant, also taken to be the corporate flat owner's authorized natural person for the adjourned meeting unless—

- (a) contrary intention is shown on the notice given under paragraph 42(2) in respect of the original meeting (*original authorization notice*);

- (b) the original authorization notice is revoked; or

- (c) the corporate flat owner authorizes another person under paragraph 42(2) in respect of the adjourned meeting.

45. Division 3 not preventing other mechanism under which natural persons may act for corporate flat owners under deed of mutual covenant

This Division does not prevent the deed of mutual covenant from containing any terms in respect of any mechanism, other than the one specified in this Division, by which a natural person may be authorized to act for a corporate flat owner for a meeting of owners.

**Division 4—Specific Procedure at Meetings of Owners
Concerning Large-scale Maintenance Procurement**

Subdivision 1—Preliminary

46. References to proposed large-scale maintenance procurement resolution

In this Division, a reference to a proposed large-scale maintenance procurement resolution is a reference to a proposed resolution of the owners for deciding—

- (a) whether a tender submitted for any large-scale maintenance procurement is to be accepted or not; or
- (b) whether a contract entered into for any large-scale maintenance procurement—
 - (i) is to be varied or not; or
 - (ii) is to be terminated or not.

47. Deed of mutual covenant not limited unless inconsistent

This Division does not limit any other terms of the deed of mutual covenant in relation to the procedure at a meeting of owners to the extent that those terms are consistent with this Division.

Subdivision 2—Procedure

48. Notices of meeting

- (1) If a resolution that is to be proposed at a meeting of owners is a proposed large-scale maintenance procurement resolution, the statement in the notice of the meeting specifying the proposed resolution for compliance with paragraph 39(2)(b) must be titled “**Important Reminder**” in English and “**重要提示**” in Chinese.
- (2) If the proposed large-scale maintenance procurement resolution concerns the question mentioned in paragraph 46(a), the notice of the meeting must, in relation to each tender that is valid under the terms of the relevant invitation to tender, set out clearly and legibly—
 - (a) the estimated amount to be contributed from each building management fund for the procurement; and
 - (b) the estimated apportioned amount that each of the owners is to contribute for the procurement in addition to a contribution mentioned in sub-subparagraph (a).
- (3) If the proposed large-scale maintenance procurement resolution concerns a question mentioned in paragraph 46(b) and the owners are expected to incur any financial liability (including legal costs) because of the relevant variation or termination of contract, the notice of the meeting must set out clearly and legibly—
 - (a) the estimated amount to be contributed from each building management fund for settling the costs; and
 - (b) the estimated apportioned amount that each of the owners is to contribute for settling the costs in addition to a contribution mentioned in sub-subparagraph (a).

(4) To avoid doubt, even if the estimated amount mentioned in subparagraph (2) or (3) is zero, that subparagraph does require such an amount to be set out in accordance with that subparagraph.

(5) In this paragraph—

building management fund (建築物管理基金) means—

- (a) a special fund established and maintained by the manager under paragraph 4(1); or
- (b) any fund other than the special fund that is established and maintained by the manager for performing a function under the deed of mutual covenant or this Ordinance.

49. Voting-in-person threshold

- (1) The voting in respect of a proposed large-scale maintenance procurement resolution at a meeting of owners is subject to a voting-in-person threshold specified under subparagraph (2).
- (2) The voting-in-person threshold is the lesser of—
 - (a) 5% of the owners; or
 - (b) 100 owners.

50. Recording of votes cast personally and by proxy

If votes have been cast for a proposed large-scale maintenance procurement resolution at a meeting of owners, the manager must ensure that the minutes of the proceedings at the meeting kept under paragraph 40(1) contain a clear and legible record of—

- (a) the total number of such votes cast personally; and
- (b) the total number of such votes cast by proxy.

51. Supply of copies of minutes of proceedings at meetings

If a proposed large-scale maintenance procurement resolution is

considered at a meeting of owners, the manager must, within 28 days after the date of the meeting, supply each of the owners with a copy of the minutes of the proceedings at the meeting that are kept under paragraph 40—

- (a) by delivering a copy of the minutes in hard copy form personally to the owner;
- (b) by sending a copy of the minutes in hard copy form by post to the owner at the owner's last known address;
- (c) by leaving a copy of the minutes in hard copy form at the owner's flat or depositing such a copy in the letter box for that flat; or
- (d) by sending validly a copy of the minutes in electronic form to the owner.

(Part 3 added 20 of 2024 s. 43)

(Schedule 7 added 27 of 1993 s. 41)

Schedule 8

[ss. 34D, 34F & 42 &
Sch. 11]

(Amended 5 of 2007 s. 33)

Terms Added if Consistent with Deed of Mutual Covenant

Meetings of owners' committee

1. A meeting of the owners' committee may be convened at any time by the chairman or any 2 members of the owners' committee.
2. The person or persons convening the meeting of the owners' committee shall, at least 7 days before the date of the meeting, give notice of the meeting to each member of the owners' committee.

(Replaced 5 of 2007 s. 33)

- 2A. The notice of meeting referred to in paragraph 2 shall specify—
 - (a) the date, time and place of the meeting; and
 - (b) the resolutions (if any) that are to be proposed at the meeting.

(Added 5 of 2007 s. 33)

3. The notice of meeting referred to in paragraph 2 may be given— *(Amended 5 of 2007 s. 33)*
 - (a) by delivering it personally to the member of the owners' committee; or
 - (b) by sending it by post to the member of the owners' committee at his last known address; or

- (c) by leaving it at the member's flat or depositing it in the letter box for that flat. *(Amended 12 of 1998 s. 10)*

(Amended 5 of 2007 s. 33)

4. The quorum at a meeting of the owners' committee shall be 50% of the members of the owners' committee (rounded up to the nearest whole number) or 3 such members, whichever is the greater.
5. A meeting of the owners' committee shall be presided over by—
 - (a) the chairman; or
 - (b) in the absence of the chairman, a member of the owners' committee appointed as chairman for that meeting.
6. At a meeting of the owners' committee, each member present shall have 1 vote on a question before the committee and if there is an equality of votes the chairman shall have, in addition to a deliberative vote, a casting vote.
7. The procedure at meetings of the owners' committee shall be as is determined by the owners' committee.

Meetings of owners

8. A meeting of owners may be convened by—
 - (a) the owners' committee;
 - (b) the manager; or
 - (c) an owner appointed to convene such a meeting by the owners of not less than 5% of the shares in aggregate.

(Replaced 5 of 2007 s. 33)

9. *(Repealed 20 of 2024 s. 44)*

- 9A. *(Repealed 20 of 2024 s. 44)*
10. A notice of a meeting of owners convened under the deed of mutual covenant may be given— *(Amended 5 of 2007 s. 33; 20 of 2024 s. 44)*
- (a) by delivering it personally to the owner;
 - (b) by sending it by post to the owner at his last known address; or
 - (c) by leaving it at the owner's flat or depositing it in the letter box for that flat. *(Amended 12 of 1998 s. 10)*
- (Amended 5 of 2007 s. 33)*
11. The quorum at a meeting of owners convened under the deed of mutual covenant is 10% of the owners.
- (Amended 20 of 2024 s. 44)*
- 11A. For the purposes of paragraph 11, the reference in that paragraph to "10% of the owners" shall—
- (a) be construed as a reference to 10% of the number of persons who are owners without regard to their ownership of any particular percentage of the total number of shares into which the building is divided; and
 - (b) not be construed as the owners of 10% of the shares in aggregate. *(Amended 5 of 2007 s. 70)*
- (Added 69 of 2000 s. 26)*
12. A meeting of owners convened under the deed of mutual covenant must be presided over by the chairman of the owners' committee or, if the meeting is convened under paragraph 8(b) or (c), the person convening the meeting.

(Replaced 5 of 2007 s. 33. Amended 20 of 2024 s. 44)

13. At a meeting of owners convened under the deed of mutual covenant— *(Amended 20 of 2024 s. 44)*
 - (a) an owner shall have one vote in respect of each share he owns; *(Replaced 5 of 2007 s. 33)*
 - (b) an owner may cast a vote personally or by proxy; *(Replaced 5 of 2007 s. 33)*
 - (c) where 2 or more persons are the co-owners of a share, the vote in respect of the share may be cast—
 - (i) by a proxy jointly appointed by the co-owners;
 - (ii) by a person appointed by the co-owners from amongst themselves; or
 - (iii) if no appointment is made under sub-subparagraph (i) or (ii), either by one of the co-owners personally or by a proxy appointed by one of the co-owners; *(Replaced 5 of 2007 s. 33)*
 - (ca) where 2 or more persons are the co-owners of a share and more than one of the co-owners seeks to cast a vote in respect of the share, only the vote that is cast, whether personally or by proxy, by the co-owner whose name, in order of priority, stands highest in relation to that share in the register kept at the Land Registry shall be treated as valid; and *(Added 5 of 2007 s. 33)*
 - (d) if there is an equality of votes the person presiding over the meeting shall have, in addition to a deliberative vote, a casting vote.
14. (1) An instrument appointing a proxy shall be in the form set out in Form 1 in Schedule 1A, and—
 - (a) shall be signed by the owner; or

- (b) if the owner is a body corporate, shall, notwithstanding anything to the contrary in its constitution, be impressed with the seal or chop of the body corporate and signed by a person authorized by the body corporate in that behalf.
- (2) The instrument appointing a proxy shall be lodged with the chairman of the owners' committee or, if the meeting is convened under paragraph 8(b) or (c), the person convening the meeting at least 48 hours before the time for the holding of the meeting.
- (3) A proxy appointed by an owner to attend and vote on behalf of the owner shall, for the purposes of the meeting, be treated as being the owner present at the meeting.

(Replaced 5 of 2007 s. 33)

15. The procedure at a meeting of owners convened under the deed of mutual covenant is as is determined by the owners.

(Amended 20 of 2024 s. 44)

(Schedule 8 added 27 of 1993 s. 41)

Schedule 9

[ss. 2, 34E & 42]

(Amended 5 of 2007 s. 34)

Exempt Estates

(Added 27 of 1993 s. 41)

Schedule 10

[ss. 42 & 45]

(Amended 5 of 2007 s. 35)

Hearing and Determination of Specified Proceedings by Tribunal

1. Proceedings relating to the interpretation and enforcement of the provisions of this Ordinance.
2. Proceedings relating to the interpretation and enforcement of the terms and provisions of a deed of mutual covenant, including such terms or provisions impliedly incorporated into a deed of mutual covenant under Part VIA.
3. Proceedings relating to the use, occupation, enjoyment, possession or ownership of the common parts or any other part of a building in which the owners have a common interest.
4. Proceedings relating to the calculation or apportionment of—
 - (a) any sums payable or purported to be payable under a deed of mutual covenant (if any);
 - (b) the funds and contributions referred to in sections 20 and 21;
 - (c) any management expenses or charges (howsoever named);
 - (d) any other outgoings, payments, debts or liabilities due or liable under this Ordinance or in accordance with the terms and provisions of an instrument which is

registered in the Land Registry including a deed of mutual covenant (if any).

5. Proceedings relating to any question of law concerning the powers and duties of—
 - (a) a corporation;
 - (b) a management committee, and of the chairman, secretary and treasurer thereof;
 - (c) a manager; (*Amended 20 of 2024 s. 45*)
 - (d) an owners' committee within the meaning of that section;
 - (e) the tenants' representative,including such powers and duties (if any) of a financial, pecuniary or fiduciary nature.
6. Proceedings relating to any question of law concerning ownership, occupation or possession of the whole or any part of the building, including ownership or an undivided share in a building or in land on which there is a building.
7. Without prejudice to paragraph 6 and subject to section 45(3), proceedings relating to any question of law concerning the extent and applicability or otherwise of any contractual or proprietary right enjoyed by owners and occupiers or otherwise referred to in the terms and provisions of an instrument which is registered in the Land Registry including a deed of mutual covenant (if any).
8. Proceedings relating to any question of law concerning any breach or alleged breach of any covenant, term or condition specified in an instrument which is registered in the Land Registry including a deed of mutual covenant (if any).

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Schedule 10

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9. Proceedings relating to the enforcement of any contractual or proprietary right referred to in paragraph 7 or any covenant, term or condition referred to in paragraph 8, as the case may be, whether by way of specific performance, injunction, declaration, damages or otherwise.

(Schedule 10 added 27 of 1993 s. 41)

Schedule 11

[ss. 5B & 42]

(Amended 5 of 2007 s. 36)

Enumeration of Owners

For the purposes of section 5B—

- (a) sections 3(8), 3A(3F), 4(10), 28C(1) and 40C(9) and paragraphs 1(2) and 5 of Schedule 3, paragraph 1A of Schedule 6, paragraph 4(2) of Schedule 6C, paragraphs 11(1) and 49(2) of Schedule 7 and paragraph 11 of Schedule 8 are specified; *(Replaced 5 of 2007 s. 36. Amended 20 of 2024 s. 46)*
- (b) the enumeration of the percentage or number of owners mentioned in the provisions specified in paragraph (a) shall be computed as follows— *(Amended 20 of 2024 s. 46)*

Form of ownership	Illustration	To be counted as
1. Multiple ownership of 1 flat	1 flat with 3 co-owners	1 owner
2. 1 owner owning more than 1 flat	1 owner owning 35 flats	1 owner

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Schedule 11

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Form of ownership	Illustration	To be counted as
3. 1 person or more than 1 holding proxies from more than 1 owner	(a) 1 person holding proxies from 100 owners	Voting rights equal to the number of valid proxies held. In the cases as illustrated, 100 owners.
	(b) 35 persons holding proxies from 100 owners in aggregate	

(Schedule 11 added 69 of 2000 s. 27)